

MEMORANDUM OF SETTLEMENT
for the
TWENTIETH MAIN PUBLIC SERVICE AGREEMENT

between the

GOVERNMENT OF THE
PROVINCE OF BRITISH COLUMBIA

represented by the

BC PUBLIC SERVICE AGENCY

and the

B.C. GENERAL EMPLOYEES' UNION (BCGEU)

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MEMORANDUM OF SETTLEMENT
Between:
GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA
as represented by the BC PUBLIC SERVICE AGENCY
And
BC GENERAL EMPLOYEES' UNION

Whereas:

- A. the above-noted parties have, pursuant to the *Labour Relations Code* of British Columbia, bargained in good faith, intend to enter into a Tentative Agreement on October 26, 2025 in Vancouver, BC (the "Tentative Agreement");
- B. for the purpose of this Memorandum of Settlement and the Tentative Agreement, the parties understand a reference to the Collective Agreement to be a reference to the Main Public Service Collective Agreement and its Component Agreements, and references to specific articles in a Component Agreement will be identified.

THEREFORE:

1. The terms of the Tentative Agreement are as follows:
 - a. All unchanged articles, appendices, letters of understanding, memorandums and ancillary documents in the Collective Agreement between the parties with a term expiring on March 31, 2025 will remain in effect.
 - b. All proposals agreed to during this round of bargaining, including but not limited to: wages, term, and housekeeping proposals will be attached to this document as Appendix "A".
 - c. All proposals put forward by either party during this round of bargaining and not dealt with will be deemed withdrawn on a without prejudice basis.
2. Both parties will recommend acceptance of the Tentative Agreement to their respective bodies and advise the other party of the result as soon as possible following bargaining.
3. The parties agree that Addendum A "Return to Work Agreement" will address concerns arising from strike action.
4. On ratification, the terms and conditions of the Tentative Agreement will form the successor Collective Agreement between the Parties and will be effective from April 1, 2025 to March 31, 2029 and will continue to be in force until the renewal of the Collective Agreement, or strike/lockout.
5. In the event any difficulties arise out of the implementation or preparation of the successor Collective Agreement, the parties will remain seized.

**SIGNED ON BEHALF OF
THE UNION BY:**

Paul Finch
President

Maria Middlemiss
Treasurer

Dean Purdy
Correctional and Sheriff Services

Kusam Doal
Retail Stores & Warehouse

Judy Fox-McGuire
Social, Information & Health Services

Mona Dykes
Social, Information & Health Services

DJ Pohl
Administrative Professionals

Faith Johnston
Administrative Professionals

Sebastian Kallos
Environment, Technical & Operations

Rob Davis
Environment, Technical & Operations

**SIGNED ON BEHALF OF
THE EMPLOYER BY:**

Alyson Blackstock
Assistant Deputy Minister, PSA

Korina Tsui
Executive Director, PSA

Christy Howis
Director, PSA

John Ginther
Director, PSA

Ellen Hrad
Director, PSA

Teresa Chow
Compensation Advisor, PSA

Samantha Thatcher
Director, PSA

Kimberley Bowman
Divisional Coordinator, PSA

Doug Forsdick,
Provincial Director, PSSG

Erin Moore
Chief Human Resources Officer, BC LDB

Linsay Buss
Lead Negotiator &
Associate Director, Negotiations

Richelle Chambers
Executive Director, SDPR

Larisa Mills
Staff Representative

Greg Kondas
Deputy Chief, ENV

Holly Reid
Communications Officer

Dave Fleming,
Director, FOR

Sumiko Marshall
Administrative Assistant

Diane Bruce
Executive Director, MCFD

Fiona Mercer
Employee Relations Support Analyst, PSA

Brenden Hartridge
Employee Relations Support Analyst, PSA

Dated _____

“ADDENDUM A”
RETURN TO WORK AGREEMENT

WHEREAS the Employer and the Union wish to resolve all outstanding matters with respect to the strike which occurred between September 2 and October 26, 2025 inclusive (the “Strike Period”), by entering into this Return-to-Work Agreement (the “Agreement”);

THEREFORE the parties agree to the following:

1. **Conclusion of Strike Activity:** The Union and Union bargaining unit employees employed by the Employer will cease all strike-related activities against the Employer within 24 hours of the execution of this Agreement.
2. **Return to Work:** All Union bargaining unit employees employed by the Employer will return to work at their regular job and work location at their normal time on the day after this Agreement is executed, save and except that each bargaining unit employee will retain the right to be absent from work on that date and thereafter because of normal day(s) off; vacation; leave of absence; sickness or long term disability or Workers’ Compensation; or any other reason allowed by either the Collective Agreement or the Employer.
3. It is mutually agreed that return to work activities will include all occupational health and safety requirements, including but not limited to: worker reorientation to the workplace, resumption of joint committees and training, first aid assessments and facilities considerations.
4. **Notice to Employees:** The Union will communicate to its members of the date and time for return to work.
5. If an Employee fails to return to work, the Employee will be considered to have abandoned their position and deemed to resign per the terms of Article 10.10 of the Collective Agreement.
6. **Strike/Lockout Freeze:** The Union and Employer agree they will not engage in any strike or lockout activity until the results of the ratification process is complete. For clarity, respecting the picket line of other unions will be treated as per Article 2.9 of the Main Agreement.
7. **Right to Strike/Lockout:** Notwithstanding the provisions of Paragraphs (1) and (2) above, the Union and the Union bargaining unit employees will retain the right to resume strike action against the Employer, and the Employer will retain the right to Lockout Union bargaining unit employees, in the event that either the Union or the Employer fails to ratify the Memorandum of Settlement signed by and executed by the parties on October 26, 2025.
8. **Benefits:** Employees, including employees who engaged in a full withdrawal of work, will continue to accrue any earned entitlements for the duration of the Strike Period, unless otherwise indicated in this Agreement. This includes:

- a) seniority;
- b) sick leave;
- c) annual vacations and vacation pay;
- d) pay increments; and
- e) health and welfare eligibility.

- 9. Shift Work and/or Auxiliary Employees:** Where an employee works shifts, as well as Auxiliary employees, and that employee engaged in a full withdrawal of work during the Strike Period, entitlements for those employees will be accrued based on the hours the employee was scheduled to work if not for the Strike Period.
- 10. Service:** An absence due to strike activity during the Strike Period will not be considered a break in service.
- 11. Earned time off schedules:** All earned time off schedules interrupted by the Strike Period will be resumed when the employee returns to work. For clarity, an employee will be able to access any earned time off accrued prior to the Strike Period.
- 12. STIIP and LTD.** An absence due to strike activity during the Strike Period will not restrict eligibility for STIIP or long term disability benefits.
- 13. Compensation:** Unless otherwise indicated in this agreement, for the times in which a bargaining unit employee was engaged in strike activity during the Strike Period that resulted in that employee not reporting for duty, the employee will not be eligible for salary, allowances, employer contributions to health plans or any other benefits normally available through employment with the Employer.
- 14. Probationary and Qualifying Periods:** All probationary periods, trial assessment periods and other qualifying periods interrupted by the Strike Period and any unexpired portions will resume when the employee returns to work.
- 15. Statutory Holidays:** Each employee who engaged in a full withdrawal of work, except for employees who were already paid by the Employer, will receive compensation for the September 30 and October 13 designated holidays, even if the withdrawal of work does not make them otherwise eligible under the Collective Agreement.
- 16. Benefit Payments:** Upon receipt of confirmation of the actual cost, the Union will pay the Employer an amount equal to the total of the Employer's payment for the continuation of benefits during the Strike Period.
- 17. Grievance Time Limits:** For those employees who engaged in strike action, the Strike Period will not be included in calculating the time-limits for the grievance procedure. No damages will accrue in any matter that proceeds to arbitration with respect to the Strike Period.
- 18. Vacation:** Employees who did not receive vacation pay for vacation which was scheduled during the Strike Period will have the opportunity to reschedule that vacation later in the year subject to the demands of the business. Vacation previously scheduled for a time which commences

after the Strike Period will be taken as scheduled. The Employer and the Union will co-operate in encouraging employees described above to take vacation as soon as possible.

19. Archived Vacation: The October 31, 2025 date in the agreed to letter dated January 29, 2025, re Archived Vacation will be amended to reflect 60 days after the date of ratification.

20. No Retaliation: The Employer will not bring any action against employees for any conduct related to legitimate strike activity during the Strike Period.

21. Outstanding Disputes: Upon execution of this Agreement, the Parties will jointly request that the Union Application pursuant to sections 5, 6, 11, 27 and 47 filed October 21, 2025, as amended October 22, 2025, be held in abeyance pending ratification. Following ratification, it is agreed that all applications, complaints, or proceedings now before the Labour Relations Board or before any other forum related to this dispute, will be discontinued and abandoned. No complaints, charges, actions, lawsuits, claims, grievances or other proceedings will be initiated, instigated, or supported relating to issues, action, or conduct arising up to the date of ratification in respect of the dispute between the parties.

Upon execution of this Agreement, the Parties will jointly request that the process ordered by the Labour Relations Board in 2025 BCLRB 206, at paragraph 59, be held in abeyance until further notice from either party requesting that process to proceed.

22. Management: No provision will be interpreted or applied in a manner which interferes with the Employer's decisions based on its business requirements to manage and run their operations.

23. Agreement: This Agreement forms part of the Collective Agreement and any disagreement concerning the interpretation, application or violation of this Agreement may be enforced through the grievance and arbitration procedure set out in the Collective Agreement.

24. This Agreement will not be included in the printed version of the Collective Agreement.

APPENDIX A

ARTICLE 1 – PREAMBLE

Recognition of First Nations Territories and Indigenous Peoples and Cultures

The parties to this agreement acknowledge the First Nations and their Territories on which we conduct our work, now known as British Columbia.

The parties commit to advancing reconciliation by working together to implement the Province of British Columbia's *Declaration on the Rights of Indigenous Peoples Act*, the *Anti-Racism Act*, the *Anti-Racism Data Act*, and the *Accessible British Columbia Act*.

ARTICLE 1 – PREAMBLE

1.7 Human Rights Code

The parties hereto subscribe to the principles of the *Human Rights Code* of British Columbia.

In accordance with Clause 7.5, the parties will continue to review methods of extending knowledge of the *Human Rights Code* within the Public Service and for extending knowledge relating to the *Human Rights Code* to all employees.

The government of British Columbia, in cooperation with the Union, will promote a work environment that is free from discrimination where all employees are treated with respect and dignity.

Discrimination relates to any of the prohibited grounds contained in the BC *Human Rights Code*. Prohibited conduct may be verbal, non-verbal, physical, deliberate or unintended, unsolicited or unwelcome, as determined by a reasonable person. It may be one incident or a series of incidents depending on the context.

Employees have the right to employment without discrimination because of **Indigenous identity**, race, colour, ancestry, place of origin, religion, family status, marital status, physical disability, mental disability, sex, age, sexual orientation, political beliefs, gender identity or expression, ~~Indigenous identity~~, and criminal or summary offense unrelated to their employment.

Discrimination does not include actions occasioned through exercising in good faith the Employer's managerial/supervisory rights and responsibilities.

Protection against discrimination extends to incidents occurring at or away from the workplace during or outside working hours provided the acts are committed within the course of the employment relationship.

This clause does not preclude an employee from filing a complaint under Section 13 of the *BC Human Rights Code*, however, an employee shall not be entitled to duplication of process. An employee making a complaint of discrimination must choose to direct a complaint to either the BC Council of Human Rights **Tribunal** or to the process specified in Clause 1.9. In either event a complaint of discrimination, if included as an element of a grievance, shall not be pursued through the process identified in Clause 1.9.

~~An employee who files a written complaint which would be seen by a reasonable person to be frivolous, vindictive or vexatious may be subject to disciplinary action. Disciplinary action taken may be grieved pursuant to Article 8 – Grievances.~~

ARTICLE 1 – PREAMBLE

1.8 Sexual Harassment

The government of British Columbia, in cooperation with the Union, will promote a work environment that is free from sexual harassment where all employees are treated with respect and dignity.

Sexual harassment is one form of discrimination and is defined as any unwelcome comment or conduct of a sexual nature that may detrimentally affect the work environment or lead to adverse job-related consequences for the victim of the harassment. Prohibited conduct may be verbal, non-verbal, physical, deliberate or unintended, unsolicited or unwelcome, as determined by a reasonable person. It may be one incident or a series of incidents depending on the context.

Sexual harassment does not include actions occasioned through exercising in good faith the Employer's managerial/supervisory rights and responsibilities.

Protection against harassment extends to incidents occurring at or away from the workplace during or outside working hours provided the acts are committed within the course of the employment relationship.

This clause does not preclude an employee from filing a complaint under Section 13 of the *BC Human Rights Code*, however, an employee shall not be entitled to duplication of process. An employee making a complaint of sexual harassment must choose to direct a complaint to either the BC Council of Human Rights **Tribunal** or to the process specified in Clause 1.9. In either event a complaint of sexual harassment, if included as an element of a grievance shall not be pursued through the process identified in Clause 1.9.

~~An employee who files a written complaint which would be seen by a reasonable person to be frivolous, vindictive or vexatious may be subject to disciplinary action. Disciplinary action taken may be grieved pursuant to Article 8 – Grievances.~~

Examples of sexual harassment include but are not limited to:

- a person in authority asking an employee for sexual favours in return for being hired or receiving promotions or other employment benefits;
- sexual advances with actual or implied work related consequences;
- unwelcome remarks, questions, jokes or innuendo of a sexual nature; including sexist comments or sexual invitations;
- verbal abuse, intimidation, or threats of a sexual nature;
- leering, staring or making sexual gestures;
- display of pornographic or other sexual materials;
- offensive pictures, graffiti, cartoons or sayings;
- unwanted physical contact such as touching, patting, pinching, hugging;
- physical assault of a sexual nature.

This definition of sexual harassment is not meant to inhibit interactions or relationships based on mutual consent or normal social contact between employees.

ARTICLE 1 – PREAMBLE

1.10 Bullying Between Peers and Misuse of Managerial/Supervisory Authority

The parties recognize the right of employees to work in an environment free from bullying and misuse of managerial/supervisory authority. The parties agree there is a need to take responsible action to prevent bullying and misuse of managerial/supervisory authority and whenever they become aware of such behaviour, put a stop to it.

For the purposes of this clause, “*bullying between peers*” refers to:

- vexatious behaviour by a person with no managerial or supervisory authority over the complainant, including but not limited to repeated hostile conduct, comments, actions, or gestures, that affects an employee’s psychological or physical well-being and that results in a harmful work environment; or
- a single incident by a person with no managerial or supervisory authority over the complainant that has a lasting harmful effect on the complainant.

For the purposes of this article, misuse of managerial/supervisory authority refers to a person with managerial or supervisory authority over the complainant exercising that authority in a manner which serves no legitimate work purpose which a reasonable person would consider inappropriate.

Misuse of managerial/supervisory authority does not include the good faith exercise of the Employer’s managerial/supervisory rights and responsibilities, nor does it include a single incident of a minor nature where the harm, by any objective standard is minimal.

This clause is not intended to supplant or replace the procedures at Clauses 1.7, 1.8, and 1.9 of the agreement for dealing with complaints alleging discrimination under the *Human Rights Code* or sexual harassment.

Where the allegation is based on a matter for which another dispute resolution mechanism exists, then this process shall not be utilized.

If an employee does not present a complaint within the prescribed time limits, or if the President of the Union or their designate does not present a complaint to the next higher level within the prescribed time limits, the complaint will be deemed to have been abandoned.

Process for Complaint Review or Investigation

An employee may approach their supervisor, or the first level of excluded manager not involved in the complaint, for assistance in resolving the issue informally within 30 days of the alleged occurrence. The employee is encouraged to seek union support.

If the supervisor or first level of excluded manager fails to resolve the issue to the satisfaction of the employee within 15 days of notification, the employee may make a written complaint to the supervisor or first level of excluded manager on the designated form. The Employer will provide the Union with a copy of the written complaint within ten days of receipt.

The written complaint must be filed within 45 days of the alleged occurrence. This complaint will be provided to the respondent, and will include the following information:

- the name(s) of the people involved;
- the specific actions alleged to constitute bullying between peers or misuse of managerial/supervisory authority;
- the dates of these specific actions;
- names of witnesses;
- an explanation of why the actions complained of constitute bullying between peers or misuse of managerial/supervisory authority;
- an outline of the steps which have been taken to resolve the matter; and,
- the remedy sought.

The allegations and any relevant materials will be provided to the respondent.

Upon request of the employee, the Union will provide assistance to the employee in the drafting of the complaint in an effort to ensure it provides the listed information.

The supervisor/manager will review the written complaint and determine next steps which will be communicated to the employee within 14 days. During this period, the supervisor/manager may take steps to informally resolve the complaint (e.g. Conflict Management Office). During the 14 day review, and where appropriate, the supervisor/manager may refer the matter for investigation or review which will be completed without unreasonable delay and an outline of the findings of an investigation or review and the Employer's response will be reported to the complainant and respondent. The Employer agrees to provide regular updates to the Union at-least every 30 days.

The Union will be informed when a complaint is referred for investigation or review. An investigation or review will be performed under the guidelines established by the Public Service Agency.

Upon completion, the complainant and respondent will be provided with the Employer's response which will include an outline of the findings of the investigation or review. The Union will be copied on this correspondence.

The outline of the findings of the investigation or review must be sufficient to allow the complainant and respondent to understand why the Employer investigation or review has reached the conclusions and the process for reaching those conclusions.

Referral to Panel

If the response is not acceptable to the complainant or respondent, the Union may refer the matter, in writing, to the Panel within 30 days of receipt of the Employer's response.

The Parties recognize the shared interest in early resolution of matters referred to the Panel.

To support determining whether there is sufficient merit for the matter to proceed to the Panel, the Parties agree on an early disclosure process of an appropriately redacted investigation report, if available. The process shall be as follows:

- **Within 30 days of receiving the referral the Employer representative will prepare and submit a redacted copy of the report for approval by the Panel.**
- **The Panel will review to ensure that the redactions are appropriate and once confirmed will order the release of the redacted report to the BCGEU Staff Representative.**

The Parties agree that the early disclosure of the report shall be for the sole purpose of determining the merit for a matter to proceed. It is mutually understood that the report is not to be shared or used in any other proceeding. For clarity, the Union will not release the redacted copy to a complainant, respondent, or any other person.

The Parties agree that they will continually review this early disclosure process to determine if it meets the needs of the Parties. Any changes in the process are subject to mutual agreement by the Bargaining Principals. This early disclosure process will remain in effect through the term of the 20th Main agreement.

The Panel will review the complaint and the Employer's response, if available. The Panel may make a decision based on these documents and, if it determines that there is no basis for a complaint or if there are insufficient particulars, may dismiss the complaint.

Where the Panel determines there is sufficient reason to conduct a mediation/arbitration hearing, the Panel shall hear and determine any dispute between the parties over the interpretation, application, or alleged violation of this clause.

Hearings shall be conducted in an expedited, non-precedential basis so as to give those involved a fair hearing. The Panel may admit any evidence deemed necessary or appropriate. The Panel will determine its own process and may:

- (1) make findings of fact;
- (2) decide if, on the facts, bullying between peers or misuse of managerial/supervisory authority has occurred;
- (3) attempt to mediate a resolve;
- (4) dismiss the complaint

The decision of the Panel shall be final and binding and consistent with the terms of the collective agreement. **Where possible the Panel decision should be available within 60 days of the hearing.**

The Panel shall be seized of any grievances filed which pertain to a complaint filed under this clause.

Pending the determination of the complaint, the Deputy Minister(s) may take interim measures to separate the employees concerned, if deemed necessary. Any such action taken will not be deemed disciplinary in nature or seen as evidence of the validity of the complaint.

ARTICLE 2 – UNION RECOGNITION AND RIGHTS

2.8 Union Insignia

- (a) A union member shall have the right to wear or display the recognized insignia of the Union. The Union agrees to furnish to the Employer at least one union shop card, for each of the Employer's places of operation covered by this agreement, to be displayed on the premises. Such card will remain the property of the Union and shall be surrendered upon demand.
- (b) The recognized insignia of the Union shall include the designation "~~bcgeu~~ **BCGEU**". This designation shall, at the employee's option, be placed on stenography typed by a member of the Union. This designation shall be placed below the signatory initials on typewritten correspondence.

ARTICLE 4 – CHECK-OFF OF UNION DUES

- (a)-(i) MCL

(j) The Employer will submit union dues remittance by Electronic Funds Transfer (EFT). The EFT will be submitted with an email to direct.deposit@bcgeu.ca including the EFT date and dollar amount.

(k) Employer pay period reporting:

(1) By December 15th of each year, the Employer will provide the Union with the following information for each pay period in the upcoming year:

- i) Pay period number**
- ii) Pay period ending date**
- iii) Pay period pay date**

(2) The Union will provide a secure data transfer solution for this information that meets the Employer's data privacy and security requirements. The Union will consult with the Employer before changing which solution it uses to improve security or user experience. If at any time the transfer solution does not meet the Employer's requirements or incurs additional costs to the Employer, the secure data transfer will cease immediately.

ARTICLE 5 – EMPLOYER AND UNION TO ACQUAINT NEW EMPLOYEES

(a) At the time of hire new employees will be advised that a collective agreement is in effect and of the conditions of employment set out in the articles dealing with Union Security and Dues Check-off.

(b) A new employee shall also be provided with:

- (1) the name, location **work address, email address (if available)** and work telephone number of the steward; and,
- (2) an authorization form for union dues check-off.

(c) Upon request, the steward shall be advised of the name, location, and work telephone number of the new employee.

(d) The Employer will provide the Union with a list of new employees on a monthly basis **within seven days of the end of each pay period**. The list will include the **name, employee ID**, location, ministry, pay list and classification of each employee and will be provided in a mutually agreed format.

(e) The Union will provide a secure data transfer solution for this information that meets the Employer's data privacy and security requirements. The Union will consult with the Employer before changing which solution it uses to improve security or user experience. If at anytime the transfer solution does not meet the Employer's requirements or incurs additional costs to the Employer, the secure data transfer will cease immediately.

~~(d)~~**(f)** The steward will be given an opportunity to interview each new employee within regular working hours, without loss of pay, for 20 minutes sometime during the first 30 days of employment.

~~(e)~~**(g)** The Union will provide ministries with an up-to-date list of stewards' names, work ~~locations~~ **address, email address (if available)** and work telephone numbers in order that the Employer may meet its obligation in (b)(1) above.

~~(f)~~**(h)** The Union will be provided with a copy of the completed and signed authorization form for dues check-off for all new employees

ARTICLE 8 – GRIEVANCES

8.4 Step 2

- (a) Subject to the time limits in Clause 8.3, the employee may present a grievance at this level by:
- (1) recording their grievance on the appropriate **manual or electronic** grievance form, setting out the nature of the grievance and the circumstances from which it arose;
 - (2) stating the article(s) or clause(s) of the agreement infringed upon or alleged to have been violated, and the remedy or correction required; and,
 - (3) transmitting their grievance to the designated local supervisor through the union steward.
-

ARTICLE 8 – GRIEVANCES

8.8 Administrative Provisions

- (a) Replies to grievances at Step 2 of the grievance procedure and notification to arbitrate shall be by certified mail, or **electronic mail, or by** courier or by facsimile.
- (b) Grievances, replies, and notification shall be deemed to have been presented on the date on which they were verifiably transmitted, and received on the date they were delivered to the appropriate office of the Employer or the Union.
-

ARTICLE 8 – GRIEVANCES

8.9 Dismissal or Suspension Grievances

- (a) In the case of a dispute arising from an employee's dismissal, rejection on probation, suspension greater than 20 days or suspension for just cause pending investigation, the grievance may be filed directly at arbitration, with a copy to the BC Public Service Agency and the Deputy Minister of the appropriate ministry, within 30 days of the date on which the dismissal, rejection on probation, or suspension occurred, or within 30 days of the employee receiving such notice.

(b) Within 45 days of receiving a grievance filed directly to arbitration as per (a) above, and prior to setting hearing dates, representatives at arbitration for the parties shall meet to examine the facts, the nature of the grievance and the possibility of any resolution for the dispute.

(c) In the case of a dispute arising from other suspensions, the grievance may commence at Step 2 of the grievance procedure within 30 days of the date on which the suspension occurred, or within 30 days of the employee receiving such notice.

ARTICLE 8 – GRIEVANCES

8.10 Deviation from Grievance Procedure

(c) Where an employee has filed a complaint with the Ombudsman **Ombudsperson** or the Employment Standards Branch, the grievance shall be deemed to be abandoned unless the complaint is withdrawn, in writing, within 45 days of it being filed.

ARTICLE 9 – ARBITRATION

9.2 Assignment of a Single Arbitrator

(a) When a party has requested that a grievance be submitted to an arbitration and either party has requested that a hearing date be set, an arbitrator will be assigned from the mutually agreed upon list of single arbitrators.

(b) Depending upon availability, single arbitrators shall be assigned cases on a rotating basis.

(c) The parties shall agree upon a list of arbitrators which shall be appended to this agreement. An arbitrator may be removed from the list by mutual agreement.

(d) The parties shall endeavour to develop and maintain a list of acceptable arbitrators which is gender balanced.

(e) The parties agree to the following as a pilot project for the term of the ~~19th~~ **20th** Main Agreement:

(1) The parties will schedule four blocks of arbitration dates (“Blocks”) for each year within the term of the ~~19th~~ **20th** Main Agreement. Blocks will be five days long and scheduled by mutual agreement, to facilitate the expedition resolution of grievances scheduled for full hearing (“Cases”). This does not preclude the parties from scheduling additional mutually agreeable hearing dates.

(2) ~~Designated representatives from both parties will meet no later than 90 days prior to the scheduled start of the Block~~ **The Union and the Employer will each appoint a representative who is knowledgeable with the process as a Block Booking Registrar “the Registrars”. Registrars’ meetings**

will be held by mutual agreement to where they will discuss which Cases will be assigned to each Block. The determination of Cases to be scheduled to each Block will be by mutual agreement and must be established no later than 90 days prior to the start of the Block or these timelines may be adjusted by mutual agreement. Terminations will default to 9.2(e), unless one party puts the other on notice that the grievance will proceed under 9.2(b) above.

(3) The parties will agree on an arbitrator, **and a secondary backup arbitrator** to serve as lead block booking arbitrator and case manager ("Lead Arbitrator") within 90 days of the ratification of the ~~19th~~ **20th** Main Agreement. **The parties will only utilize the backup arbitrator to act as Lead Arbitrator by mutual agreement.** The parties agree to fully utilize the scheduled dates in each Block. The parties agree that they will schedule an appropriate number of Cases for each Block with the intent to fill up the days. In anticipation that those Cases are settled or withdrawn prior to the hearing, or mediated or resolved early in the Block, the parties will also schedule no more than two additional Cases that can reasonably be anticipated to last no more than five days.

(4) Cases that had not been identified under (1) and (2) may not be added to the scheduled dates except by mutual agreement.

(5) The parties agree that the initial disclosure of evidence will take place by the party bearing the onus a minimum of 60 days prior to the commencement of the Block to which the Case is assigned, with disclosure by the other party to take place a minimum of 30 days prior to the commencement of the Block. **Prior to the Block and by mutual agreement, the Lead Arbitrator may hold a case management meeting with the parties to review the Cases. Both Registrars must be present for case management meetings.**

(6) ~~The parties agree that an arbitrator, as mutually agreed, shall be appointed to act as Lead Arbitrator under this pilot project and unless otherwise mutually agreed, the~~ **hearings will take place virtually or in locations agreed to by the parties.** The Arbitrator will deliver the award in writing to the parties within 60 days following the conclusion of the arbitration hearing. All awards shall be final and binding upon the parties, but in no event shall the Arbitrator have the power to alter, modify or amend this agreement in any respect.

(7) Any Case assigned to a Block that is not heard within that Block may, by mutual agreement, be assigned to a different arbitrator pursuant to Article 9.2. However, if a Case is commenced during the Block, but the arbitration is not completed, the Arbitrator will retain jurisdiction over that Case and it shall be completed during a subsequent Block.

(8) Unless agreed to by the parties, this provision - Article 9.2(e) will expire at the end of the term of the ~~19th~~ **20th** Main Agreement.

*Note: The pilot project is conditional upon the parties agreeing on the selection of arbitrators and their acceptance of the assignment.

****Note to remain outside of the collective agreement: Within 90 days of ratification, the parties will convene to review and renew the Memorandum of Agreement Re the Block Booking Process, in keeping with the changes made during bargaining of the 20th Main Agreement.***

ARTICLE 9 – ARBITRATION

9.9 Expedited Arbitration

(a) The parties shall meet every four months or as often as required to review outstanding grievances filed at arbitration, to determine by mutual agreement those grievances suitable for this process, and shall set dates and locations for hearings of groups of grievances considered suitable for expedited arbitration.

(b) All grievances shall be considered suitable for and resolved by expedited arbitration except grievances in the nature of:

- (1) dismissals;
- (2) rejection on probation;
- (3) suspensions in excess of 20 workdays;
- (4) policy grievances;
- (5) grievances requiring substantial interpretation of a provision of the Main or a component agreement;
- (6) grievances relating to Article 14 - Hours of Work of the Main Agreement;
- (7) grievances requiring presentation of extrinsic evidence;
- (8) grievances where a party intends to raise a preliminary objection;
- (9) demotions; or
- (10) grievances that are related to a matter already filed at formal arbitration;
- (11) grievances that are agreed to be heard at the Rapid Grievance Tribunal.**

By mutual agreement, a grievance falling into any of these categories may be placed into the expedited arbitration process.

(c) – (i) MCL

ARTICLE 12 – SERVICE CAREER POLICY

12.1 Postings

(a) Vacancies of a regular nature that are to be filled, for positions in the bargaining unit, shall be posted within 30 days. Such postings shall be throughout the Public Service unless limited by the Head of the BC Public Service Agency or their designate or as specified in the Memorandum of Understanding 30 – Priority Placement and Employment Equity. **The posting language may also specify if the position can be done remotely. The posting language must state if the position is eligible to be designated as an**

"approved remote location" as specified in Memorandum of Understanding #XX – Re: Dedicated Remote Positions

(b) Eligibility lists may be established through the posting process and used to fill vacancies. When eligibility lists are established it shall be stated on the posting. Eligibility lists shall be in effect for a maximum of 18 months from the establishment of the list. **Once established an eligibility list may not be cancelled.**

(c)-(i) MCL

ARTICLE 15 - SHIFT WORK

15.1 Definition of Shifts and Shift Premiums

(a) Identification of Shifts:

- (1) day shift - all hours worked on any shift which starts between 4:30 a.m. and 1:59 p.m. inclusive;
- (2) afternoon shift - all hours worked on any shift which starts between 2:00 p.m. and 8:59 p.m. inclusive;
- (3) night shift - all hours worked on any shift which starts between 9:00 p.m. and 4:29 a.m. inclusive.

(b) Shift Premium (full-time employees):

Effective dates	Afternoon shift	Night Shift
April 1, 2022	\$1.46	\$1.56
April 1, 2023	\$1.56	\$1.67
April 1, 2024	TBD	TBD

<u>Effective dates</u>	<u>Afternoon shift</u>	<u>Night Shift</u>
<u>April 1, 2025</u>	<u>April 1, 2024 rates increased by GWI</u>	
<u>April 1, 2026</u>	<u>April 1, 2025 rates increased by GWI</u>	
<u>April 1, 2027</u>	<u>April 1, 2026 rates increased by GWI</u>	
<u>April 1, 2028</u>	<u>April 1, 2027 rates increased by GWI</u>	

16.7 Overtime Meal Allowance

(a) When an employee is required to work in excess of two and one-half hours overtime immediately before or after completion of their scheduled daily hours, they shall be provided with a meal or shall be reimbursed with an overtime meal allowance, and a meal break of one-half hour with pay will be given.

The overtime meal allowance shall be ~~\$15.91 effective April 1, 2022; \$16.98 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

(b) If the employee continues to work overtime beyond three hours, a further meal or allowance and meal break as above shall be provided upon completion of an additional four hours worked, and upon the completion of every three hours worked thereafter.

(c) When an employee is not on standby and is called out for overtime prior to their scheduled shift and it was not possible to give sufficient notice* to permit preparation of the meal normally taken to work, the Employer shall provide the meal or pay the overtime meal allowance.

(d) In the case of an employee called out on overtime to work on a rest day, this clause will apply only to hours worked outside their regular shift times for a normal workday.

(e) Where any of the meals provided under (a), (b), (c) or (d) above duplicates a meal to which an employee is entitled because of travel status or field allowance, then the employee shall receive only one benefit for each meal.

**Sufficient notice means one-half hour to permit preparation of the meal normally taken to work.*

ARTICLE 20 – SPECIAL AND OTHER LEAVE

20.3 Family Illness

(a) In the case of illness or hospitalization of the employee's spouse or a dependent child of an employee, and when no one at the employee's home other than the employee can provide for their needs, the employee shall be entitled, after notifying their supervisor, to use up to a maximum of two days' paid leave at any one time for this purpose. **Effective January 1, 2026, an employee shall be entitled to use a maximum of three days paid leave at any one time for this purpose.**

(b) The Employer may request a report from a qualified medical practitioner when it appears that a pattern of consistent absence is developing.

(c) For the purpose of this clause, "child" includes a child over the age of 18 residing in the employee's household who is permanently dependent on the employee due to mental or physical impairment.

ARTICLE 20 – SPECIAL AND OTHER LEAVE

20.11 Leave for Medical and Dental Care

MoveUP/E&OE/MOS 2025

(a) Where it is not possible to schedule medical and/or dental appointments or appointments with a registered midwife outside regularly scheduled working hours, reasonable time off for such appointments for employees or for dependent children shall be permitted, but where any such absence exceeds two hours, the full-time absence shall be charged to the entitlement described in Clause 20.12. "*Medical, dental and/or registered midwife appointments*" include only those services covered by the BC Medical Services Plan, the Public Service Dental Plan, the Extended Health Benefit Plan and assessment appointments with the Employee and Family Assistance Program.

(b) Employees in areas where adequate medical and dental facilities are not available shall be allowed to deduct from their credit described in Clause 20.12 the necessary time including travel and treatment time up to a maximum of three days to receive medical and dental care at the nearest medical centre for the employee, their spouse, dependent child and a dependent parent permanently residing in the employee's household or with whom the employee permanently resides. The Employer may request a certificate of a qualified medical or dental practitioner, as the case may be, stating that treatment could not be provided by facilities or services available at the employee's place of residence. An employee on leave provided by this clause shall be entitled to reimbursement of reasonable receipted expenses for accommodation and travel to a maximum of ~~\$551.20 effective April 1, 2022, \$588.41 effective April 1, 2023, and TBD~~ **\$606.06** effective April 1, 2024; **effective April 1, 2026, the rate shall be \$700** per calendar year.

(c) An employee otherwise entitled to leave pursuant to (b) above who chooses to travel on a vacation day or a day of rest or to remain at work and not accompany their spouse, dependent child or dependent parent, as provided in (b) above, may claim the reimbursement of receipted expenses under the conditions stipulated.

(d) Employees in receipt of STIP benefits who would otherwise qualify for leave under this clause shall be eligible to claim expenses in the manner described above.

(e) Where leave pursuant to (b) above would be reduced, the Employer may approve airfare payment for the employee in lieu of the ~~\$551.20 effective April 1, 2022, \$588.41 effective April 1, 2026, and TBD~~ **\$606.06** effective April 1, 2024 reimbursement; **effective April 1, 2026, the rate shall be \$700** once per calendar year.

(f) For the purpose of this clause, "child" includes a child over the age of 18 residing in the employee's household who is permanently dependent on the employee due to mental or physical impairment.

ARTICLE 20 – SPECIAL AND OTHER LEAVE

20.21 Supplemental Leave

~~Effective April 1, 2022, a~~ An employee shall be entitled to two days of supplemental leave at their regular rate of pay per calendar year. These days are subject to operational requirements and cannot be attached to other leaves of absence, including vacation and paid statutory holidays. This may be used in one-half shift increments. **Effective April 1, 2026, these days may be attached to paid statutory holidays.**

ARTICLE 22 – OCCUPATIONAL HEALTH AND SAFETY

22.3 Joint Occupational Health and Safety Committees

(c)(1) Each ministry shall initiate and maintain, at the regular place of employment, Local Occupational Health and Safety Committees where there is:

- (i) a workforce of 10 or more workers in an operation or work area classified as "A" {high} or "B" {medium ~~moderate~~} hazard by Schedule 3-A Minimum Levels of First Aid in the Occupational Health and Safety Regulation ~~WCB First Aid Regulations~~, or
- (ii) a workforce of 25 or more workers in an operation or work area classified as "C" {low} hazard by Schedule 3-A Minimum Levels of First Aid in the Occupational Health and Safety Regulation ~~WCB First Aid Regulations~~.

ARTICLE 22 – OCCUPATIONAL HEALTH AND SAFETY

22.5 Investigation of Incidents/Accidents

- (a) Pursuant to ~~Part 3, Division 10, Accident Reporting and Investigation~~ Part 2 Division 10 – Employer Accident Reporting, Investigation and Related Prohibitions of the ~~Workers Compensation Act~~ Workers Compensation Act, all incidents/accidents shall be investigated jointly by at least one representative designated by the BCGEU and one management representative.
- (b) Reports shall be submitted on a PSC 38 (incidents/accident investigation form) which may be amended by mutual agreement and copies sent to:
 - (1) Workers' Compensation Board
 - (2) Occupational Health and Safety Committee
 - (3) Employer Designate(s)
 - (4) BCGEU Designate(s).

ARTICLE 22 – OCCUPATIONAL HEALTH AND SAFETY

22.6 Occupational First Aid Requirements and Courses

(a) The Union and the Employer agree that First Aid Regulations made pursuant to the Occupational Health and Safety Regulations, Occupational First Aid, Section 3.14 – 3.21 shall be fully complied with.

(b) Where the Employer requires an employee to perform first aid duties in addition to the normal requirements of the job, the cost of obtaining and renewing the ~~Occupational~~ First Aid Certificate shall be borne by the Employer, and leave to take the necessary courses shall be granted with pay.

(c) Employees required to possess ~~a~~ **an Occupational** First Aid Certificate and who are designated to act as the First Aid Attendant in addition to their normal job responsibilities shall receive the following allowance on the basis of the level of certificate which they hold:

- Level 3 Occupational First Aid Certificate
 - Effective April 1, 2022~~5~~: ~~\$64.01~~ **72.49** per biweekly period
 - ~~Effective April 1, 2023: \$68.33 per biweekly period~~
 - ~~Effective April 1, 2024: TBD per biweekly period~~
- **Advanced First Aid Certificate**
 - **Effective April 1, 2025: \$72.49 per biweekly period**
- Level 2 Occupational First Aid Certificate
 - Effective April 1, 2022~~5~~: ~~\$49.65~~ **54.59** per biweekly period
 - ~~Effective April 1, 2023: \$53.00 per biweekly period~~
 - ~~Effective April 1, 2024: TBD per biweekly period~~
- **Intermediate First Aid Certificate**
 - **Effective April 1, 2025: \$54.59 per biweekly period**

The allowance shall be prorated for partial months. For the purpose of calculating the hourly rate, the biweekly allowance shall be divided by 70; however, no employee shall receive more than the monthly allowance for the level of certificate which they hold.

Employees designated to act as the ~~Occupational~~ First Aid Attendant in addition to their normal job duties will receive their full monthly allowance while on approved leave with pay of up to 10 days or while on vacation leave with pay.

Where the Employer has an additional requirement for a first aid attendant on a temporary basis, then provided the employee acts as the First Aid Attendant for a minimum of 10 workdays in any month, they shall receive the full monthly allowance.

- (d) (1) In order to meet the requirements of (a) above, the Employer will designate in order of seniority from among those regular employees holding an appropriate ~~Occupational~~ First Aid Certificate to act as the First Aid Attendant in addition to the normal requirements of the job.

(2) Where no employee within the work unit possesses an ~~Occupational~~ First Aid Certificate, the opportunity to obtain a certificate will be offered to regular employees within the work unit in order of service seniority, provided the employee can meet the requirements of the WCB Regulations to undertake the training in order to obtain an ~~Occupational~~ First Aid Certificate.

(3) In the event that the procedures outlined above do not meet the requirements of (a), the Union will assist the Employer to meet their obligations by approaching regular employees in the work unit on behalf of the Employer.

(4) Where (d)(1), (2) and (3) do not meet, within a reasonable period of time, the requirements of the Employer to achieve (a) above, the Employer may:

- (i) recall a qualified auxiliary employee in order of seniority from those holding the appropriate ~~Occupational~~ First Aid Certificate, and/or
- (ii) include an ~~Occupational~~ First Aid Certificate as a desirable qualification on a posting pursuant to Clause 12.1.

(5) Failing (4) above, the Employer may require the most senior regular employee within the work unit who can meet the requirements of the WCB Regulations to undertake occupational first aid training in order to obtain a certificate.

ARTICLE 22 – OCCUPATIONAL HEALTH AND SAFETY

22.9 Video Display Terminals

DELETE

To reside outside of the Main Agreement

MEMORANDUM OF AGREEMENT

RE: Article 22.9 – Video Display Terminals

During the negotiations for the 20th Main Agreement, the Parties agreed to remove Article 22.9 of the Main Agreement, Video Display Terminals, and legacy the language to employees who work for the Ministry of Social Development and Poverty Reduction whose headquarters correspond to the following locations:

1. 478 St. Paul Street, Kamloops
2. 631 Seymour Street, Kamloops

3. 726B Sydney Avenue, Kamloops

Specifically, the previous language of 22.9 was as follows:

- (a) Employees who are required to operate VDTs on a continuous basis shall be entitled to two additional 10-minute rest breaks per workday to be scheduled by agreement at the local level.**
- (b) Employees required to continuously operate VDTs for three and one-half consecutive hours or longer but less than their full shift shall be reassigned to alternate work duties for one 10-minute period. Where alternate work duties are not available, employees shall receive a 10-minute rest break.**

No other employees, positions or locations within the BC Public Service will be subject to these provisions.

This MOA remains in effect in for as long as the three work locations identified above remain in operation.

ARTICLE 22 – OCCUPATIONAL HEALTH AND SAFETY

22.15 Training Program for Occupational Health and Safety Committee Members

- (a) Training of Provincial Joint Occupational Health and Safety Committee members will be undertaken using the training program jointly developed by the Provincial Joint Committee. Amendment of course material when required shall be by mutual agreement only. **The Employer agrees to create educational materials for managers and supervisors on the purpose of the joint training program and importance of facilitators' participation in meeting the joint program's objectives.**
- (b) The program will provide two days training for all OH&S Committee members and designated safety representatives pursuant to Clause 22.3(c)(2) within six months of appointment. The Provincial Joint Occupational Health and Safety Committee will determine the priority areas for scheduling of training.
- (c) The program shall, at a minimum, reflect the requirements and standards for a health and safety program recommended by the Workers' Compensation Board.
- (d) The training shall be carried out jointly by teams of qualified union and employer representatives, and will utilize various other appropriate instructional formats as may be agreed. Instructors shall receive appropriate training, as agreed to by the parties, in occupational health and safety and instructional techniques.
- (e) Union instructors shall be selected by the Union.

(f) Union instructors, safety committee members and designated safety representatives attending or delivering the training including necessary travel time will be on leave of absence without loss of basic pay and shall be reimbursed for expenses by the Employer.

**Note: adding titles*

ARTICLE 23 – TECHNOLOGICAL CHANGE

23.1 Mutual Recognition

MCL

23.2 Notice of Technological Change

MCL

23.3 Technological Change Definition

MCL

23.4 Technological Change Short Notice

MCL

23.5 Sharing of Information

MCL

ARTICLE 25 – HEALTH AND WELFARE

25.2 Extended Health Care Plan

The Employer shall pay the monthly premium for regular employees entitled to coverage under a mutually acceptable extended health care plan.

In relation to the above clause:

(1) Counselling Services

- Effective January 1, 2026, increase the annual combined maximum for counselling services under the extended health plan from \$750 per person to \$1000 per person.

- Currently, the combined maximum includes Registered Clinical Psychologists, Registered Clinical Counsellors and Recognized Social Workers. Effective January 1, 2026, the combined maximum will also include the addition of Canadian Certified Counsellor, Psychoeducator, Marriage and Family Therapist, Psychoanalyst, Sexologist, Registered Psychotherapist, Licensed Psychotherapist, Psychotherapist, Counselling Psychotherapist, Certified Clinical Counsellor, Registered Counsellor, Registered Clinical Counsellor, Registered Professional Counsellor, Registered Therapeutic Counsellor, Licensed Counsellor, Clinical Counsellor, Clinical Therapist, Certified Counsellor, Counselling Therapist and Mental Health Therapist. This will also include counselling services provided by professionals who hold active registration with the British Columbia Association of Clinical Counsellors (BCACC), the Canadian Counselling and Psychotherapy Association (CCPA), a regulatory college affiliated with the Canadian Professional Counsellors Association (CPCA), or any other recognized licensing body in a Canadian province or territory.

(2) Gender Affirmation Coverage

- Effective January 1, 2026, add Gender Affirmation coverage with a lifetime maximum of \$15,000 per person.

(3) Diabetic Supplies

- For Diabetic Supplies, add Flash Glucose Monitor and Sensors effective January 1, 2026. In order for plan members to be eligible for coverage, they must use insulin to manage their blood sugar levels.

(4) Food Substitutes/Tube Feeding

- Effective January 1, 2026, add Food Substitutes/Tube Feeding.

(5) Speech Aids

- Effective January 1, 2026, add Speech Aids.

(6) Medical Supplies

- Effective January 1, 2026, reimburse 100% of the reasonable and customary charges for wheelchair and ostomy supplies.

(7) Drug Coverage

- The Employer will encourage all employees to register for Fair Pharmacare coverage through a variety of communications methods, such as the benefits materials on the employer website and in any offered webinars for the health benefits programs.

(8) Vision Care

- Effective January 1, 2026, increase vision care from \$250 to \$400 every 24 months for adults and from \$250 to \$300 every 12 months for dependent children.

**Note: adding title*

ARTICLE 26 – WORK CLOTHING

26.1 **Provision and Maintenance of Work Clothing**

Matters pertaining to the provision and maintenance of work clothing shall be in accordance with the terms of the Component Agreements, except those matters provided for in Article 26 herein.

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.3 Rates of Pay

- (a) Employees shall be paid in accordance with the rates of pay negotiated by the parties to this agreement, subject to Clause 27. 7 and Appendix 3E - Rates of Pay for Apprentices.
- (b) The distribution of pay shall be done in such a manner that the details of the pay shall be confidential.
- (c) Increase rates of pay for classifications listed in Appendix 3 starting the first pay period after the following dates:

Date	Percentage Increase
April 1, 2022 2025	Increase rates of pay by 3%. Increase rates of pay by an average of 4%. The average increase of 4% consists of a 25¢ per hour increase and a 3.24% GWI to be applied across all rates of pay. The value of the flat 25¢ per hour equals an approximate increase of 0.76% for the average BCGEU member.
April 1, 2023 2026	Increase rates of pay by 3%. Increase rates of pay by the annualized average of BC CPI over twelve months starting on March 1, 2022 to a minimum of 5.5% and a maximum of 6.75%.
April 1, 2024 2027	Increase rates of pay by 3%. Increase rates of pay by the annualized average of BC CPI over twelve months starting on March 1, 2023 to a minimum of 2% and a maximum of 3%.
April 1, 2028	Increase rates of pay by 3%.

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.8 Vehicle Allowances

Vehicle allowances for all distances travelled on government business shall be paid to employees required to use their own vehicles in the performance of their duties. The allowance shall cover distance to and from the employee's place of residence up to a total maximum of 32 kilometers, only when the employee is required to have their vehicle at work for use in the performance of their duties.

Vehicle allowance shall be 57¢ per km, effective April 1, 2022, 61¢ effective April 1, 2023 and TBD effective April 1, 2024 **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.9 Meal Allowances

Employees on travel status away from their headquarters shall be entitled to a meal allowance for the time spent away from headquarters.

Meal	April 1, 2022	April 1, 2023	April 1, 2024	April
Breakfast	\$13.26	\$14.16	TBD	
Lunch	\$15.34	\$16.38	TBD	
Dinner	\$26.52	\$28.31	TBD	

Meal	April 1, 2025	April 1, 2026	April 1, 2027	April 1, 2028
Breakfast	April 1, 2024 rate increased by GWI	April 1, 2025 rate increased by GWI	April 1, 2026 rate increased by GWI	April 1, 2027 rate increased by GWI
Lunch	April 1, 2024 rate increased by GWI	April 1, 2025 rate increased by GWI	April 1, 2026 rate increased by GWI	April 1, 2027 rate increased by GWI
Dinner	April 1, 2024 rate increased by GWI	April 1, 2025 rate increased by GWI	April 1, 2026 rate increased by GWI	April 1, 2027 rate increased by GWI

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.10 Isolation Travel Allowance

- (a) An isolation travel allowance of ~~\$6.76 effective April 1, 2022; \$7.22 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** per point per month shall be paid to each eligible employee. Equivalent biweekly rates will be as shown in Appendix 8 - Biweekly Pay Conversion Schedule Isolation Travel Allowance.
- (b) The basis of payment shall be in accordance with the formula devised by the Joint Committee on Isolation Travel Allowances and the revised point-ratings resulting from the general review carried out by the Committee based on the 1976 census, until March 31, 1983 after which time payment shall be in accordance with agreement reached by the Principals in (c) below.
- (c) The Joint Committee on Isolation Travel Allowances will make a general review of the point ratings assigned each location based on the 1991 census and submit its report to the Principals not later than March 31, 1995.
- (d) Current employees in locations, the point ratings of which are reduced below 11 points as the result of the above review or, as a result of the review pursuant to (e) below, will continue to receive, until March 31, 1995, the amount of travel allowance they were receiving prior to the review. Effective April 1, 1995 and each April 1 thereafter, the amount of travel allowance will be reduced by 20% of that amount while they remain employed at that location.
- (e) The Committee established in (c) above shall review alternatives to the existing isolation travel allowance and make recommendations to the Bargaining Principals that ensure that issues related to recruitment, retention and isolation are reviewed within funding available.
- (f) Employees representing the Union on this joint committee shall be on leave of absence without loss of basic pay for time spent on this committee.
-

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.23 Special Vacation Transportation Subsidy for Severely Isolated Locations

- (a) Employees at severely isolated locations with access to major centres only possible by water or extended travel over roads which are unpaved, shall receive once in each calendar year, a special subsidy to assist them with transportation expenses for themselves and their dependents.
- (b) This subsidy shall be in the amount of ~~\$520 effective April 1, 2022; \$555.10 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028**, and is only payable in the event that the employee actually leaves the isolated area.

(c) For the purposes of definition under (a) above the specific locations not exceeding 50, on the Isolation Index have been identified by the Joint Committee on Isolation Allowances and are listed in Appendix 6. These locations will not be changed without mutual agreement.

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.24 Child Care Expenses

(a) Where an employee is requested or required by the Employer to attend:

- (1) Employer endorsed education, training and career development activities, or
- (2) Employer sponsored activities,

which are not included in the normal duties of the employee's job, and are outside their headquarters or geographic location, such that the employee incurs additional child care expenses, the employee shall be reimbursed for the additional child care expense up to \$70 **increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** per day upon production of a receipt.

(b) Where an employee, who is not on leave of absence, attends a course approved by the Employer outside the employee's normal scheduled workday such that the employee incurs additional child care expenses, the employee shall be reimbursed for the additional child care expense up to \$30 per day upon production of a receipt. This reimbursement shall not exceed 15 days per calendar year.

(c) Reimbursement in (a) or (b) shall only apply where no one else at the employee's home can provide the child care.

(d) The receipt shall be a signed statement including the date(s), the hourly rate charged, the hours of care provided and shall identify the caregiver/agency.

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.25 Lodging Allowance

Employees on travel status who stay in non-commercial lodging shall be entitled to claim:

(a) ~~Effective April 1, 2022: \$34.93; and,~~

(b) ~~Effective April 1, 2023: \$37.29; and,~~

(c) ~~Effective April 1, 2024: TBD~~

(a) April 1, 2025 **the April 1, 2024 rate increased by GWI**

(b) April 1, 2026 **the April 1, 2025 rate increased by GWI**

(c) April 1, 2027 **the April 1, 2026 rate increased by GWI**

(d) April 1, 2028 **the April 1, 2027 rate increased by GWI**

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per day except where the lodging is supplied by the Employer. An employee submitting a lodging allowance claim shall not be entitled to reimbursement for commercial lodging costs for the same period.

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.26 Qualified Registered Professional Fees

Regular employees who have completed their probationary period and who are required as a condition of employment to maintain membership in an association as a qualified registered professional shall be reimbursed in full for annual membership or licensing fees (not to exceed **2024** fee schedule).

- **Effective April 1, 2025, the maximum will** not exceed **202124** fee schedule;
- **Effective April 1, 2026, the maximum amount will be the 2024 fee schedule plus an additional 4%;**
- **Effective April 1, 2027, the maximum amount will be the 2026 reimbursable rate increased by an additional 4%;**
- **Effective April 1, 2028, the maximum amount will be the 2027 reimbursable rate increased by an additional 4%.**

This clause applies to the following:

- Certified General Accountants
- Certified Management Accountants
- Chartered Professional Accountants
- Chartered Accountants
- Registered Forest Technologists
- Registered Professional Biologists
- Registered Professional Planners
- Registered Dietitians
- Property Negotiators
- Qualified Exercise Professionals
- Clinical Exercise Physiologists
- Registered Pharmacy Technicians

ARTICLE 27 – PAYMENT OF WAGES AND ALLOWANCES

27.XX Minimum Wage Plus Dues

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Notwithstanding the wage schedule in this agreement, the minimum hourly pay rate for any position in the bargaining unit will be the current BC Minimum Wage plus 1.9%, rounded up to the nearest penny.

ARTICLE 29 – MINISTRY JOINT COMMITTEE

29.4 Responsibilities of Committee

- (a) The Committee shall not have jurisdiction over wages or any other matter of collective bargaining, including the administration of this agreement. The Committee shall not supersede the activities of any other committee of the Union or of the Employer and shall not have the power to bind either the Union or its members or the Employer to any decisions or conclusions reached in their discussions.
- (b) In the event of any substantial re-organization in a ministry which results in redundancy, relocation or reclassification, the Committee shall meet in order for the Employer to consult with the Union.
- (c) Following a consultative and collaborative leadership approach, the Committee shall also have the power to make recommendations to the Union and the Employer on the following general matters:
 - (1) reviewing matters, other than grievances, relating to the maintenance of good relations between the parties;
 - (2) discussing issues relating to the workplace that affect the parties or any employee bound by this agreement;
 - (3) correcting conditions causing grievances and misunderstanding;
 - (4) reviewing ways in which the Employer can reduce workplace consumption of non renewable and renewable resources, increase the amount of material that is reused in the workplace and implement recycling programs;
 - (5) reviewing matters unresolved and referred to it by a Local Occupational Health and Safety Committee except where that local committee is comprised of representatives of more than one ministry. Upon receipt of such a referral the Ministry Committee Co-Chairpersons shall notify the Provincial Joint Occupational Health and Safety Committee Co-Chairpersons. The committee may make recommendations regarding health and safety issues to the Provincial Joint Occupational Health and Safety Committee. Those portions of ministry Joint Committee and Subcommittee minutes and/or other record of proceedings, which address occupational health and safety issues, shall be forwarded to the Co-Chairpersons of the Provincial Joint Occupational Health and Safety Committee, or their designates;
 - (6) reviewing organizational health issues relating to the recruitment and retention of employees **and discussing hiring updates**;
 - (7) making recommendations on the criteria for the approval of applications pursuant to Clause 20.8(e);

(8) discussing opportunities to improve service to the public, which may include ministry contracting practices;

(9) discussing ministry specific pilot projects being considered for provincial roll-outs;

(10) discussing changes being considered to current special programs and positions within the ministry.

ARTICLE 31 – AUXILIARY EMPLOYEES

31.7 Health and Welfare

In lieu of health and welfare benefits, auxiliary employees shall receive compensation of:

Date	Rate per hour	Max biweekly
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April 1, 2022	82¢	\$57.40
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April 1, 2023	88¢	\$61.60
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April 1, 2024	TBD	TBD
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April 1, 2025	the April 1, 2024 rates increased by GWI	
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April 1, 2026	the April 1, 2025 rates increased by GWI	
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April 1, 2027	the April 1, 2026 rates increased by GWI	
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April 1, 2028	the April 1, 2027 rates increased by GWI	
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ARTICLE 31 – AUXILIARY EMPLOYEES

31.8 Auxiliary Illness and Injury Leave and Weekly Indemnity

...

(f) The benefits described in this clause shall not be available to an auxiliary employee whose illness, injury, or personal circumstances may be described by any one of the following conditions:

(1) who is not under the care of a licensed physician;

(2) whose illness is occupational and is covered by Workers' Compensation;

(3) ~~whose illness is intentionally self-inflicted;~~

(4)(3) whose illness results from service in the Armed Forces;

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- (5)(4) whose illness results from riots, wars or participation in disorderly conduct;
- (6)(5) who is ill during a period of paid vacation;
- (7)(6) whose illness is sustained while they are committing a criminal offence;
- (8)(7) who is engaged in an employment for a wage or profit;
- (9)(8) who is ill during a strike or lockout at the place where they were employed if that illness commences during the strike or lockout;
- (10)(9) who is serving a prison sentence;
- (11)(10) who would not be entitled to benefits payable pursuant to Part I of the Employment Insurance Act because they are not in Canada
- (12)(11) who is absent from work because of plastic surgery performed solely for cosmetic purposes except where the need for surgery is attributable to an illness or injury.
- (g) MCL
-

ARTICLE 32 – GENERAL CONDITIONS

32.2 Commuting

- (a) The Employer shall actively participate in environmentally sustainable employee transit programs which encourage employees to use public transit, cycling and/or to carpool to their worksites.
- (b) The Employer and the Union agree that there shall be no change in parking regulations and policies except by mutual agreement of the parties.
- (c) A joint employer/union parking committee shall be established to study the matter of employee parking **and commuting** and make recommendations to the parties.
-

ARTICLE 32 – GENERAL CONDITIONS

32.8 Copies of Agreements

- (a) The Union and the Employer desire every employee to be familiar with the provisions of this agreement, and their rights and obligations under it. For this reason, the Union and the Employer will make the **online** agreement available to all employees. **Any printing costs must be mutually agreed to by**
- MoveUP/E&OE/MOS 2025

the Bargaining Principals in advance and those costs The cost of such printing and distribution shall be borne equally by the parties.

Where required, the Union shall distribute the collective agreements to its members and the Employer shall reimburse the Union for 50% of the distribution costs.

(b) The cover of the agreement shall read as follows:

~~NINETEENTH~~ **TWENTIETH** MAIN PUBLIC SERVICE AGREEMENT
between the
GOVERNMENT OF THE
PROVINCE OF BRITISH COLUMBIA
represented by the
BC PUBLIC SERVICE AGENCY
and the
B.C. GENERAL
EMPLOYEES' UNION (BCGEU)

Effective from April 1, 2022~~5~~ to March 31, 2025~~9~~

(c) **If printed**, All agreements shall be printed in a union shop and shall bear a recognized union label.

(d) The Employer will **make available the online** provide copies of the printed main and relevant component agreement within 90 days of **finalizing the camera ready draft**, the signing of the relevant component agreement, providing the Main Agreement is already signed. Ninety days may be waived in extenuating circumstances.

*Note: dates to reflect the agreed-to term of the agreement

ARTICLE 32 – GENERAL CONDITIONS

32.11 Private Vehicle Damage

Where an employee's vehicle is damaged by a person in the care or custody of the Employer, or as a direct result of the employee being employed by the Employer, the Employer shall reimburse the employee the lesser of actual vehicle damage repair costs, or the cost of any deductible portion of insurance coverage on that vehicle up to a maximum of \$661.44 effective April 1, 2022; \$706.09 effective April 1, 2023; and TBD effective April 1, 2024 **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

ARTICLE 32 – GENERAL CONDITIONS

32.12 Personal Property Damage

- (a) Where an employee's personal possession(s) is/are damaged by a person in the care or custody of the Employer, the Employer shall pay, up to a maximum of ~~\$174.38 effective April 1, 2022; \$186.15 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028**, the replacement costs or personal deductible insurance, provided such personal possessions are of a type suitable for use while on duty. This provision shall not apply to articles of clothing.
- (b) On request, and with reasonable notice, the Employer shall provide a secure space for employees to store such personal possessions, wallets and/or purses when the employees are at their worksite.
-

ARTICLE 33 – EMPLOYMENT EQUITY

- (a) The government of British Columbia is committed to providing a work environment free of any form of adverse discrimination.
- (b) The parties hereto subscribe to the principles of the Human Rights Code of British Columbia.
- (c) The parties recognize the need to implement an employment equity program **Reconciliation, Equity, Diversity and Inclusion (REDI) programs** in the Public Service.
- (d) The goals of employment equity **the REDI programs** are to create a workforce which, at all levels, is representative of the diverse population it serves; and to ensure that individuals are not denied employment, advancement or training opportunities within the Public Service for reasons unrelated to ability to do the job.
- (e) Regulations, policies and procedures with respect to recruitment, selection and promotion shall facilitate:
- (1) opportunities for external recruitment and internal advancement to develop a public service that is representative of the diversity of the people of British Columbia; and,
 - (2) the long-term career development and advancement of employees appointed under the Public Service Act.
- (f) There shall be a union/management steering committee on employment equity (UMSCEE). The BCGEU will be a member of UMSCEE ~~in accordance with the Public Service Directive on Employment Equity Section 1.7 dated February 1, 1994.~~
- (g) The Steering Committee is authorized to:
- MoveUP/E&OE/MOS 2025

- (1) advise the Employer on employment equity issues and initiatives;
- (2) review ministry action plans ~~to ensure they comply with the mandatory procedures and are consistent with government-wide employment equity goals;~~
- (3) monitor progress of ministry action plans;
- (4) ensure that ~~a~~ **an annual** government-wide progress report is provided to the Head of the BC Public Service Agency and the Union; and,
- (5) to review best practices to support workers with disabilities and review systemic barriers to employment affecting workers with disabilities.;

(6) review and advise on ministry action plans to increase the representation number of Indigenous and racialized employees.

- (h) Employees representing the Union on this steering committee shall be on leave of absence without loss of basic pay for time on this committee.

ARTICLE 34 – SPECIAL EMPLOYMENT PROGRAMS

34.1 Public Service Employment Program

- (a) The objectives of the Public Service Employment Program are:

- (1) to provide a training program leading to long-term employment for persons with disabilities and disadvantaged persons;
- (2) to increase awareness among employers of the value of hiring persons with disabilities and disadvantaged persons;
- (3) to increase the personal development and work skills of persons with disabilities and disadvantaged persons;
- (4) to encourage the employment of persons with disabilities and disadvantaged persons in the Public Service.

The purpose of the program is to provide training for employment in the Public Service for those clients of the Employment Program for Persons with Disabilities (EPPD), Ministry of ~~Employment and Income Assistance~~ **Social Development and Poverty Reduction, or the Ministry the EPPD is associated with**, who experience difficulty in competing in the labour market; to provide training and encourage the development of skills which will assist those clients to overcome such difficulty and so become active participants in the labour force.

Before placement in the provincial government under this program, each person must be a registered client of the Employment Program for Persons with Disabilities (EPPD), Ministry of ~~Employment and~~ MoveUP/E&OE/MOS 2025

Income Assistance **Social Development and Poverty Reduction, or the Ministry the EPPD is associated with**, and must have received a job readiness assessment. Only those clients assessed as not job-ready will be eligible under this program.

Each position will be designed with a training outline and will indicate a proposed time by which training will be completed.

ARTICLE 34 – SPECIAL EMPLOYMENT PROGRAMS

34.3 **Student Youth** Employment Program

The purpose is to establish the salary and working conditions for students hired by the Employer under the youth **student** employment programs, including environmental youth **student** teams.

ARTICLE 34 – SPECIAL EMPLOYMENT PROGRAMS

34.4 Indigenous Youth Internship Program

The Indigenous Youth Internship Program provides opportunities for Indigenous youth to contribute and improve relationship-building between Indigenous communities/organizations and the Provincial Government. This encourages Indigenous youth **to grow their careers within** consider the BC Public Service or Indigenous organizations as a place to pursue a rewarding career.

(a) Interns employed under the Indigenous Youth Internship Program (IYIP) shall be paid in accordance with Appendix 3F.

(b) Notwithstanding Clause 31.5(d), IYIP graduates will be considered to have in-service status for the sole purpose of applying on competitions only for a period of two years after the completion of their internship. Existing participants, as of April 1, 2019, shall retain in-service status for a period of five years.

(c) Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than two years. For existing participants as of April 1, 2019, the gap between the end date of the program and the closing date of the competition shall be less than five years.

(d) An Indigenous person who is currently employed as a regular employee who has completed probation within the BC Public Service may apply for the Program. If accepted to the Program, they shall be approved to participate on a temporary assignment and they will retain their regular status. Upon completion of the Program, they will return to their base or an equivalent position.

ARTICLE 34 – SPECIAL EMPLOYMENT PROGRAMS

34.6 Work-Able Graduate Internship Accessible Employment Program

The parties agree to establish an ~~internship~~ **employment** program for individuals who self-identify as a person with a disability to support the recruitment and retention of people with disabilities in order to leverage a diverse and inclusive workforce.

- (a) Program terms are ~~up to 12~~ **24** months in duration.
 - (b) ~~Interns~~ **Employees in this program** will be considered auxiliary employees hired under the Main Agreement. They will be paid in accordance with Appendix 3F - Public Service Internship Program (Grid ~~13~~ **15**).
 - (c) The program is open to recent (within three years) post-secondary graduates who self identify as a person with a disability seeking to develop job specific skills and expertise while integrating post secondary education.
 - (d) Work tasks will be temporary and distinct from day to day duties of a classified position. No ~~interns~~ **persons** will be hired under this program to perform work previously done by an employee on layoff or for which an employee on layoff has a right of recall.
 - (e) Notwithstanding Clause 31.5(d), ~~interns~~ **persons** hired under this **employment** program will be considered to have in service status for the sole purpose of applying on competitions beginning ~~eight~~ **twenty** weeks prior to the end of the ~~internship~~ **program** and extending to a period of ~~one~~ **two** years after successful completion of the ~~internship~~ **program**.
 - (f) Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the employee has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than ~~one~~ **two** years.
-

ARTICLE 37 – TERM OF AGREEMENT

37.1 Duration

This agreement shall be binding and remain in effect to midnight March 31, ~~2025~~ **2029**.

37.2 Notice to Bargain

- (a) This agreement may be opened for collective bargaining by either party giving written notice to the other party on or after January 1, ~~2025~~ **2029**, but in any event not later than midnight, January 31, ~~2025~~ **2029**.

(b) Where no notice is given by either party prior to January 31, ~~2025~~ **2029**, both parties shall be deemed to have given notice under this clause on January 31, ~~2025~~ **2029**, and thereupon Clause 37.3 applies.

(c) All notices on behalf of the Union shall be given by the President of the Union and similar notices on behalf of the Employer shall be given by the Head of the BC Public Service Agency.

(d) By mutual consent the parties may agree to bargain prior to January 1, 2029.

37.3 Commencement of Bargaining

Where a party to this agreement has given notice under Clause 37.2, the parties shall, within 14 days after the notice was given, commence collective bargaining.

37.4 Change in Agreement

Any change deemed necessary in this agreement may be made by mutual agreement at any time during the life of this agreement.

37.5 Agreement to Continue in Force

Both parties shall adhere fully to the terms of this agreement during the period of bona fide collective bargaining.

37.6 Effective Date of Agreement

The provisions of this agreement, except as otherwise specified, shall come into force and effect April 1, 2022 **2025**.

SIGNING PAGE

SIGNED ON BEHALF OF
THE UNION BY:

Paul Finch
President

Maria Middlemiss
Treasurer

Dean Purdy
Correctional and Sheriff Services

SIGNED ON BEHALF OF
THE EMPLOYER BY:

Alyson Blackstock
Assistant Deputy Minister, PSA

Korina Tsui
Executive Director, PSA

Christy Howis
Director, PSA

Kusam Doal
Retail Stores & Warehouse

John Ginther
Director, PSA

Judy Fox-McGuire
Social, Information & Health Services

Ellen Hrad
Director, PSA

Mona Dykes
Social, Information & Health Services

Teresa Chow
Compensation Advisor, PSA

DJ Pohl
Administrative Professionals

Samantha Thatcher
Director, PSA

Faith Johnston
Administrative Professionals

Kimberley Bowman
Divisional Coordinator, PSA

Sebastian Kallos
Environment, Technical & Operations

Doug Forsdick
Provincial Director, PSSG

Rob Davis
Environment, Technical & Operations

Erin Moore
Chief Human Resources Officer, BC LDB

Linsay Buss
Lead Negotiator &
Associate Director, Negotiations

Richelle Chambers
Executive Director, SDPR

Larisa Mills
Staff Representative

Greg Kondas
Deputy Chief, ENV

Holly Reid
Communications Officer

Dave Fleming
Director, FOR

Sumiko Marshall
Administrative Assistant

Diane Bruce
Executive Director, MCFD

Fiona Mercer
Employee Relations Support Analyst, PSA

Brenden Hartridge
Employee Relations Support Analyst, PSA

Date:

APPENDIX 3 – Classifications and Rates of Pay

Compensation Increases

Increase rates of pay for classifications listed in Appendix 3 starting the first pay period after the following dates:

Year 1

- April 1, 2025: Increase rates of pay by 3.0%.

Year 2

- April 1, 2026: Increase rates of pay by 3.0%.

Year 3

- April 1, 2027: Increase rates of pay by 3.0%.

Year 4

- April 1, 2028: Increase rates of pay by 3.0%.

Consequential Amendment: Article 27.3 Rates of Pay, will be updated to reflect the agreed upon rates.

Note: All employees of the bargaining unit will be paid their retroactive general wage increase within a reasonable time frame after ratification of the agreement.

APPENDIX 3A – WAGE SCALE

Effective April 1, 2028, the employer will introduce a new step 6 for all grid levels in the agreement.

The value of Step 6 will be the value of Step 5 increased by 0.5%.

Upon the effective date of introduction of the new step 6, the following shall apply:

1) Full-time employees who have been in step 5 for a minimum of 12 months will move to step 6. All other full-time employees will move to step 6 the first day of the full pay period following their 12 month anniversary in step 5.

2) Part-time and auxiliary employees who have accumulated a minimum of 1827 hours in step 5 will move to step 6. All other part-time and auxiliary employees will move to step 6 the first day of the pay period following the accumulation of 1827 hours in step 5.

3) All substitutions, promotions, demotions, and reclassifications after the applicable effective date, will utilize all active steps of Appendix 3A.

4) Employees on a leave of absence without pay, maternity, adoption, parental, or educational leave, that lasts more than 30 consecutive days will have their step 6 increment date deferred by the period of the leave of absence.

MEMORANDUM OF UNDERSTANDING 22

Re: ~~TMA~~ Market Adjustments

Appendix B to MOU 22

Effective April 1, 2025

- Senior Legal Analyst classified as Clerk R15 will receive a one grid ~~TMA~~ MA to grid 16
- Community Program Officer (EAW) R15 will receive a one grid ~~TMA~~ MA to grid 16
- Inspector – Mechanical Motor Vehicles R21 will receive a one grid ~~TMA~~ MA to grid 22

Effective December 1, 2025:

- Court Clerk R12 will receive an additional one grid ~~TMA~~ MA to grid 16

Effective April 1, 2026:

- Paralegal R18 will receive a one grid ~~TMA~~ MA to grid 19
- Paralegal R21 will receive a one grid ~~TMA~~ MA to grid 22
- Product Consultant R12 will receive a one grid ~~TMA~~ MA to grid 13

Effective April 1, 2027:

- Forest Technician R9 will receive a ~~TMA~~ MA to grid 12

Effective September 1, 2027

- Legal Assistants classified as Clerk R12 will receive a one grid ~~TMA~~ MA to grid 14

Effective April 1, 2028

- Deputy Sheriff R21 will receive an additional one grid ~~TMA~~ MA to grid 25
- Fire Crew Leaders classified as Scientific/Technical Officer R15 will receive a one grid ~~TMA~~ MA to grid 16
- Fire Crew Supervisors and Wildfire Assistants classified at Scientific/Technical Officer R18 will receive a three grid ~~TMA~~ MA to grid 21
- Wildfire Technicians classified as Scientific/Technical Officer R21 will receive a three grid ~~TMA~~ MA to grid 24
- Wildfire Officers classified as Scientific/Technical Officer R24 will receive a three grid ~~TMA~~ MA to grid 27
- Senior Wildfire Officers and Wildfire Superintendent classified as Scientific/Technical Officer R27 will receive a one grid ~~TMA~~ MA to grid 28
- Child and Youth Mental Health workers classified as Social Program Officer R21 will receive a one grid ~~TMA~~ MA to grid 22
- Child and Youth Mental Health Social Program Officer R24 will receive an additional one grid ~~TMA~~ MA to grid 29

- Child and Youth Mental Health Social Program Officer R27 will receive an additional two grid ~~TMA~~ MA to grid 32
- Child and Youth Mental Health Social Program Officer R30 will receive an additional one grid ~~TMA~~ MA to grid 33
- Correctional Services R18 (Youth Custody) will receive an additional one grid ~~TMA~~ MA to grid 23 (note – grid 23 is assuming the union will accept the Employer's proposal of converting bonus incentive to TMA)

Note: all references to "TMA" will be updated to reflect "MA".

APPENDIX 3C – CLASSIFICATION TITLES AND GRID RANGES

Effective the first day of the pay period following June 1, 2025, all positions classified as R6 will be paid at grid Range 7.

Effective the first day of the pay period following March 1, 2026, all positions classified as R9 will be paid at grid Range 10 and effective June 1, 2027, all positions classified as R9 will be paid at grid Range 11.

Effective the first day of the pay period following April 1, 2027, all positions classified as R12 will be paid at grid Range 13.

APPENDIX 3G

Classification Titles, Grid Levels and Salary Grid Retail Stores and Warehouse

Effective April 1, 2025:

- Warehouse Worker G3 will be paid at an Appendix 3 R9 wage scale
- Store Clerk G3 will be paid at an Appendix 3 R9 wage scale
- Warehouse Worker G4 will be paid at an Appendix 3 R11 wage scale

Effective April 1, 2026

- Warehouse Worker G3 will be paid at an Appendix 3 R10 wage scale
- Warehouse Worker R9 will be paid at an Appendix 3 R10 wage scale
- Store Clerk G3 will be paid at an Appendix 3 R10 wage scale

Effective February 1, 2027

- Warehouse Worker G4 will be paid at an Appendix 3 R12 wage scale

ALLOWANCES

The following articles will have the following allowances and/or reimbursables increased by the agreed upon general wage increases:

Article 15.1(b): Shift Premium
Article 16.7: Overtime Meal Allowance
Article 27.8: Vehicle Allowances
Article 27.9: Meal Allowances
Article 27.10: Isolation Travel Allowance
Article 27.23: Special Vacation Transportation Subsidy for Severely Isolated Locations
Article 27.24: Child Care Expenses
Article 27.25: Lodging Allowance
Article 31.7: Health and Welfare
Article 32.11: Private Vehicle Damage
Article 32.12: Personal Property Damage
MOU 3: Board and Lodging and Relocation Expenses

Component 01 Agreement

Correctional Officer Provisions, 5.1 Issue – Initial Issue (regular Employees)
Correctional Officer Provisions, 5.4 Uniform Issue, Maintenance of Work Apparel

Component 05 Agreement

13.3 Safety Footwear

Component 06

7.2 Work Apparel
7.5 Safety Footwear

Component 12

10.2 Maintenance of Clothing
11.6 Safety Footwear

Component 20 (ETO)

9.1 Supply of Required Uniforms
11.1 (c) Special Certificate Allowance
MOU 5: Lodging Allowance

APPENDIX 4 – SHORT AND LONG-TERM DISABILITY

Part I - Short-Term Illness and Injury Plan

1.1 Eligibility and Entitlement

-

Maintain Current Language (MCL)

1.2 Short-Term Plan Benefit

Maintain Current Language (MCL)

1.3 Recurring Disabilities

Maintain Current Language (MCL)

1.4 Doctor's Certificate of Inability to Work

The Employer may require an employee who is unable to work because of illness or injury to provide a statement from:

- (a) a medical practitioner qualified **and licensed** to practise in the province of BC; or
- (b) where necessary, from a medical practitioner **qualified and** licensed to practise in the province of Alberta or the Yukon; or
- (c) the consulting physician to whom the employee is referred by the medical practitioner in (a) or (b) above; or
- (d) a nurse practitioner qualified **and licensed** to practice in the province of BC, providing medical evidence of the employee's inability to work in any of the following circumstances:
 - (1) where the employee has been absent for six **ten** consecutive scheduled days of work;
 - (2) on the third (or more) separate absence occurring in a six-month period which may indicate a pattern of concern;
 - (3) where at least 30 days have elapsed since the last statement was obtained and the employee has been in receipt of plan benefits throughout that period and there is a reason to believe the employee's prognosis has changed.

(e) Notwithstanding above, employees who receive confirmation from the plan carrier that they are accepted for LTD during the STIP period will not be required to provide additional doctor's certificates to the Employer to confirm plan benefits, except when required for return-to-work planning.

(f) In circumstances where a statement of illness or injury is required, and where a nurse practitioner or medical practitioner cannot be seen within a reasonable amount of time, the Employer may accept a statement, consistent with the professional scope of practice, from a physiotherapist, chiropractor, or registered psychologist qualified and licensed to practice in BC, but only within the first 30 calendar days from the start of the illness or injury.

This does not limit or restrict the Employer's ability to request a statement from a medical practitioner or nurse practitioner at any time during the benefit period.

With the exception of the STO2 and doctor's certificates referenced above, where the Employer requires a medical assessment from the employee's—physician **medical practitioner, a nurse practitioner, physiotherapist, chiropractor, or registered psychologist** specifying the employee's employment limitations and/or capabilities, the employee will be reimbursed, upon production of receipt, for 50% of the cost of the medical assessment. Effective April 1, 2020, the employee will be reimbursed, upon production of receipt, for 50% of the cost of all of the medical certificates referenced above.

Benefits will cease to be paid when an employee fails to provide satisfactory evidence of medical disability during the benefit period.

Part II - Long-Term Disability Plan

2.1 Eligibility

Maintain Current Language (MCL)

2.2 Long-Term Disability Benefit

In the event an employee, while covered under this plan, becomes totally disabled as a result of an ~~accident or a sickness~~ **illness or injury**, then, after the employee has been totally disabled for six months, including periods approved in Sections 1.3(a) and (c), they shall be eligible to receive a monthly benefit as follows:

(a) Maintain Current Language (MCL)

(b) When an employee has no sick bank, or after it is exhausted, the employee shall receive a monthly benefit equal to the sum of:

Effective April 1, 2025:

- (1) 70% of the first \$2,700 **\$3,133.78** of monthly earnings; and,
- (2) 50% of the monthly earnings above \$2,700 **\$3,133.78.**

Effective April 1, 2026:

- (1) 70% of the first \$2,700 **\$3,196.78** of monthly earnings; and,
- (2) 50% of the monthly earnings above \$2,700 **\$3,196.78.**

For the purposes of the above, earnings shall mean basic monthly earnings as at the date of disability as determined by the Employer.

~~As of April 1, 2022 a~~ Annual increases to (b)(1) **(2)** will be calculated by applying a percentage increase equivalent to the annual percentage general wage increase for all employees under the collective agreement. It is understood that the adjustment in (b)(1) **(2)** will only apply to new claims to set the benefit amount to be paid at the beginning of each LTD claim and into the future and that Appendix 4, 2.18 Benefit Level will not also apply at the time the benefit level is set.

The basic monthly earnings as at the date of disability shall be the salary in effect for the last month of the Short-Term Plan period, or equivalent six-month period, taking into consideration any retroactive adjustments. The date of disability for determining the commencement of the first 25 months of disability shall be the day following the last month of the Short-Term Plan period, or an equivalent six-month period.

(c) Maintain Current Language (MCL)

(d) Maintain Current Language (MCL)

(e) Maintain Current Language (MCL)

(f) Maintain Current Language (MCL)

(g) Maintain Current Language (MCL)

2.3 Total Disability

(a) Total disability, as used in this plan, means the complete inability because of an accident or sickness of a covered employee to perform all the duties of their own occupation for the first 25 months of disability except where accommodation has been made which enables an employee to work:

- (1) in their own occupation, or
- (2) in a job other than their own occupation.

Where accommodation has been made which enables an employee to return to work they will not be considered totally disabled and the rate of pay shall be the rate for the job.

If the rate of pay for this job is less than the rate of pay of the employee at the date of disability, the employee's salary will be protected in accordance with Clause 27.7(a) at the employee's basic rate at the date of disability.

After the first 25 months of total disability, where accommodation has been made that enables an employee to return to a job other than their own occupation, the employee will not be considered totally disabled and their basic rate shall be the basic rate for the job or 75% of the basic rate of their own occupation, whichever is greater.

After the first 25 months of total disability, employees able by reason of education, training or experience to perform the duties of a gainful occupation for which the rate of pay is not less than 75% of the current rate of pay of their regular occupation at date of disability will not be considered totally disabled and will therefore not be eligible for benefits under this Long-Term Disability Plan.

(b) During a period of total disability an employee must be under the regular and personal care of a legally qualified doctor of medicine **or a nurse practitioner**.

- (c) (1) Maintain Current Language (MCL)
- (2) Maintain Current Language (MCL)
- (3) Maintain Current Language (MCL)
- (4) Maintain Current Language (MCL)

2.4 Exclusions from Coverage

MCL

2.5 Pre-Existing Conditions

MCL

2.6 Integration With Other Disability Income

MCL

2.7 Successive Disabilities

(a) If, following a period of **six months where an employee is unable to work because of illness or injury, including leave periods which run concurrent with those six months as noted in 1.1(f)(1) and**

1.6(g), and regardless if benefits are paid from Parts I or II of this plan total disability with respect to which benefits are paid from this plan, an employee returns to work on a full-time basis for a continuous period of six months or more, any subsequent total disability suffered by that employee, whether related to the preceding disability or not, shall be considered a new disability and the disabled employee shall be entitled to benefit payments in accordance with the provisions of this plan.

(b) Maintain Current Language (MCL)

(c) Maintain Current Language (MCL)

(d) Maintain Current Language (MCL)

2.8 Cessation of Benefits

Maintain Current Language (MCL)

2.9 Leave of Absence

Maintain Current Language (MCL)

2.10 Benefits Upon Plan Termination

Maintain Current Language (MCL)

2.11 Contributions

Maintain Current Language (MCL)

2.12 Waiver of Contributions

Maintain Current Language (MCL)

2.13 Claims

Maintain Current Language (MCL)

2.14 Physical Examination

Maintain Current Language (MCL)

2.15 Canadian Currency

Maintain Current Language (MCL)

2.16 Administration

Maintain Current Language (MCL)

2.17 Implementation by Regulation

Maintain Current Language (MCL)

2.18 Benefit Level

Maintain Current Language (MCL)

Part III - Rehabilitation

MoveUP/E&OE/MOS 2025

Rehabilitation Committee

Maintain Current Language (MCL)

RE: MOUs AND ANCILLARY DOCUMENTS FOR RENEWAL

The parties agree to renew the following MOUs within the Collective Agreement for the term of the 20th Main Public Service Agreement, as amended or currently existing:

- MOU#1 Re: Employment Security
- MOU#2 Re: The Authority of the Article 13 Joint Committee
- MOU#6 Re: Alternative Service Delivery (ASD)
- MOU#7 Re: Early Retirement Incentive Plan (ERIP) and Voluntary Departure Program (VDP) for Privatization.
- MOU#9 Re: Clause 32.10, Article 36 and Memorandum of Understanding 6
- MOU#11 Re: Devolution/Transfer of Ministry of Children and Family Development Programs
- MOU#12 Re: Joint Advisory Committee
- MOU#13 Re: Article 25.8 – Legislative Changes
- MOU#15 Re: The Application of Main Agreement Clause 13.3(a)(4) and Main Agreement Article 19
- MOU#16 Re: Auxiliary Employees – STIIP
- MOU#17 Re: Vacation Adjustments for Remote Locations
- MOU#19 Re: Seniority for Voluntary Transfer of Auxiliary Employees
- MOU#20 Re: Project Employees
- MOU#26 Re: MSDPR Pilot Project
- MOU#27 Re: Union/Management Joint Training
- MOU#28 Re: Protocol for Joint Union Management Training Initiatives
- MOU#29 Re: Stewards at Step 2 of the Grievance Procedure

- MOU#30 Re: Priority Placement and Employment Equity
- MOU#31 Re: Regular Part-time Employees
- MOU#33 Re: Gainsharing
- MOU#38 Re: Store Closures and Signature Store Openings and Impact on Employees
- MOU#39 Re: Sunday Openings and Store Consolidation Protocol
- MOU#40 Re: Pilot Project – Cross Ministry Eligibility Lists

ANCILLARY DOCUMENTS OUTSIDE OF THE MAIN AND COMPONENT AGREEMENTS

The Parties agree to renew the following ancillary documents to the Main and Component Public Service Agreements, as amended or currently existing:

Ancillary Memorandums of Agreement:

- MOA Re: Part-time Regular Employees – Court Services Branch
- MOA Re: Part-time As-and-When Regular Employees – Service BC, Regional Operations
- MOA Re: Leave of Absence for Union Business – Local Chairpersons

Note: The Parties acknowledge that all other outstanding proposals on MOU's and ancillary documents not listed remain outstanding.

(Renew)

MEMORANDUM OF UNDERSTANDING 1 Re: Employment Security

1. During the term of this memorandum of understanding the Employer agrees not to exercise its right to cause a layoff which results in the cessation of employment for an employee in the Public Service Bargaining Unit who has regular status as of April 1, 2022~~2025~~. Such employees are grandparented with the provisions of this memorandum.
2. This memorandum does not apply to regular employees who are normally subject to layoff because of business cycle or seasonal work.
3. In order for the Employer to satisfy the provision of point 1 above, the Union recognizes that workforce adjustment activity will be necessary whether due to reorganization, program termination, relocation, closures, etc.

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4. JWASC will coordinate such workforce adjustment activity in accordance with its mandate as outlined in Clause 13.2.

5. In order to facilitate the Employer's commitment and workforce adjustment measures necessary as a result of this commitment, it is agreed that, following the application of Phase 1 (Clause 13.1):

(a) A regular employee with less than three years' service seniority who refuses one reasonable offer of continued employment will be deemed to have resigned.

(b) A regular employee with three or more years' service seniority who refuses an offer of continued employment at the same classification level and same geographic location will be deemed to have resigned.

(c) A regular employee with three or more years' service seniority who refuses one offer of continued employment in a different classification (with the same maximum salary) in the same geographic location, will be deemed to have resigned with applicable severance pay.

(d) A regular employee with three or more years' service seniority who refuses two job offers in a different geographic location or with a comparable pay range will be deemed to have resigned with applicable severance pay.

Where a regular employee with three or more years' service seniority refuses one job offer in their same geographic location pursuant to (c) above or refuses their final job offer pursuant to (d) above in their same geographic location, the number of weeks of severance pay shall be reduced by an amount equivalent to the number of weeks the employee has remained on pay after expiry of the six week notice period in 13.4(b).

6. The determination of employees to be subject to workforce adjustment will be consistent with the seniority provisions of Article 13.

7. Greater than three year regulars are entitled to displace less than three year regulars pursuant to Article 13. Employees who do not immediately exercise their option to displace will not be covered by the security provisions of this memorandum and Clause 13.4 shall apply. Less than three year regulars are entitled to the auxiliary recall option in lieu of a reasonable offer of continued employment.

8. Regular employees with more than three years' service seniority who are placed pursuant to this memorandum shall have their salary protected pursuant to Clause 27.7 of the Main Agreement.

9. It is understood that if an employee is impacted in subsequent layoffs/workforce adjustment within a three-year period that their original headquarters remains the same unless they have relocated. An employee intending to rely on this provision must advise the Employer within 30 days of receiving a job offer.

10. The Chairperson of the Article 13 Joint Committee shall, at the request of either party, sit as an arbitrator over all disputes pertaining to the application or interpretation of this memorandum of understanding after the parties have reviewed and attempted to resolve the dispute.

11. The provisions of Article 13 shall be subject to the provisions of this memorandum of understanding.

12. This memorandum remains in force and effect for the term of the ~~2019th~~ Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 2
Re: The Authority of the Article 13 Joint Committee

The structure of the layoff and recall/employment security provisions of the Main Agreement are such that those regular employees with three or more years of service seniority have stronger security than regular employees with less than three years seniority. Likewise, all regular employees have stronger security than auxiliary employees.

Consistent with the above, the parties acknowledge that the Article 13 Joint Committee may need to exercise its discretion as provided for in Clause 13.5(c) in order to maintain the employment of regular employees over auxiliary employees, including regulars with less than three years seniority.

This letter will be effective from the date of ratification until the expiration of the 19th Main Agreement.

MEMORANDUM OF UNDERSTANDING 3
Re: Board and Lodging and Relocation Expenses

Definitions

For the purpose of these regulations:

"stationary employees" are employees who occupy positions that require them to:

- (a) carry out their duties on a day-to-day basis at their headquarters; and/or,
- (b) travel from their headquarters for short periods of time; and/or,
- (c) travel from their headquarters more or less on a continuous basis, but whose assignments are of sufficiently short duration so that temporary headquarters cannot be practically assigned;

"mobile employees" are those that occupy positions requiring assignment to a "temporary" headquarters for a significant period of time for each specific project and who are required to carry out their duties on a day-to-day basis from their assigned temporary headquarters; these employees are usually required to change their temporary headquarters on a continual basis and would not be domiciled at a permanent headquarters;

"field status employees" are those who are normally required to work away from their point of assembly and who, on a day-to-day basis, do not work in an office, institution, plant, or other similar fixed location which is their normal point of assembly;

"seasonal field employees" are those employees who occupy positions which permit them to be normally domiciled at their permanent headquarters but who are assigned field duties on a seasonal basis, returning to their permanent headquarters when not working in the field;

"permanent camp" is a camp which will be established and occupied continuously for more than one year;

"seasonal camp" is a camp that will be established and occupied less than five months and is usually comprised of tents and, where feasible, trailers;

"fly or sub-base camp" is a camp that will be established and occupied on a very temporary basis, is mobile in nature, and is generally isolated with very restricted access;

"local hire" is a person who is hired or is domiciled within 80 kilometers of the job site by means of the shortest road route;

"travel status" with respect to an employee means absence of the employee from the employee's designated headquarters or geographic location on government business with the approval of the Employer, but travel status does not apply to employees temporarily assigned to a position outside of the designated headquarters or to field status employees;

"headquarters or geographic location" is that area within a radius of 32 kilometers where employees ordinarily perform their duties. When employees are relocated, the headquarters area may be redefined where exceptional circumstances such as unusual road conditions exist;

"dependents" for the purpose of definition, dependents are spouse, dependent children and anyone for whom the employee claims exemption on Federal Income Tax returns;

"private dwelling house" refers to the single family residence of the employee on a reasonable amount of property required to support such a house, owned by the employee and/or the spouse, and for which evidence of title can be provided. "House", "residence" and "property" refer solely to the property occupied as the principal residence of the employee at the time of relocation, including mobile homes.

"reasonable amount of property" where an employee elects to purchase a dwelling house on a piece of property that would not be considered a "reasonable amount" (ie., hobby farm, etc.), the following formula shall be used to determine the value of the private dwelling house for legal fee reimbursement purposes:

- (a) value of an average serviced lot in or close to the nearest town;
- (b) assessed value of actual house on site;
- (c) total added value in (a) and (b).

Part I - Board and Lodging Regulations

1.1 Board and Lodging Allowances

(a) Local Hire:

No board and lodging will be supplied or no living allowance will be paid to persons hired locally for a project. Should such persons be transferred to another project where the distance involved requires the persons to reside away from their original point of domicile, then board and lodging allowances will apply.

(b) Employees at Their Headquarters:

No board and lodging will be supplied, or living allowance or meals and/or accommodation paid to employees while at their permanent place of residence or to "stationary" or "seasonal field" employees while at their permanent headquarters, except as specifically authorized by the Main Agreement or any component agreement.

(c) Travel Status:

The following class of employees, under the stated conditions, shall be entitled to the current meal allowance and accommodation reimbursement, or the current private accommodation allowance in lieu of accommodation reimbursement:

- (1) "stationary" employees who are required to travel away from their permanent headquarters up to a maximum of 60 days at one location on a continuous basis;
- (2) "mobile" employees who are required to travel away from their temporary headquarters, or, who are moving from one assigned temporary headquarters to another, and for a period up to 30 days at the beginning of each assignment to enable them to arrange suitable longer-term accommodation;
- (3) "seasonal field" employees who are required to travel away from their permanent headquarters up to a maximum of 60 days at one location on a continuous basis, or, who are required to travel away from their assigned temporary headquarters for short periods up to a maximum of 30 days at one location on a continuous basis, or, who are moving from one assigned temporary headquarters to another, for a period up to 30 days at the beginning of each assignment to enable them to arrange suitable longer term accommodation, or until the Employer makes other arrangements such as providing board and lodging using community services or camp facilities;
- (4) Notwithstanding any provisions contained in (c)(1), (2), or (3) above, travel status will not apply where the Employer decides to provide for or supplies free board and lodging.

(d) Board and Lodging:

The following class of employees, when not on travel status, and under the conditions stated, shall be entitled to board and lodging supplied by the Employer in either employer-operated camps or by means of local community services:

- (1) "stationary" employees assigned to a temporary headquarters;
- (2) "mobile" employees assigned to a temporary headquarters;
- (3) "seasonal field" employees assigned to a temporary headquarters.

(e) Per Diem Living Allowance:

The per diem living allowance is intended to cover only those living costs which are considered over and above normal for those employees whose positions require mobility or require that the employee live in the field thereby making it impractical to establish a relatively permanent residence or reside at their permanent residence.

- (1) Where employees would otherwise be entitled to travel status under Subsection (c) or board and lodging supplied under (d) above, employees may elect a per diem living allowance in lieu of travel status or board and lodging supplied, in which case employees shall be responsible to find and pay for their own accommodation and make and pay for their own board arrangements; however, where the Employer

establishes a camp, employees will be obligated to receive board and lodging using camp facilities at the Employer's option.

(2) The election of the per diem allowance by employees shall not result in greater transportation costs to the Employer than would have resulted if board and lodging was supplied by the Employer.

(3) Where employees are entitled, the per diem living allowance will be ~~\$44.67 effective April 1, 2022; \$47.69 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** per day for each calendar day in the month. This will be paid via the payroll (subject to income tax) one month in arrears to enable the pay offices to calculate the correct entitlement. This allowance will be paid for the periods employed on the job and will include days of rest, statutory and declared holidays, short-term illness and injury absence, approved WCB leave with pay, other approved leave of absence with or without pay for periods up to five days. Without limiting or extending the provisions of this section, the per diem allowances will not be payable during the following periods:

- (i) non-approved unpaid absences from the job including abutting weekends;
- (ii) unpaid WCB leave and unpaid absence due to illness or injury in excess of five days, except that where such conditions occur and the employee remains at the job area, then board and lodgings will be supplied by the Employer, but not beyond the period of hire or 20 days, whichever is the lesser;
- (iii) while on educational leave with or without pay;
- (iv) termination pay for vacation and pre-retirement leave upon retirement;
- (v) while employees are away from the job under Clause 13.3(b) and Clauses 13.5(a) to (f) of the Environment, Technical and Operations Component Agreement, Clause 14.1 of the Administrative Professionals Component Agreement, and any similar clause under any of the other component agreements;
- (vi) while employees are moving from one job site to another or from one headquarters to another and on travel status.

(4) Where employees have elected free board and lodging it is understood and agreed that 50% of the per diem living allowance will be payable where the Employer is unable to supply board but lodging is supplied.

(5) Where employees have elected the per diem allowance, it is understood and agreed that, in the following situations, 50% of the per diem allowance will be payable where the employee and the Employer mutually agree that it is necessary to retain employees' accommodation at designated headquarters, and in such cases the Employer's agreement shall not be unreasonably withheld:

- (i) where employees are temporarily assigned away from designated headquarters and are on travel status or supplied with free board and lodging;
- (ii) where employees are on annual holidays, banked holidays, or compensatory time off with pay; for the purposes of calculating the allowance, holiday, or compensatory time off will be considered to commence on the first working day off the job, and will end the day before the employee's return to work;
- (iii) where employees are on leave with pay for union business;

(iv) where employees are in receipt of STIP in excess of five consecutive days, on approved WCB leave with pay in excess of five consecutive days or on other approved leaves of absence with or without pay for periods in excess of five consecutive days.

Where the employee and employer do not find it necessary to retain accommodation at the employee's headquarters under the circumstances outlined in this section, then no per diem allowance is payable.

(6) It is understood that the Employer will advise employees in advance as to what type of board and lodging facilities are or will be made available, and employees will advise in writing if requested, prior to final arrangements being made, whether or not they wish to accept board and lodging supplied or elect the per diem living allowance. The decision reached will remain in effect for the duration of the project, except that changes may be made by mutual agreement.

(7) Where employees have elected the per diem living allowance, it is understood and agreed that the Employer will be required to provide sufficient notice in writing of the termination date of the project to enable employees to avoid possible duplication of accommodation payments. In the event the project terminates earlier than the notice date given, employees shall be entitled, upon production of receipts, to any duplication accommodation costs incurred directly resulting from the insufficient notice. Where the project terminates later than the notice date given, employees shall be entitled, upon production of receipt, to any abnormal increase of costs in accommodation, or any duplication of accommodation costs, directly resulting from extending the termination date of the project. This would not include normal increases in rent that may be experienced during the extended period.

1.2 Moving of Trailers and Household Effects

It is understood and agreed that it is necessary for some "mobile", "seasonal field", and "stationary" employees to move from one assignment to another to carry out their normal duties. In these cases, the regular relocation expenses will not apply, instead, the Employer shall be responsible for arranging and paying for the moving of an employee's single wide mobile trailer or home up to the maximum width allowed on the highway with a permit, and one vehicle, and/or household effects.

1.3 Type of Accommodation

It is agreed and understood that where the Employer supplies lodging using community services whenever possible, the employee will be entitled to single accommodation, and the sharing of a room with other employees will not be required except under unusual circumstances, such as where sufficient accommodation is not available. Where employees are sharing accommodation with persons other than employees entitled to lodging, or where an employee chooses to use accommodation in excess of single accommodation, the employee will be responsible for all lodging costs in excess of the single accommodation rate.

1.4 Permanent Camp

Where a "stationary" employee's permanent headquarters is at a permanent camp, the employee will be required to pay for board and lodging supplied. The rate will be \$230 **increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** per month or proportion thereof for a partial month. Where lodging only is supplied, the rate will be \$70 per month or \$2.35 per day **increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028**. Where board only is supplied, the rate will be \$156 per month, or \$5.20 per day, or \$1.75 per meal **increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026;**

increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028. This regulation, however, will not alter any existing arrangements whereby the employee bids on a posted competition with the proviso that free board and lodging would be supplied at the permanent headquarters.

Part II - Relocation Expenses

2.1 Policy

(a) Relocation expenses will apply:

(1) to regular employees and to auxiliary employees who qualify pursuant to Clause 31.2 who have to move from one headquarters or geographic location to another after completing their probation period and after winning an in-service competition where the position is permanently located at another headquarters or geographic location;

(2) to employees who have to move from one headquarters or geographic location to another at the Employer's request to fill a position which is permanently located at another headquarters or geographic location.

(b) Relocation expenses will not apply, but instead the applicable travelling, living and moving expenses provided under the Treasury Board Order on Board and Lodging will apply to the following groups of employees who will not be considered to be on relocation:

(1) to field status, mobile and other employees whose normal duties require moves from one temporary headquarters to another or from one assignment to another;

(2) to field status, mobile and other employees who are successful applicants for posted positions, where such positions are not permanently located at one headquarters or geographic location, such as is the usual case with field crew positions;

(3) to apprentice employees when there is a pre-programmed change in their headquarters or geographic location.

(c) To employees entitled to relocation expenses, the Employer will pay travelling, living and moving expenses on relocation in accordance with the following provisions.

2.2 Travel Expenses on Relocation

(a) Initial Trip to Seek New Accommodation

The Employer shall grant, with no loss of basic pay, prior to relocation, at a time mutually agreeable to the Employer and the employee, up to five days plus reasonable travel time, to an employee being relocated and shall reimburse the employee for travel expenses for the employee and spouse in accordance with Treasury Board Order on Travel Expenses.

Any time beyond specified time may be charged against the employee's annual vacation credits, however, expenses will not be payable. This leave must be for the specific purpose of locating accommodation, with the intent, in as many instances as possible, that furniture and household effects may be delivered directly to the new residence.

(b) Travelling Expenses Moving to New Location

The Employer shall provide reimbursement of travel expenses incurred during relocation for employees and dependents, for the actual travel time, plus accommodation and meals up to seven days at the new

location when employees are unable to move into the new accommodation. Such expense allowances will be in accordance with the current Treasury Board Order on Travel Expenses.

Meals: Adults - full rate

Children 12 and under - one-half rate

Motel or Hotel - on production of receipts

Private lodging: at old or new location - current rate

(c) Where dependents of an employee relocate at a time different than the employee, the Employer shall reimburse the employee for their dependents' travel expenses, meals and accommodation incurred while travelling to the new headquarters area. In such cases where the employee remains eligible for benefits pursuant to Section 2.3, the employee will be reimbursed for their dependents' meals at the new location for a period of up to seven days.

The above allowances will be in accordance with the current Treasury Board Order on Travel Expenses.

2.3 Living Expenses Upon Relocation at New Location

After the first seven days has expired at the new location and the employee can establish to the satisfaction of the Employer that there is no suitable housing available, then:

(a) the Employer shall pay an employee not accompanied by dependents at the new location, a living allowance of ~~\$27.56 effective April 1, 2022; \$29.42 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** per day up to a maximum of 30 days; or

(b) the Employer shall pay an employee accompanied by dependents at the new location, a living allowance of ~~\$33.07 effective April 1, 2022; \$35.30 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** per day up to maximum of 60 days;

(c) where an employee is receiving the payment in (a) above and is later joined by their dependents at the new location and the employee is still eligible for payment under this Section, the payment shall be as in (b) above. However, the maximum period of payment under (a) and (b) shall not exceed 60 days.

2.4 Moving of Household Effects and Chattels

On relocation, the Employer shall arrange and pay for the following:

(a) moving of household effects and chattels up to 8,165 kg. including any item(s) which the contracted mover will accept as part of a load which includes household appliances and furniture, hobbies, boats, outboard motors and pianos;

(b) comprehensive insurance to adequately protect the employee's household effects and chattels during the move up to a maximum of ~~\$66,040 effective April 1, 2022; \$70,497.70 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

- (c) where necessary, insured storage up to two months, upon production of receipts;
- (d) the packing and unpacking of the employee's household effects and chattels;
- (e) when an employee is being relocated and opts to move their own household effects and chattels, the employee shall receive one of the following allowances:
 - (1) ~~\$551.20 effective April 1, 2022; \$588.41 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** for a move not exceeding a distance of 240 kilometers;
 - (2) ~~\$884 effective April 1, 2022; \$943.67 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** for a move which exceeds a distance of 240 kilometers;
 - (3) ~~\$275.60 effective April 1, 2022; \$294.20 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** where the employee is entitled to receive the amount pursuant to Section 2.7(d).
- (f) where the employee exercises an option pursuant to (e) above then the provisions of (a) and (d) above shall not apply.

2.5 Moving of Mobile Homes

- (a) On relocation, an employee who owns a mobile home may opt to have their mobile home moved by the Employer in either of the following circumstances:
 - (1) where the employee's new headquarters area is on the list of isolated areas, providing no suitable accommodation is available; or
 - (2) where an employee is living in a mobile home which was moved to its present location by the Employer, and the employee's headquarters prior to the impending relocation is named on the list of isolated locations.
- (b) Where an employee's mobile home is moved by the Employer under this section then the Employer shall also arrange and pay for the following:
 - (1) moving of single wide mobile trailer or home up to the maximum width allowed on the highway with a permit including any skirting, cabanas or attachments. Where mobile homes in excess of the above are involved, the Employer will pay:
 - (i) the equivalent cost of moving a single wide mobile trailer or home up to the maximum width allowed on highways with a permit; or
 - (ii) the real estate and legal fees involved in selling the extra wide trailer up to a maximum of ~~\$5,512 effective April 1, 2022; \$5,884.06 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028**
 - (2) comprehensive insurance to adequately protect the employee's household effects, chattels and trailer during the move up to a maximum of ~~\$66,040 effective April 1, 2022; \$70,497.70 effective April 1, 2023~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028**

~~2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028;**

(3) the setting up and levelling of a mobile home or double-wide, at the new location to a maximum of ~~\$644.80 effective April 1, 2022; \$688.32 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.** upon production of receipts;

(4) the packing and unpacking of the employee's household effects and chattels if required.

(c) Where an employee is living in a mobile home and is not included in (a) above, and chooses to move the mobile home to the new headquarters area, the employee shall be entitled to reimbursement for costs covered in (b) above up to a maximum of ~~\$2,756 effective April 1, 2022; \$2,942.03 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.** upon production of receipts.

(d) Where the employee opts under this section to have a mobile home moved, there shall be no entitlement to the provisions of Sections 2.4 and 2.10.

2.6 Moving of Personal Vehicles Upon Relocation

The Employer shall reimburse employees for the cost of transporting one personal vehicle and one trailer towed by the personal vehicle.

The vehicle and trailer, where applicable, may be driven in which case current vehicle allowance rates for the vehicle only will apply, or, vehicle and trailer, where applicable may be shipped by rail or boat, in which case the cost of the least expensive method will be paid.

In addition, the Employer will pay for any additional transportation charges such as ferry fares for the vehicle and trailer with or without load.

2.7 Incidental Expenses on Relocation

The Employer shall pay to the employee upon relocation only one of the following amounts, to cover incidental expenses on relocation, and once the employee has claimed one allowance no alternate further claim may be made:

(a) when an employee purchases a private dwelling house in the new location - ~~\$660.40 effective April 1, 2022; \$704.98 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028;**

(b) when the employee is moving to rental accommodation in the new location - ~~\$327.60 effective April 1, 2022; \$349.71 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

(c) when an employee is moving with a mobile home - ~~\$218.40 effective April 1, 2022; \$233.14 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

(d) when the employee is moving to room and board - ~~\$159.12 effective April 1, 2022; \$169.86 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

The application for incidental expenses on relocation must be made by the employee on the appropriate form within 60 days of the employee's arrival at the new location, unless there is no available suitable housing, in which case application must be made within 60 days of suitable housing becoming available.

2.8 Notice to Employee Upon Relocation

It is understood and agreed that the Employer will provide employees with reasonable notice of the relocation effective date, and wherever possible, at least one month's notice shall be given. Where less than one month's notice is given, or the relocation date is altered either earlier or later than the relocation effective date given which directly results in duplication of rent costs to the employee, then the Employer agrees to reimburse the employee, upon production of receipts, for the duplicate rent payments at the new location.

2.9 Requested Relocation by Employee

Where an employee requests a relocation from one headquarters or geographic location to another, all travelling and living expenses incurred in such a move are the responsibility of the employee.

2.10 Real Estate and Legal Fees

On relocation or within one year of the effective date of relocation, an employee who purchases and/or sells their private dwelling house, will be entitled to claim for the following expenses upon production of receipts:

(a) Reimbursement of fees to a maximum of ~~\$9,817.60 effective April 1, 2022; \$10,480.29 effective April 1, 2023; and TBD effective April 1, 2024~~, **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** charged by a real estate agency for the selling of the employee's private dwelling home in which they resided immediately prior to relocation.

(b) An employee who has sold their own home without the aid of a realtor shall be entitled to claim ~~\$2,204.80 effective April 1, 2022; \$2,353.62 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.**

(c) Allowance for legal fees encumbered upon the employee because of the purchase of their private dwelling house in which they live after relocation will be paid in accordance with the following:

- 1% of the first \$50,000 of the purchase price **increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028;**

- one-half of 1% of any amount of the purchase price above \$50,000 **increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028;**

- the total cost to the Employer under Part (c) shall not exceed ~~\$1,154.40 effective April 1, 2022; \$1,232.32 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI**

effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.

(d) Where an employee purchases a reasonable amount of property, secures a joint mortgage (land and private dwelling) and begins construction within six months of relocation (ie., foundation poured), they shall be entitled to reimbursement of legal fees not to exceed the amount specified in (c) above. In these circumstances, the reimbursement shall be for one transaction only.

(e) The employee may only claim legal fee reimbursement in either (c) or (d) above, not both.

Part III

Where a regular employee is required to relocate:

(a) as a result of the Employer moving its operation from one geographic location to another (see Main Agreement, Clause 12.8);

(b) as a result of accepting a placement pursuant to Article 13, provided the employee is in receipt of layoff notice;

(c) as a result of a placement pursuant to Article 36;

the employee will be entitled to the following reimbursements in addition to the provisions of MOU 3 Part II, upon production of receipts:

(a) real estate commission fees not to exceed ~~\$16,536 effective April 1, 2022; \$17,652.18 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028.** Where a claim is made under this section, there shall be no entitlement to MOU 3, Part II, 2.10(a);

(b) except where the terms of the employee's mortgage allow the employee to transfer the mortgage to a new residence without penalty, the mortgage discharge fee not to exceed ~~\$220.48 effective April 1, 2022; \$235.36 effective April 1, 2023; and TBD effective April 1, 2024~~ **the April 1, 2024 rate increased by GWI effective April 1, 2025; increased by GWI effective April 1, 2026; increased by GWI effective April 1, 2027; and increased by GWI effective April 1, 2028** and mortgage pre payment penalty, if any;

(c) survey certificate fee as required for the acquisition of a mortgage/purchase of a private dwelling at the new location;

(d) interim financing fees and/or interest charges incurred for the purchase of the private dwelling house in the new location for a maximum period of 60 days. The employee shall provide the necessary documentation to demonstrate that such interim financing arrangements were incurred and/or duplicate mortgage payments have been made.

Part III does not apply where the employee's private dwelling in which they resided immediately prior to relocation is not sold.

MEMORANDUM OF UNDERSTANDING 4

Re: Alternate Service Delivery (ASD) and Privatization Initiatives

The Employer agrees that the number of impacted employees resulting from ASD initiatives outlined in Memorandum of Understanding 6 and Privatization initiatives pursuant to Clause 36.2 Privatization will not exceed 900 during the term of the 2019th Main Agreement.

The memorandum of understanding will be in force and effect for the term of the 2019th Main Agreement.

MEMORANDUM OF UNDERSTANDING 5

Re: Privatization and Alternate Service Delivery (ASD)

This memorandum of understanding pertains to contracts for ASD initiatives pursuant to Memorandum of Understanding 6 and contracts which have been minuted as a privatization pursuant to Article 36 of the Main Agreement which expire and are re-tendered during the term of the 2019th Main Agreement. If re-tendered the Employer will stipulate that the successful bidder will offer employment to incumbent members of the previous employer's operation to fill available employment opportunities which are not assigned to the bidder's current employees. Such offers shall be made in order of seniority to staff currently performing the work of the available positions.

This memorandum of understanding will remain in effect for the term of the 2019th Main Agreement.

~~The Employer agrees that the number of impacted employees resulting from ASD initiatives outlined in Memorandum of Understanding 6 and Privatization initiatives pursuant to Clause 36.2 Privatization will not exceed 900 during the term of the 2019th Main Agreement.~~

~~The memorandum of understanding will be in force and effect for the term of the 2019th Main Agreement.~~

(Renew)

MEMORANDUM OF UNDERSTANDING 6

Re: Alternative Service Delivery (ASD)

This will confirm our agreement regarding the government of BC's Alternative Service Delivery (ASD) initiatives.

These initiatives concern programs and staff which are predominantly in the Greater Victoria area. For these initiatives it is agreed that:

1. The parties recognize that these employees should be encouraged to accept employment with the successful bidder and that those employees requiring placement within the Employer's operations should co-operate fully to have their placement concluded as expeditiously as possible.
2. Where incumbent staff are employed by the successful bidder, the bidder may apply to the Public Service Pension Plan (PSPP) for enrolment as an employer in the PSPP.

3. Employees who are not employed by the successful bidder will be covered by Main Agreement Article 36.

4. Should any employee not have their placement resolved within 60 days, either party may refer the employee's placement to the Joint Committee pursuant to Article 36. In the circumstance of an ASD initiative within the Capital Regional District (CRD), the Joint Committee may only require placement of an employee into a position within the employee's headquarters.

5. Where Section 35 of the Labour Relations Code applies, the successful proponent will recognize the existing union certification and meet with the Union prior to the transfer of the program for the purpose of consolidating the current main and applicable component agreements into one amended agreement which is relevant to the sector. If an extension of the term of the agreement is required, the parties shall agree on appropriate amendments including compensation. It is agreed that a desired outcome is an agreement with at least two years duration from the date of disposition of the program to expiry of the agreement.

6. Where no employees accept employment with the successful bidder and the employees have exhausted their rights under the collective agreement, the Union will refrain from pursuing a declaration of successor status.

7. Employees in these program areas are eligible for the Early Retirement Incentive Plan (ERIP) and Voluntary Departure Program (VDP) as outlined in this memorandum of understanding for a two-month period prior to the anticipated disposition date of the program(s) of the ASD initiative.

8. An employee receiving severance payment shall repay the payment if employed or contracted by the successful bidder or re-employed or contracted by the province during the period equivalent to the severance pay.

9. Where the provisions of Main Agreement Article 36 modify or are in conflict with the terms of this memorandum of understanding, the terms of this memorandum of understanding will prevail.

10. Respecting ERIP and VDP for ASD initiatives as outlined below:

A. Eligibility

The parties agree that regular employees in the Public Service Bargaining Unit in program areas identified as an ASD initiative which is to proceed to a successful bidder will be eligible for an ERIP and a VDP as outlined below.

B. Early Retirement Incentive Plan (ERIP)

(i) This ERIP is available to eligible employees who are at least 55 years of age on or before their ASD Initiative's effective date of disposition or have sufficient pre-retirement leave into the future to reach their 55th birthday.

(ii) For employees meeting the above criteria, ERIP shall provide for an unreduced pension if age plus years of contributory service add up to 80 (Rule of 80). For those employees eligible to retire whose combined age and service add up to less than 80, pension is reduced by 3% for every year their age is less than 60 or their age plus service is less than 80, whichever is the lesser.

(iii) In addition, employees approved for ERIP will also receive a lump sum payment equal to six months base salary which may be used as pre-retirement leave. Benefits under this provision shall not exceed the time that would be required to reach the employee's maximum retirement age.

C. Voluntary Departure Program (VDP)

- (i) A VDP is available to eligible employees who are not eligible to retire under ERIP because they are not 55 years of age or do not have sufficient pre-retirement leave to reach their 55th birthday.
- (ii) For employees meeting the above criteria the VDP shall provide for a lump sum payment of three weeks of base pay for every year (1827 hours at straight-time rate) of service seniority, or major part thereof, as a regular employee to a maximum of 12 months base pay.

D. Timing

These programs will be made available prior to the disposition date for the ASD initiative. The Employer may establish reasonable timeframes for employees to exercise their options to retire or sever under these voluntary programs. The employees last day at work under ERIP, last day on pay under VDP must be no later than the effective date of disposition. An option elected under this clause is irrevocable for 90 days or other period as agreed by the Privatization Impact Review Committee.

E. Funding

The cost of the ERIP and the VDP shall be borne by the applicable ministry and shall not be charged to the PSPP.

F. General

- (i) An employee receiving a lump sum payment or severance payment shall repay the payment if employed or contracted by the successful bidder or re-employed or contracted by the Province during the period equivalent to lump sum payment or severance pay.
- (ii) Eligible employees who take advantage of ERIP or VDP shall waive their rights to any severance payment pursuant to Articles 12, 13 and 36 of the Main Agreement.

This memorandum remains in force and effect for the term of the **2019**th Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 7
Re: Early Retirement Incentive Plan (ERIP) and
Voluntary Departure Program (VDP) for Privatization

1. Eligibility

The parties agree that regular employees in the Public Service Bargaining Unit whose work has been privatized pursuant to Main Agreement, Article 36 will be eligible for an Early Retirement Incentive Plan (ERIP) and a Voluntary Departure Program (VDP) as outlined below.

2. Early Retirement Incentive Plan (ERIP)

- (a) This ERIP is available to eligible employees who are at least 55 years of age (50 for staff working in Corrections Centre) on or before the effective date of privatization or have sufficient pre-retirement leave into the future to reach their 55th birthday (50th birthday for staff working in a Corrections Centre).

(b) For employees meeting the above criteria, ERIP shall provide for an unreduced pension if age plus years of contributory service add up to 80 (Rule of 80). For those employees eligible to retire whose combined age and service add up to less than 80, pension is reduced by 3% for every year their age is less than 60 (55 for staff working in a Corrections Centre) or their age plus service is less than 80, whichever is the lesser.

(c) In addition, eligible employees who qualify under (a) above and who are not offered a job with the private employer will also receive a lump sum payment equal to six months base salary which may be used as pre-retirement leave if they resign their employment and proceed to retirement. Benefits under this provision shall not exceed the time that would be required to reach the employee's maximum retirement age.

3. Voluntary Departure Program (VDP)

(a) A VDP is available to eligible employees who are not eligible to retire under ERIP because they are not 55 years of age (50 for staff working in a Corrections Centre) or do not have sufficient pre-retirement leave to reach their 55th birthday (50th birthday for staff working in a Corrections Centre).

(b) For employees meeting the above criteria the VDP shall provide for a lump sum payment of three weeks of base pay for every year (1827 hours at straight-time rate) of service seniority, or major part thereof, as a regular employee to a maximum of 12 months base pay.

4. Timing

These programs will be made available prior to the effective date of privatization. The Employer may establish reasonable timeframes for employees to exercise their options to retire or sever under these voluntary programs. The employee's last day at work under ERIP, last day on pay under VDP must be no later than the effective date of privatization. An option elected under this clause is irrevocable for 90 days or other period as agreed by the Privatization Impact Review Committee.

5. Funding

The cost of the ERIP and the VDP shall be borne by the applicable ministry and shall not be charged to the PSPP.

6. General

(a) An employee receiving a lump sum payment or severance payment shall repay the payment if employed or contracted by the private employer or re-employed or contracted by the Province during the period equivalent to lump sum payment or severance pay.

(b) Eligible employees who take advantage of ERIP or VDP shall waive their rights to any severance payment pursuant to Articles 12, 13 and 36 of the Main Agreement.

7. Term

This memorandum remains in force and effect for the term of the 2019th Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 9
Re: Clause 32.10, Article 36 and Memorandum of Understanding 6

The parties agree to apply the following provisions to employees who accept an offer of continued employment with another employer as referenced in Clause 32.10, Article 36 or Memorandum of Understanding 6.

1. In-Service Status

A regular employee shall be recognized as having in-service status for the purpose of applying on postings for regular positions in government. This in-service status will be recognized for a period of two years after the effective date of the transfer to the successful proponent, private employer or organization. For the purpose of such application only, their employment with the Employer will be deemed to have continued uninterrupted.

2. Reversal of Process

If, within a five-year period after date of disposition (Name of Initiative) Operation is returned to the Province, employees engaged in the returning Operation, who were employed by the Province at the time of disposition, will be returned to the Province.

3. Seniority Reinstatement

If re-employment occurs pursuant to (1) or (2) above, employees shall retain seniority earned while as a member of the Public Service Bargaining Unit, and shall be credited with seniority earned with the successful proponent, private employer or organization for the purposes of layoff and recall and other seniority related provisions.

4. Benefit Entitlement

If re-employment occurs pursuant to (1) or (2) above, employment will be deemed continuous for purposes of benefit entitlements under Article 25.

5. Duration

This memorandum remains in force and effect for the term of the **2019**th Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 10

Re: Early Retirement Incentive Plan – for LTD Employees

A. Early Retirement Incentive Plan (ERIP)

1. An Early Retirement Incentive Plan will be developed and offered to employees who:

- (a) are in receipt of long-term disability benefits, under the Totally Disabled Any Occupation provision;
- (b) are at least 55 years of age (50 for staff working in Corrections Center) at the time of the offering;
- (c) have actuarial disabled life reserve (DLR) values, at the time of offering, which exceeds the lump sum value of one year of LTD benefits; and,
- (d) are participating in the Public Service Pension Plan and eligible for retirement benefits under that plan.

2. For employees meeting the above criteria and subject to the Employer's approval, ERIP shall provide for a lump sum payment equal to six months base salary based upon the employees salary as at the date of disability. Benefits under this provision shall not exceed the time that would be required to reach the employee's maximum retirement age. The Employer can be directed to pay the lump sum to another designate by the employee.

3. Employees who receive the ERIP will not be eligible for benefits from Article 27.18 Retirement Allowance and Pre-Retirement Leave.

4. The Employer will consult with the Union with respect to timing and duration of the program.

5. The cost of ERIP shall be borne by the Employer and shall not be charged to the Public Service Pension Plan.

B. *Miscellaneous*

1. ERIP is voluntary and employees are entitled to remain on LTD provided they continue to meet the provisions of the LTD Plan.

2. The employee's entitlement to benefits under the LTD Plan shall, provided the employee remains eligible as per the definition of Totally Disabled Any Occupation, continue during the period of time that his/her application for retirement is being processed.

3. The LTD benefits will end on the date of commencement of paid absence prior to retirement in accordance with Appendix 4, Section 2.8 (b) Cessation of Benefits.

4. The Employer will notify the Union of employees who have been offered ERIP.

5. This Memorandum shall remain in effect during the term of the **20th** ~~19th~~ Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 11

Re: Devolution/Transfer of Ministry of Children and Family Development Programs

1. Given that the government intends to devolve/transfer responsibility from the Ministry of Children and Family Development to authorities that will be created under statute, and;
2. Given that the parties share an interest in facilitating employees being able to follow the work to the authorities, the following provisions have been agreed upon and the Employer and the Union will cooperate.
3. It is acknowledged that, subject to Section 35 of the Labour Relations Code, each authority will be a successor employer.

Consolidated agreement

4. Where Section 35 of the Labour Relations Code applies, each authority will recognize the existing union certification and meet with the Union prior to the transfer of the program for the purpose of consolidating the current main and applicable component agreements into one amended agreement for each of the following: the provincial community living services authority; regional children and family services authorities; and, aboriginal children and family services authorities which is relevant and applicable to each employer. If an extension of the term of the agreement is required, the parties will agree on appropriate amendments including compensation. It is agreed that a desired outcome is an agreement with at least two years' duration from the date of disposition of the program to expiry of the agreement.

Security and Transfer Provisions

5. **In-Service Status**
 - (a) A regular employee who transfers to an authority will be recognized as having in-service status for the purpose of applying on postings for regular positions in the Province. This in-service status will be recognized for a period of two years after the effective date of the transfer of that employee. For the purpose of such application only, their employment with the Employer will be deemed to have continued uninterrupted. During the two years, transferred employees will receive credit for their years of continuous service with the Province prior to transfer for purposes of Public Service job competitions.
 - (b) Where an employee has applied on a position as provided in (a) above, their years of continuous service in the Public Service to the date at transfer from the Public Service shall be considered as provided by Clause 12.3 - Selection Procedure of the Thirteenth Master Agreement.
 - (c) Notwithstanding (a) and (b) above, a transferred former employee who is an unsuccessful applicant to a posted position does not have the right to appeal the results of the competition.
6. In negotiating the consolidated agreements referred to in Section 4, the authorities will agree to incorporate access to employment with other authorities on an inter-authority basis, subject to the cultural and program requirements of aboriginal authorities. Access to employment will include inter authority in-service recognition for posted positions, transfers and vacancies on labour adjustment.
7. In the application of Section 6, an employee who is hired into a vacant position with an authority and who was employed by another authority at the time of hire will be credited with the employee's continuous service with the predecessor community living, regional or aboriginal authority, including previous continuous service with government for the purpose of seniority-related provisions of the collective agreement applying to an authority, including layoff and recall.

Employment Security

8. Where an employee follows the work to an authority and is subsequently subject to layoff, then the Employer shall ensure that the employee's employment is maintained until March 30, 2006 or one year from the date of transfer of the program responsibilities to an authority, whichever is later.

Application of Article 36

9. The placement provisions of Main Agreement, Article 36, not the Memorandum of Understanding regarding Employment Security will apply to employees who are offered and decline employment with an authority. Employees hired after the date of ratification will be subject to the provisions of Article 13/31 as applicable.

(Renew)

MEMORANDUM OF UNDERSTANDING 12 **Re: Joint Advisory Committee**

1. There shall be a joint advisory committee which shall consist of three representatives appointed by the Employer and three representatives appointed by the Union. The Employer and the Union may each appoint one alternate committee member. The purpose of the Committee shall be to consider and make recommendations to the Bargaining Principals on all matters related to the effective administration of the Short-Term Illness and Injury Plan and Long-Term Disability Plan and the Rehabilitation Committee to consider and make recommendations to the Bargaining Principals on any questions which may arise related to interpretation or application of the wording of Appendix 4.

2. The Joint Advisory Committee will make recommendations concerning the Rehabilitation Committee in order to:

(a)

- improve access to the rehabilitation process for employees incapacitated for their own occupation through illness or injury;
- improve rehabilitation programs to return employees to their own or other occupations as soon as possible;
- identify and address systemic causes of illness and injury and consequent STIIP/LTD usage.

(b) Clearly establish responsibility for case management with the Committee providing advice and recommendations as required. Such recommendations may include:

- improved placement options for those employees who are capable of performing alternative employment, in addition to the recommendations identified in Appendix 4, Part III (2)(d)(4).

Disability Case Management representatives are to be designated as employer representatives to the Committee.

- (c) Ensure sharing of all information pertinent to a case with the parties involved (union, employer, Occupational Health and Rehabilitation, insurance carrier).

Develop confidentiality standards specific to the process and consistent with the current legislation to protect the privacy of information shared.

- (d) Review current forms used for STIIP and LTD and Rehabilitation in order to make them simpler and more effective and/or eliminate duplication.

3. The parties share a desire to minimize health risks and improve absenteeism rates due to illness and injury and agree to jointly explore programs and processes to obtain that goal. Therefore, the Joint Advisory Committee shall:

- (a) review and make recommendations to the Bargaining Principals regarding ministries and/or branches and regions within ministries where implementation of a program modelled on the Employee Assistance and Health Promotion Program (piloted by Region 2 of the Ministry of Social Development and Economic Security) or other similar programs, may be reasonably expected to have a positive impact on employee health and absenteeism rates; and,
- (b) review and make recommendations to the Bargaining Principals regarding establishment or modification of musculoskeletal and other injury and illness prevention programs in areas where the incidence of such injury warrants further prevention activity.
- (c) review and make recommendations to the Bargaining Principals on an earlier and consistently applied adjudication of benefits during the STIIP period by the LTD benefit carrier under a mutually agreed plan.

The Joint Advisory Committee shall consult with the Provincial Joint Occupational Health and Safety Committee, the Rehabilitation Committee and/or Ministry Joint Committees, as appropriate.

4. The parties agree to refer the STIIP issues below to the Joint Union/Employer STIIP Committee created as a pilot project for the duration of the 20th ~~19th~~ Main Agreement.

- (a) ensure appropriate and consistent adjudication of STIIP claims;
- (b) ensure that requests for additional information on STO2 forms are processed expeditiously and limited to instances where the information is objectively incomplete; and,
- (c) promote opportunities for voluntary rehabilitation initiatives that enable earlier return to work.

Where STIIP benefits have been denied and/or management is not accepting doctors' certificates which the Union believes are adequate and meet the criteria for information required consistent with the mutually agreed STO2, Part B Instruction Form, and where in the Union's view the Employer's response/position is unacceptable, the Joint Union/Employer STIIP Committee will expeditiously address the issue.

This is not intended to circumvent the grievance process outlined in the collective agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 13
Re: Article 25.8 - Legislative Changes

Changes to the Employer health tax or any other premium imposed for purposes similar to the Medical Services Plan premium are excluded and will not be required to be used to increase other employee benefits. If the Employer health tax is eliminated and not replaced with another form of employer paid benefits, Article 25.8 will be triggered.

If Article 25.8 is triggered, the liability arising from the amount of savings from the legislative changes to the MSP is based on 2017. The parties will endeavour to mutually agree on the liability arising from the MSP savings based on 2017 projected forward. If the parties cannot agree, any party may refer the matter to arbitration.

The liability arising in this Memorandum of Understanding shall expire at the end of the ~~20th~~^{19th} Main Agreement unless renewed by mutual agreement of the parties.

(Renew)

MEMORANDUM OF UNDERSTANDING 15
Re: The Application of Main Agreement Clause 13.3(a)(4) and Main Agreement Article 19

Regular employees who have opted for auxiliary recall and who are unable to work on recall or during the recall period due to illness or injury will be covered by Appendix 4, Part I STIIP, provided:

1. They meet all the conditions of the Plan, and
2. No other employee aside from the regular incumbent is in receipt of STIIP in respect of that work.

Notwithstanding Appendix 4, the extent of the STIIP benefit only covers the period of lost work opportunity.

(Renew)

MEMORANDUM OF UNDERSTANDING 16
Re: Auxiliary Employees – STIIP

Subject to the eligibility requirements of Clause 31.12, auxiliary employees will continue to be covered by the provisions of Appendix 4, Part I as outlined in the 13th Master Agreement signed May 23, 2001 (ie., seven months).

(Renew)

MEMORANDUM OF UNDERSTANDING 17
Re: Vacation Adjustments for Remote Locations

The parties agree that recruitment and retention is an issue in certain geographical locations. Employees who reside and work in the following locations will be provided an extra vacation day, effective the 2010 vacation year:

Alert Bay	Alexis Creek
Atlin	Bella Coola (including Hagensborg & Waglisla)
Burns Lake	Chetwynd
Dawson Creek	Dease Lake
Fort St. James	Fort St. John
Fort Nelson	Fraser Lake
Gold River	Haida Gwaii
Hazelton	Houston
Hudson's Hope	Kitimat
McBride	Mackenzie
New Denver	Port Alice
Port Hardy	Port McNeill
Prince Rupert	Smithers
Stewart	Terrace
Tumbler Ridge	Valemount

(Renew)

MEMORANDUM OF UNDERSTANDING 19
Re: Seniority for Voluntary Transfer of Auxiliary Employees

An auxiliary employee who voluntarily transfers to a new auxiliary position in their same classification in a different location, will retain their accrued hours worked for the purpose of placement on the salary grid, benefit entitlement and vacation accrual. The Employer will no longer require auxiliary employees to sign a letter of resignation when moving from one geographic location to another.

Upon relocation, an auxiliary employee moving to a new auxiliary position in a different location will not have their seniority transferred for the purposes of recall in the new location, except as provided by Clause 31.3(b).

(Renew)

MEMORANDUM OF UNDERSTANDING 20
Re: Project Employees

The parties agree to establish a pilot project to provide an alternate means of undertaking time limited project work. It is anticipated that this pilot will also facilitate a reduction in the number of contractors engaged to do work which could be performed by employees. To meet these objectives, the following provisions will apply:

- (1) Project employees will be engaged for projects of 12 to 24 months' duration. Where a project employee is retained beyond the 24 month maximum, they will be deemed a regular employee from their initial date of hire.
- (2) Project employees' terms and conditions of employment shall be those applicable to regular employees under this agreement except as provided in this memorandum. In-service status shall not apply except as provided pursuant to #3 below.
- (3) At the completion of the project, such employees will receive severance pay in the amount of three weeks' pay per year of project service or portion thereof. Project employees will have no residual rights in respect of the application of any provision of the Main Agreement following severance, except that in-service status will apply for the six months following. A project employee shall repay severance if re-employed or contracted during the period equivalent to the severance pay.
- (4) Projects for which these employees may be hired shall be as mutually agreed by the Principals, or their designates, within five workdays or request, where possible, but no later than 10 workdays.
- (5) The Employer will provide copies of appointment letters, including the names of project employees and duration of the project, to the Union.

**Note: remainder of MOU 21 maintains current language*

MEMORANDUM OF UNDERSTANDING 21

Re: Memorandum of Understanding Respecting the Public Service Job Evaluation Plan

1. Effective April 1, 2024 **August 1, 2026** amend Appendix L of the Memorandum of Understanding respecting The Public Service Job Evaluation Plan, as follows:

GROWTH PLAN TO THE SOCIAL PROGRAM OFFICER (SPO) R24 LEVEL

Full Working Level SPO R24 Grid 24, Step 1
Level 2 Grid 23, Step 1 913 hours

Level 1 Grid 22 Grid 23, Step 1 913 hours
Training Placement Grid 21, Step 1 6 months

2. Effective April 1, 2024 **August 1, 2026** amend Appendix L of the Memorandum of Understanding respecting The Public Service Job Evaluation Plan, as follows:

GROWTH PLAN TO THE CORRECTIONAL SERVICES (CS) R18

Full Working Level Correctional Services (Growth) level Grid 18, Step 1
Level 2 Grid 17, Step 1 913 hours
Level 1 Grid 16 Grid 17, Step 1 913 hours
Training Placement Grid 14, Step 1 6 months Until training is completed (up to approximately 6 months). After completion of training, employees move to the appropriate level of the model.

Note: The Parties agree to conduct a review of any other Growth Series previously agreed to by the parties within 6 months of ratification.

MEMORANDUM OF UNDERSTANDING 22

Re: ~~Temporary~~ Market Adjustments (MA)

The parties recognize that recruitment and retention challenges with specific bargaining unit positions may occur over the life of the collective agreement. The intention of this memorandum is to provide an expeditious means of addressing salary issues which may be associated with such recruitment and retention challenges.

~~Temporary~~ **m**Market adjustment(s) subject to this memorandum are guided by the following:

MoveUP/E&OE/MOS 2025

1. Positions identified to receive an TMA may include specialized and/or unique positions that are not part of a larger generic group; or the recruitment challenge can be directly linked to the geographic location of the work.

2. The TMA is not considered as base pay, but is pensionable and, effective April 1, 2013, is applied to overtime. Effective April 1, 2015, the TMA will be **is** included in all calculations involving base pay.

3. An eligible employee in receipt of salary protection pursuant to Clause 27.7 will have the TMA reduced by the corresponding amount of salary protection.

4. Except in cases of temporary appointments and substitution pay, an **Once a market adjustment has been implemented it cannot be removed from an** eligible regular employee in receipt of a TMA will continue to receive the TMA should it be discontinued pursuant to #5 below pursuant to #5 below so long as they remain in the position and the principal duties of the position remain unchanged.

5. Any temporary market adjustment is subject to mutual agreement between the Bargaining Principals. for the term of the 19th Main Agreement except that t**he Employer may terminate the payment of any TMA with 60 days' notice to the Union. Except as provided in #4 above, payment of the TMA will cease on the expiry or termination date. Upon the expiry or termination date, the terminated MA will not be applied to employees newly hired into the position.**

This memorandum supersedes and nullifies any former agreement(s) respecting the matter of temporary market or wage adjustments.

The parties agree to temporary market adjustments as per the attached Appendices A and B to expire in accordance with #5 above.

*Note: For the purposes of this memorandum, references to ministries include all Agencies, Boards and Commissions that are subject to the **2019th** Main Agreement.*

Note: Market adjustments cannot be removed by the Employer prior to March 31, 2031. This shall apply to all temporary Market adjustments and Market adjustments instituted as part of the 20th Main Public Service Collective Agreement

APPENDIX A TO MOU

Re: Temporary Market Adjustments

	Position / Classification	TMA %	Effective Date
1	Information Systems R24	6.6	Dec 10, 2000
	Information Systems R24	9.9	Apr 1, 2024
	Information Systems R27	6.6	Dec 10, 2000
	Information Systems R27	9.9	Apr 1, 2021
	Information Systems R30	9.9	Dec 10, 2000
2	Economist R27	3.3	Apr 1, 2001
	Economist R30	6.6	Apr 1, 2001
	Economist R33	6.6	Apr ou1, 2001

3	Policy Analyst R27	3.3	Apr 1, 2001
	Policy Analyst R30	6.6	Apr 1, 2001
4	Financial Officer R18	6.6	Apr 2, 2006
	Financial Officer R21	6.6	Apr 2, 2006
	Financial Officer R24	6.6	Apr 2, 2006
	Financial Officer R27	6.6	Apr 2, 2006
	Financial Officer R30	6.6	Apr 2, 2006
	Financial Officer R33	6.6	Jan 15, 2020
5	Tax Auditor R24	6.6	Apr 2, 2006
	Tax Auditor R27	6.6	Apr 1, 2001
	Tax Auditor R30	6.6	Apr 1, 2001
6	Education Officer R27	3.3	Apr 1, 2001
7	Planning Officer R27	3.3	Apr 1, 2001
	Planning Officer R30	3.3	Apr 1, 2001
8	Project Officer - Environmental Assessment Office (AO R27)	6.6	Apr 2, 2006
9	Intellectual Property Managers, IPP, L&CS (AO R24)	9.9	Apr 2, 2006
10	Biologist R27	3.3	Apr 1, 2007
	Biologist R30	3.3	Apr 1, 2007
11	Commercial Transport Inspector R21 (Scale Supervisor)	3.3	Apr 1, 2007

* The TMA applies solely to those positions where a recognized accounting designation (ie., CPA, CMA, CGA, CA) is a requirement of the position and the incumbent possesses such designation.

~~Note: The new Canadian designation of Chartered Professional Accountant (CPA) will also be included as a recognized accounting designation.~~

APPENDIX B TO MOU 22

	Classification Title	±MA	With ±MA Paid At	Effective Date
1	Correctional Services (Youth Custody) R18	+1 grid	Grid 19	Apr 1, 2015
	Correctional Services (Adult Custody) R18	+2 grids	Grid 20	Apr 1, 2019
	Correctional Services (Adult Custody) R18	+3 grids	Grid 21	Apr 1, 2020
	Correctional Services R21	+1 grid	Grid 22	Sept 28, 2008
	Correctional Services R24	+2 grids	Grid 26	Apr 1, 2022
	Correctional Services R27	+1 grid	Grid 28	Sept 28, 2008
2	Correctional Services G11 - Step 1	+1 grid	Grid 12 - Step 1	Sept 28, 2008
	Correctional Services G12 - Step 1	+1 grid	Grid 13 - Step 1	Sept 28, 2008
	Correctional Services G13 - Step 1	+1 grid	Grid 14 - Step 1	Sept 28, 2008
3	Instructor (Corrections) R18	+4 grids	Grid 22	Apr 1, 2019
	Instructor (Corrections) R21	+3 grids	Grid 24	Sept 28, 2008
4	Deputy Sheriff R18	+1 grid	Grid 19	Apr 1, 2019
	Deputy Sheriff R18	+2 grids	Grid 20	Apr 1, 2020
	Deputy Sheriff R18	+3 grids	Grid 21	Apr 1, 2021
	Deputy Sheriff (ICM/PIO) R18	+2 grids	Grid 20	Apr 1, 2019
	Deputy Sheriff (ICM/PIO) R18	+3 grids	Grid 21	Apr 1, 2020
	Deputy Sheriff (ICM/PIO) R18	+4 grids	Grid 22	Apr 1, 2021
	Deputy Sheriff R21	+2 grids	Grid 23	Apr 1, 2019
	Deputy Sheriff R21	+3 grids	Grid 24	Apr 1, 2020
	Deputy Sheriff R24	+2 grids	Grid 26	Apr 1, 2022
	Deputy Sheriff R27	+1 grid	Grid 28	Apr 1, 2022
5	Instructor (Sheriff) R21	+3 grids	Grid 24	Sept 28, 2008

	Classification Title	±MA	With ±MA Paid At	Effective Date
6	Deputy Sheriff Senior Intelligence Officer R21	+5 grids	Grid 26	Apr 1, 2022
7	Conservation Officer - Instructor R21	+3 grids	Grid 24	Apr 1, 2012
8	Fire Weather Forecaster R24*	+3 grids	Grid 27	Apr 1, 2015
	Fire Weather Forecaster R27**	+3 grids	Grid 30	Sept 1, 2020
9	Social Program Officer R24	+1 grid	Grid 25	Apr 1, 2023
10	Social Program Officer (CYMH) R25	+1 grid	Grid 25	Nov 1, 2016
	Social Program Officer (CYMH) R24	+4 grids	Grid 28	Apr 1, 2023
11	Social Program Officer (CYMH) R27	+3 grids	Grid 30	Apr 1, 2023
	Social Program Officer (CYMH) R30	+2 grids	Grid 32	Apr 1, 2023
12	Social Program Officer (Child Protection) R24	+3 grids	Grid 27	May 1, 2023
	Social Program Officer (Child Protection) R27	+1 grid	Grid 28	May 1, 2023
13	Meat Hygiene and Agri-food Inspectors and Seafood Inspectors R21 **	+1 grid	Grid 22	Apr 1, 2021
14	Agri-food Inspection Supervisor R27***	+1 grid	Grid 28	Apr 1, 2021
15	Court Clerk R12	+3 grids	Grid 15	Apr 1, 2022

* Classified as Scientific/Technical Officer (FWF) R24

** Classified as Scientific/Technical Officer (FWF) R27

*** Classified as Scientific/Technical Officer R21

MoveUP/E&OE/MOS 2025

MEMORANDUM OF UNDERSTANDING 25

Re: Mental Health in the Workplace

The Union and the Employer recognize the importance of supporting and promoting a psychologically healthy workplace and, as such, will continue to adhere to all applicable statutes, policies, guidelines, and regulations pertaining to the promotion of mental health. Mental health will continue to be incorporated into the Employer's Occupational Health and Safety Program. The parties recognize that an integrated approach where employees and the respective ministries share the responsibility for workplace mental health is essential.

Accordingly, the Employer and Union will take steps to adopt 2013 **the CSA Z1003** Psychological Health and Safety in the Workplace **standard** (CSA Z1003-13), **in** an ongoing process of continual improvement. Ministry leadership teams will be provided an orientation to The Standard **as requested**. ~~During the term of the 19th Main Agreement an evaluation of ministry progress toward The Standard and an inventory of adoption and innovations toward The Standard, as well as the leadership team orientation materials, will be provided to Article 29 committees and the Article 22.2 Provincial Joint Occupational Health and Safety Committee (PJOHSC). Thereafter, a~~ **A** workforce mental health report outlining measures and accomplishments will be provided to the Article 29 and PJOHSC on an annual basis.

The Employer will continue to support the provision of appropriate education and training in mental health for employees who are interested in taking such training.

The Employer is committed to incorporating trauma informed practice and conflict resolution training in the workplace when developing or redeveloping existing programs or educational material.

This memorandum remains in force and effect for the term of the 19**20**th Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 26

Re: MSDPR Pilot Project

1. (a) Effective September 1, 2019, the earned days off resulting from a modified workweek and/or shift pattern shall be scheduled evenly throughout the days of the workweek at the local level for all Employment and Assistance Workers (Community Program Officer R15). Such scheduling shall be on the basis of seniority.

- (b) Once scheduled, an employee's earned day off will not be changed without mutual agreement with the employee.
- (c) Prior to implementing the modified workweek, affected employees will be canvassed to see if they are interested in changing their earned days off schedule by seniority.
2. The Employer agrees to consult in a meaningful fashion with the Union about any service delivery changes resulting from the poverty reduction plan implementation.
3. The Employer agrees to engage the Union in a review of attrition and retention rates in MSDPR.

Explanatory note: the parties amended this MOU on December 18, 2019 with MOA "Memorandum of Understanding (MOU) 26, Re: MSDPR Pilot Project". The parties also augmented this MOU with MOA "re: MSDPR Working from Home and MOU 26" dated July 22, 2020.

(Renew)

MEMORANDUM OF UNDERSTANDING 27
Re: Union/Management Joint Training

In keeping with the intent of building constructive union-management relations the parties agree to jointly develop a training program to be delivered to both steward and manager Step 2 designates during the term of the 19th Main Agreement.

The purpose of this training program is to develop an:

- appreciation of the other party's rights, roles and responsibilities in the workplace;
- understanding and application of the principles of problem solving;
- understanding and applying the basic principles of labour relations;
- understanding and applying basic elements of effective communication.

The training shall be delivered through self-directed e-learning modules, developed by a team of qualified union and employer representatives.

Following the introduction of the e-learning modules, the parties agree to jointly deliver virtual follow up sessions to supplement the e-learning, provided there is enough enrollment as mutually determined by the parties.

In addition, for any follow up live delivery as agreed to by the parties, instructors shall receive appropriate training as agreed to by the parties.

Once the number of instructors has been established by the parties, union instructors shall be selected by the Union.

Union and management instructors who are members of the bargaining unit attending or delivering the training, including necessary travel time, will be on leave of absence without loss of basic pay and shall be reimbursed for expenses by the Employer.

Stewards who attend training will be on leave of absence without loss of basic pay and shall be reimbursed for expenses by the Union.

(Renew)

MEMORANDUM OF UNDERSTANDING 28
Re: Protocol for Joint Union Management Training Initiatives

The parties share a common interest in developing mechanisms to further facilitate the joint training initiatives specified in Articles 1 and 22. To progress in this area the parties will establish a joint union/management training steering committee.

The purpose of the Committee is to provide support for joint training initiatives and advice on program content, delivery mechanisms and implementation as appropriate. The Committee will be comprised of three members appointed by the Union and three members appointed by the Employer and will be co chaired.

The role of the Committee in joint training initiatives is as follows:

- to support and assist in carrying out training needs identification as required;
- to provide input and advice on specific training proposals and initiatives;
- to review current and planned joint training initiatives and provide advice on implementation issues;
- to promote and support joint training initiatives;
- to review program evaluations and make recommendations on changes to the joint programs;
- to participate in training programs, as appropriate;
- with specific regard to Article 29, the Committee will develop a training program for members of ministry joint committees dealing with the role of such committees, conflict resolution, consensus building, joint problem solving, agenda development, minute recording and other issues mutually agreed to by the Committee.

The Committee will meet within 60 days of the signing of this agreement and thereafter as required.

(Renew)

MEMORANDUM OF UNDERSTANDING 29
Re: Stewards at Step 2 of the Grievance Procedure

The parties agree to the following provisions concerning the number of stewards, their jurisdiction and mandate at Step 2 of the grievance procedure:

1. The Union is entitled to at least one steward per worksite to represent employees at Step 2 of the grievance procedure. The parties may agree to additional stewards in large worksites or worksites with shift operations.
2. In the absence of a steward, another steward at the worksite will represent the employee at Step 2.
3. Where there is no steward at the worksite, another steward within the same ministry administrative management area will represent the employee at Step 2.
4. Where the steward within the same ministry administrative management area is outside of the grievor's geographic headquarters, another steward within the geographic headquarters may be used. It is understood that the use of this provision will be limited as much as possible and that any problems related to the administration of this provision will be referred to the joint committee in (8) below for resolution.
5. The mandate of the steward at Step 2 is to:
 - (a) Present the grievance at Step 2.
 - (b) Conduct the Step 2 meeting with the Step 2 designate. Where it is not feasible for the steward and Step 2 designate to meet personally, the Step 2 meeting may be conducted by phone.
 - (c) Attempt to conclude the grievance at Step 2. It is understood that settlements reached in this process are without prejudice to the positions of either party respecting the issue in dispute.
6. When a steward is required to leave their worksite to present grievances at Step 2, permission to leave their work shall be obtained as required by Clause 2.6(c).
7. Nothing in this memorandum is meant to prevent or discourage the settlement of grievances at Step 1 of the grievance procedure.
8. There shall be a joint committee established to monitor the progress and administration of this memorandum with the goal of improving its operation, resolving problems or disputes, and gathering and sharing of relevant information. The Committee shall be comprised of two representatives of the Union and two representatives of the Employer.

(Renew)

MEMORANDUM OF UNDERSTANDING 30
Re: Priority Placement and Employment Equity

The parties support the recruitment and development of a well-qualified and efficient Public Service that is representative of the diversity of the people of British Columbia and the training and development of employees to foster career development and advancement.

The parties will cooperate in the identification and removal of barriers which restrict or inhibit people from being employed, advanced or trained in the Public Service.

Some examples of typical barriers are:

- discriminatory attitudes or behaviour such as bias, stereotyping and harassment by co workers, supervisors and managers;
- failure to appreciate cultural differences because of a lack of familiarity with the cultural values of the designated groups or the group's lack of familiarity with the cultural values of the Public Service;
- lack of information about opportunities for employment, training, special projects or promotions, etc.;
- physical barriers such as workplaces, facilities, jobs and tools that may need to be adapted for use by individuals from the designated groups;
- systemic barriers such as employment policies, practices and systems which have an adverse impact on designated groups. An example of a systemic barrier is a qualification statement requiring years of experience rather than specifying the type and depth of experience that is needed.

In order to meet the above objectives and those in Section 2 of the Public Service Act and to redress existing employment imbalances and disadvantages ministries may use remedial measures such as:

- providing career counselling, mentorship programs, internship training opportunities or other developmental opportunities to employees;
- outreach recruitment (including outreach to other ministries) encouraging members of designated groups to apply for jobs in the Public Service, providing them with information on employment opportunities, how to apply for positions, how to prepare for interviews, etc.

Where the application of remedial measures outlined above do not meet the objectives of the Act, the Head of the BC Public Service Agency or their designate may, after consulting with the President of the B.C. General Employees' Union or their designate, in respect to a vacancy or class of vacancies in the Public Service Bargaining Unit, identify that applicants to a posting be:

- (a) limited to employees covered by Clauses 12.9, 13.3, 13.4, Article 36;
- (b) limited to employees to encourage career development and advancement;
- (c) limited to employees of a stated occupational group, position level or organizational unit;
- (d) limited to employees in a stated geographical area or locale.

Where the application of remedial measures outlined above do not meet the objectives of the Act, the Head of the BC Public Service Agency, or their designate, and the President of the B.C. General Employees' Union or their designate may mutually agree to limit or give preference in a manner intended to achieve employment equity objectives.

(Renew)

MEMORANDUM OF UNDERSTANDING 31

Re: Regular Part-time Employees

The parties acknowledge that as a general principle throughout government service regular part-time employees should have access to increased hours of work opportunities up to full-time hours prior to auxiliary employees.

In view of the above, the parties agree to renew pilot project(s) where regular part-time employees will be given the opportunity to accept work beyond their regular part-time schedule by mutual agreement.

The parties also agree to establish a joint committee to monitor the implementation and success of the pilot project(s), which shall utilize the following approach:

- (1) Regular part-time employees, with the agreement of the Employer, may specify that they wish to opt for temporary increased hours of work opportunities.
- (2) Such agreements identified in (1) above shall be in writing and be effective for a six-month period commencing April 1, 2001.
- (3) Where it is known for at least a week in advance that such temporary increased hours of work opportunity is available, the Employer, subject to operational requirements, will pre-schedule regular part-time employees on the basis of service seniority, prior to auxiliary employees, provided:
 - (a) Opportunities for additional work assignments must be for at least a full block within a cycle (eg., five shifts on a 5:2 pattern; four shifts on a 4:3 pattern);
 - (b) The maximum biweekly hours shall not exceed the regular full-time hours of a full-time employee in the same work unit;
 - (c) There shall be no increased cost to the Employer, including but not limited to premiums or penalties attributed to going on or coming off the temporary increased hours of work schedule;
 - (d) Work assigned/offered must be within the same classification in which the regular part time employee usually works as a regular part-time employee;
 - (e) Part-time employees whose part-time status is derived from a job share agreement shall not be entitled to increase their hours under this arrangement, except by mutual agreement.
 - (f) Lost work opportunities resulting from part-time regular employees accepting an increased hours of work opportunity or reverting to their part-time position following completion of the additional work assignment shall not be the Employer's responsibility.
 - (g) Employees who have worked an increased hours of work schedule for any period in excess of two calendar weeks and who are subsequently unable to report for work due to illness or injury during the period of increased hours of work, and are entitled to benefits pursuant to Appendix 4, will have their STIIP benefit calculated on the basis of the full-time work. This calculation based upon increased hours of work will continue for the duration of the increased hours of work and thereafter revert to a benefit based upon the employee's part-time appointment.

Re: Scheduling of Earned Time Off and Vacation on Layoff

Auxiliary employees, **and effective April 1, 2026 Seasonal Regular Employees under MOU 35**, who have earned time off (ETO) will have their earned time off scheduled as time off commencing at the effective date of layoff.

Auxiliary **and Seasonal Regular** employees may, on request, also schedule earned vacation credit commencing at the effective date of layoff. In such cases, the provisions of Clause 18.5 of the Main Agreement shall not apply.

The auxiliary **and Seasonal Regular** employee will not be subject to recall during the period of the scheduled earned time off or vacation.

Employees on scheduled ETO or vacation past the effective date of layoff will not be grounds for a claim from another employee that they have been laid off out of order of seniority or that the employee had not been recalled in order of seniority.

Consequential Amendment:

MEMORANDUM OF UNDERSTANDING 35

Re: Seasonal Regular Employees – BC Wildfire Service

The purpose of this Memorandum of Understanding is to address the employment status of certain auxiliary employees currently existing with BC Wildfire Service ("BCWS").

1. Effective April 1, 2019:
 - a. the Employer will offer an auxiliary employee who has accumulated 4263 auxiliary seniority hours in any classification and any seniority unit within BCWS, to convert to seasonal regular status with the BCWS (the "Seasonal Regular Employees");
 - b. the 4263 auxiliary seniority hours will include all hours worked at straight time and designated paid holidays. It does not include any hours lost pursuant to Article 31.4 or any overtime hours worked/paid within BCWS; and,
 - c. the auxiliary employee must accept the offer within 14 days of receipt and if employee does not accept, the employee remains an auxiliary employee until the following year when the auxiliary employee may accept the Employer's offer for conversion to seasonal regular status.
2. In every year subsequent to 2019:
 - a. the Employer will offer an auxiliary employee who has accumulated 4263 auxiliary seniority hours in their current seniority unit to convert to seasonal regular status with the BCWS by February 1st of that year (the "Seasonal Regular Employees"); and,
 - b. the auxiliary employee must accept the offer within 14 days of receipt and if the employee does not accept, the employee remains an auxiliary employee until the following year when the auxiliary employee may accept the Employer's offer for conversion to seasonal regular status.
3. The following terms and conditions of employment will apply to the Seasonal Regular Employees:

- a. The Seasonal Regular Employees will have regular status with corresponding pay and benefits in accordance with the Main and Component Agreements, with exceptions as indicated below.
- b. The Seasonal Regular Employees have an annual guaranteed six month term at full-time hours, which is equivalent to half-time on a regularly scheduled basis.
- c. The Seasonal Regular Employees are subject to recall and layoff pursuant to Main Agreement, Article 31.5(b) and (c) - Layoff and Recall. In the event that the application of Article 31.5(b) and (c) may result in an employee not maintaining the guaranteed annual term in 3(b) above, the Employer may recall the employee out of order of seniority in order to meet that commitment.
- d. The Seasonal Regular Employees' term will be determined based on operational demand and consistent with start and finishing dates as set out in the BCWS' Standard Operating Guideline for Recall of Auxiliary or its equivalent. The Seasonal Regular Employees will be considered on layoff at the end of the term.
- e. The Seasonal Regular Employees' auxiliary and regular seniority hours combined will be used as service seniority for the purpose of recall and layoff.
- f. The Employer will provide the Seasonal Regular Employees with notice by March 1st of every year of the start and finishing dates of the guaranteed six-month term.
- g. The employees are required to report to work for the term set out in the notice in 1(f). Exceptions to this will be in accordance with the applicable Main Agreement leave and notice provisions for regular employees.
- h. The Seasonal Regular Employees' term may be extended by mutual agreement between the affected employee and the Employer. The extensions will be offered to Seasonal Regular Employees on the basis of service seniority for the position and prior to auxiliary employees. Extensions do not obligate the Employer to increase the guaranteed length of term in subsequent years.
- i. The Seasonal Regular Employees' term will not exceed a total annual hours of work of 1827 hours in 26 pay periods. **By mutual agreement, Seasonal Regular Employees' status may be changed to full time regular employees.**
- j. The Seasonal Regular Employees will earn regular service for all hours worked at straight- time rates, in accordance with Main Agreement, Clause 11.1 – Seniority Defined.
- k. Article 14.2 of the Main Agreement does not apply to the Seasonal Regular Employees, with the exception of Article 14.2(b).
- l. Proration of service seniority, benefits, paid time off and other allowances are as

described in Information Appendix A attached to this agreement.

- m. All earned ~~annual leave, ETO and CTO~~ must be taken within the term it is earned and any remaining will be paid out if not used in that term. **All earned annual leave and ETO may, at the employee's discretion, be taken immediately after the conclusion of the normal term, pursuant to MOU 32. Proration is based on the hours (which include the use of annual leave and ETO) less than 1827 in 26 pay periods.**

Any ETO or annual leave that would cause the hours worked to exceed 1827 in 26 pay periods will be paid out.

- n. The BCWS "Standard Operating Procedure – Pre-Employment Fire Crew *Fitness Standard (WFX-FIT)*" applies to Seasonal Regular Employees in positions which require the passing of the WFX-FIT Test, or the applicable fitness standard test as the case may be. The Employer is not obligated to find any other work for the Seasonal Regular Employee following failure to pass the WFX-FIT Test. The Seasonal Regular Employee will be deemed to have been ineligible for the work term and will be considered on layoff until a subsequent opportunity for work is available in that position which will be offered on the basis of seniority and prior to auxiliary employees. Should the subsequent opportunity be that same year, there is no guarantee of a six month continuous term.
- o. STIIP benefits will be calculated in accordance with Main Agreement, Appendix 4, Article 1.1(e) unless an employee works a full-time schedule for any period in excess of two calendar weeks and is subsequently unable to report to work due to illness or injury during the period of scheduled full-time work, and is entitled to benefits pursuant to Appendix 4. Such employee will have their STIIP benefit calculated on a basis of the full-time work. This calculation based upon full-time work will continue for the duration of the scheduled full-time term and thereafter will revert to a benefit based upon the employees' regular part-time status (e.g. 0.5 FTE annually).
- p. Main Agreement, Appendix 4, Article ~~1.10~~ **1.9** will apply to STIIP benefits upon layoff. The layoff period will run concurrent with the STIIP period. **Accordingly, Seasonal Regular employees receiving benefits under Appendix 4, Article 1.9 are not entitled to MOU 32.**
- q. Eligibility for LTD will be in accordance with Article 2.1 of Appendix 4 of the Main Agreement.
- r. The benefit level for LTD will be calculated on the basis of the formula outlined in Appendix 4, Article 2.2 of the Main Agreement.
- s. The Seasonal Regular Employees' entitlement to Main Agreement, Article 20 – Special and Other Leave, will end when on layoff at the end of the term.
- t. The Seasonal Regular Employees are entitled to Main Agreement, Article 21 – Maternity, Parental and Pre-Placement Adoption Leave Allowance in accordance with Article 21.12 of the Main Agreement.

- u. The employer-paid benefit coverage (i.e. basic medical, extended health and care, dental, group life, and LTD) for the Seasonal Regular Employees will be extended to the last day of the month following the month the employee is laid off. If the employee takes another auxiliary appointment outside BC Wildfire Service, subsequent to layoff, the extension of the employer-paid benefit portion will not apply. The Seasonal Regular Employees may maintain their benefit coverage at their own expense by paying the premium themselves.
- 4. The Employer may continue to utilize the auxiliary category of employment as required.
- 5. Unless otherwise stated in this agreement, the Main and Component Agreements apply.
- 6. The Employer's offer to auxiliary employees to convert to seasonal regular status who have accumulated 4263 auxiliary seniority is capped at 500 Seasonal Regular Employees at any given time.
- 7. Issues arising from the implementation of this memorandum of understanding will be addressed by the Bargaining Principals.

Consequential amendment:

ETO Component Agreement

Article 7.6 Scheduling of Earned Time Off (ETO)

Employees, at their discretion, may withhold scheduling up to 70 surplus hours to be taken at any time during the year for miscellaneous purposes, except that they may not be added to vacation selections to increase the hours permitted in (b)(1) above. Such surplus hours may be taken in less than seven-hour allotments, at the employee's option, and 21 are scheduled subject to their supervisor's approval. Such approval shall not be unreasonably withheld. **BC Wildfire Service employees may withhold more than 70 surplus hours earned in one year for the sole purpose of utilizing MOU 32 immediately upon layoff. Such hours cannot be carried over to the following year.**

**To reside outside of the Agreement*

MEMORANDUM OF AGREEMENT

Between:

GOVERNMENT OF BRITISH COLUMBIA
as represented by the BC PUBLIC SERVICE AGENCY

And:

BC GENERAL EMPLOYEES' UNION

RE: BC Wildfire Service Fire Crew Leader Regular Full-time Appointments

The increased length of wildfire seasons and the need to support response efforts for other natural disasters requires the BC Wildfire Service (BCWS) to shift its staffing model to include more full-time resourcing at the Fire Crew Leader position.

While recognizing the importance of the seasonal workforce, the BCWS supports a program transition from seasonal to year-round employment, specifically, for employees who occupy Fire Crew Leader (STO 15) positions. To support this transition the Parties agree to the following:

- 1. The BCWS will endeavour to fill existing full-time positions from a pool of candidates comprised of current auxiliary and seasonal regular Fire Crew Leaders within the organization. A list of all employees currently associated with these roles will be attached to this MOA as an appendix.**
- 2. Offers will be made as per the process described in this MOA over no longer than three years.**
- 3. Offers in the first year will be made to eligible auxiliary employees and existing seasonal regular employees upon successful completion of their probationary period as follows:**

I. Auxiliary Employees:

- (a) Eligible auxiliary employees will be offered conversion to a regular, full-time Fire Crew Leader position, pursuant to the terms in Clause 31.1 (b) of the Main Agreement. Offers will be in writing and made in order of seniority and by geographic location.**
- (b) Offers will be accepted or declined in writing within one week of the offer being made. If the employer does not receive a response by the required deadline, the offer will be deemed declined.**
- (c) At this stage of the process, auxiliary employees may decline this offer of conversion and maintain their existing status.**

II. Seasonal Regular Employees:

- (a) Existing seasonal regular Fire Crew Leaders will be eligible for assignment to regular full-time Fire Crew Leader positions. Offers will be in writing and made in order of seniority and by geographic location.**
- (b) At this stage of the process, employees may decline this assignment to regular, full-time status and maintain their existing seasonal regular status.**

- 5. Should all available positions not be filled in the first year, offers will be made in the subsequent two years, following the process as outlined in 1 and 2 above.**
- 6. Auxiliary employees who decline an offer of conversion through this process three times will be offered an auxiliary fire crew member position in their same geographic. If the offer is declined, then they will be deemed resigned as per Article 31.4 of the Main Agreement.**

7. Seasonal regular employees who decline an offer of reassignment through this process three times may retain their seasonal regular status but will be re-assigned to an available seasonal fire crew member position within the same geographic location.

8. Any existing Fire Crew Leader positions that remain available after completion of this process, or any new Fire Crew Leader positions that are created after completion of this process, will be filled through the meritorious process as outlined in Article 12 of the Main Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 33
Re: Gainsharing

The parties acknowledge that suggestions for gainsharing improvements may arise or be negotiated at any time during the life of this agreement to provide additional (one-time, or ongoing) payments. Where such initiatives are identified, the Main Bargaining Principals will meet to review the proposal and consider whether it should be included within the scope of this memorandum.

MEMORANDUM OF UNDERSTANDING 37

Re: Liquor Distribution Branch (LDB) Letter of Commitment

The Employer agrees that LDB retail operations will remain direct government employees for the duration of the 19²⁰th Main Agreement.

Retail Stores:

- (a) The LDB will maintain a minimum of 192 retail stores during the term of the 19²⁰th Main Agreement.
- (b) Where two retail stores are consolidated into a new Signature Store, the minimum number of retail stores pursuant to (a) above will be reduced by one.

Cannabis Stores

- (a) The LDB will maintain a minimum of 15 cannabis stores during the term of the 20th Main Agreement.**

Distribution:

- (a) The LDB will continue to operate a province-wide distribution system for the term of the 19²⁰th Main Agreement.

Note: As of the date of this MOU, the LDB has 198 retail stores, 25 of which are Signature Stores, and 39 cannabis stores.

This memorandum of understanding is enforceable through commercial arbitration under the provisions of the Commercial Arbitration Act.

(Renew)

MEMORANDUM OF UNDERSTANDING 38
Re: Store Closures and Signature Store Openings and Impact on Employees

Joint Committee

The parties agree to use the Article 29 Joint Committee to provide a forum for the parties to proactively address human resource issues which arise as a result of store closures, amalgamations and the opening of Signature Stores.

Process

- (1) Where a decision has been reached to close a retail store consistent with understandings between the parties, the LDB will notify the Union Committee representatives in writing.
- (2) The Joint Committee will convene within 14 days of the notice of the store closure.
- (3) The Committee, in the event of a planned Signature Store opening, will agree on an appropriate human resource approach to minimize impact on employees working in the affected stores. The Committee will implement labour realignment options such as:
 - (a) Temporary assignments
 - (b) Realignment of Recall Areas consistent with RS&W Clause 12.3(h)
 - (c) Transfer of vacancies
 - (d) Collective agreement modifications to facilitate appropriate labour realignment options.

(Renew)

MEMORANDUM OF UNDERSTANDING 39
Re: Sunday Openings and Store Consolidation Protocol

The Employer and the Union are committed to working co-operatively to minimize adverse staffing impacts resulting from store closures and store consolidations into signature stores.

- (1) All signature stores will open for business on Sunday to enhance employment opportunities and maximize operational efficiency.
- (2) Except where not possible (ie) termination of a lease, the consolidation of stores into a signature store will not occur until the signature store opens for business. Where it is not possible, the LDB will advise the Joint Committee as soon as it is known. In this case, the Joint Committee will implement reasonable measures to mitigate any reduction in work available.
- (3) Where two stores are combined into a signature store, the affected recall areas will be realigned as per Clause 12.3(h) of the RS&W Component Agreement.

(Renew)

MEMORANDUM OF UNDERSTANDING 40
Re: Pilot Project - Cross Ministry Eligibility Lists

The parties agree to the following framework to establish, manage and implement cross ministry eligibility lists. This memorandum of understanding is intended to add flexibility to the Employer's hiring practices and increase the ability to hire in a more expeditious manner, as well as to increase employees' ability to access promotional and other opportunities throughout the BC Public Service. Cross ministry eligibility lists will be established, managed and implemented as follows:

- (a) A cross ministry posting shall identify the known locations of opportunities available. The Employer will limit the eligibility lists to the locations identified in the posting.
- b) Postings to establish cross ministry eligibility lists shall be posted corporately and ministries will be encouraged to have cross ministry representation on the hiring panel. PSA representatives may also provide further hiring panel support to establish eligibility lists that will be applied corporately.
- c) Once a cross ministry eligibility list is established, the PSA will manage and implement the list. Lists will be kept confidential until a vacancy is confirmed and candidates from these lists will be referred to vacancies in rank order. A ministry other than the original hiring ministry is not required to use the eligibility list for a vacancy unless it requests a candidate from the PSA. Once a candidate has been requested by a ministry, they shall be required to fill the vacancy from the list.
- d) Candidates on the eligibility list will provide a list of their preferred geographical locations and have the right to refuse any position offered within their preferred geographic area once without being removed from the list.
- e) The PSA will track the creation, management and implementation of eligibility lists and provide an annual update to the Union.

f) Cross ministry eligibility lists will be in effect for a maximum of 18 months from the date of the establishment of the list.

g) Ministries and locations not identified in the original posting may request the next available candidate from the lists to fill a vacancy. Candidates who decline an offer from a ministry or location not originally identified on the posting will not be subject to (d) above.

For clarity, this memorandum of understanding does not apply to eligibility lists for positions restricted to employees within a particular ministry.

This memorandum of understanding will remain in effect for the term of the ~~2019~~ 20th Main Agreement.

MEMORANDUM OF UNDERSTANDING 41

Re: ~~Article 20 for~~ IYIP and Work-Able Accessible Employment Program – Pilot Project

The purpose of this Memorandum of Understanding is to address leave benefits and leave entitlements for interns persons employed under the Indigenous Youth Internship Program (IYIP) and Work-Able Graduate Internship Accessible Employment Program pursuant to Article 34. The parties recognize the unique culture and accessibility barriers the employees of these programs experience and this memorandum aims to improve this through providing the ability to take leave from the program access to benefits and leave as outlined below.

Effective for the duration of the ~~19~~ 20th Main Agreement, the parties agree to establish a pilot project to provide persons employed under the IYIP and the Work-Able Accessible Employment Program with benefit and leave entitlements applicable to benefitted auxiliary employees, except as provided in this memorandum. All leave and benefit entitlements will immediately cease upon conclusion of the program. that the following clauses within Article 20 – Special and Other Leave will apply to interns during their 12-month period of active employment:

- ~~(1) 20.1 – Bereavement Leave~~
- ~~(2) 20.2 – Special Leave~~
- ~~(3) 20.3 – Family Illness~~
- ~~(4) 20.5 – Leave for Court Appearances~~
- ~~(5) 20.9 – Elections~~
- ~~(6) 20.11 – Leave for Medical and Dental Care~~
- ~~(7) 20.12 – Maximum Leave Entitlement~~
- ~~(8) 20.13 – Emergency Service Leave~~
- ~~(9) 20.16 – Other Religious Observances~~
- ~~(10) 20.18 – Compassionate Care Leave~~
- ~~(11) 20.19 – Leave Respecting Death of a Child~~
- ~~(12) 20.20 – Leave Respecting Disappearance of a Child~~
- ~~(13) 20.21 – Supplemental Leave~~
- ~~(14) 20.22 – Cultural Leave for Indigenous Employees~~

The enhanced provisions described under this MOU, shall not impact the employment status of persons hired under Article 34, who are term certain employees and not subject to the provisions of Article 31.1. At the completion of the program, such employees remain subject to the provisions of Articles 34 and 31.5(d).

All **benefits and** leaves will immediately cease upon the conclusion of the 12-month internship program. Should the intern's **person's** employment status change, their benefit entitlement will be commensurate with their employment status.

The parties agree this is a pilot project for the duration of the 19**20**th Main Agreement.

Consequential Amendment: Article 34.6 to also be amended to reflect the new program name, **Work-Able Accessible Employment Program.**

MEMORANDUM OF UNDERSTANDING 42

Re: Cost of Living Adjustments (Appendix 3 – Classifications and Rates of Pay)

The parties agree that in determining the level of any Cost of Living Adjustments (COLAs) that will be paid out starting on the first pay period after April 1, 2023 and April 1, 2024, respectively, the "annualized average of BC CPI over twelve months" in Appendix 3 of the collective agreement means the Latest 12-month Average (Index) % Change reported by BC Stats in March for British Columbia for the twelve months starting at the beginning of March the preceding year and concluding at the end of the following February. The percentage change reported by BC Stats that will form the basis for determining any COLA increase is calculated to one decimal point. The Latest 12-month Average Index, as defined by BC Stats, is a 12-month moving average of the BC consumer price indexes of the most recent 12 months. This figure is calculated by averaging index levels over the applicable 12 months.

The Latest 12-month Average % Change is reported publicly by BC Stats in the monthly BC Stats Consumer Price Index Highlights report. The BC Stats Consumer Price Index Highlights report released in mid-March will contain the applicable figure for the 12 months concluding at the end of February.

(NEW) MEMORANDUM OF UNDERSTANDING XX

Re: Design of a New Public Service Job Evaluation Plan

The Employer and the Union agree on the need to jointly design and implement a new job evaluation plan for the BC Public Service.

To that end, the parties agree to eliminate the existing PSJEP and corresponding benchmarks and to replace it with a new joint job evaluation plan (the "New JE Plan").

1. Current PSJEP Removed from the Collective Agreement

(a) All clauses in Article 28 – Classification and Reclassification are deleted and replaced with the following:

“Pursuant to MOU XX, the parties are developing a New JE Plan to be inserted into Article 28 in the next collective agreement.”

(b) The former Article 28 is reproduced below and will be used for the interim period while the New JE Plan is being developed to set wage rates for new and materially altered positions and for the purposes of appeals.

2. The Joint Job Evaluation Committee

(a) The parties will establish a Joint Job Evaluation Committee (JJEC) consisting of up to four appointees from the union and up to four appointees from the employer to create the New JE Plan.

(b) Appointees shall include technical experts chosen by both the employer and union. Technical experts shall be persons who have received job evaluation training and are fully conversant in the application of the job evaluation plans. Both parties commit to dedicating the necessary resources to meet their respective obligations.

(c) The JJEC will develop the following:

- i) Factors, degrees, weightings, and point bands
- ii) Moving the RSWJEP into the New JE Plan
- iii) Recognition of formal supervision
- iv) Comprehensive creation of net new benchmark positions.
- v) Glossary definitions
- vi) Application guidelines
- vii) Classification groupings/job architecture
- viii) Discussion of Growth Plans
- ix) An expedited process to review and agree on the creation of net new benchmark positions.
- x) Establishment of a Memorandum of Understanding for expedited classification resolutions.

(d) The New JE Plan will establish Benchmark Reference Positions within the BC Public Service with the intention of providing the most comprehensive expanse of relevant duties and will update the Benchmark Reference Positions as needed to ensure their continued relevance throughout the design process.

(e) The JJEC will develop recommendations on language to replace Article 28 of the collective agreement to be forwarded to the parties for review.

3. Principles Applicable to the New JE Plan

(a) The following principles will apply to the new JE plan will include:

MoveUP/E&OE/MOS 2025

- gender pay equity and gender neutrality
- diversity and inclusion
- equitable treatment of employees across the BC Public Service
- standardization of pay for classifications in identical or near identical roles
- the ability to consistently refresh benchmark reference positions on a periodic basis
- ensuring employees will be credited in classification placement via any scoring system for all the duties regularly or periodically performed in the course of their work.
- ensuring the diversity and comprehensive breadth of roles and duties performed in the Public Service are adequately recognized and weighted.
- new and expanding duties will be regularly reviewed and added to ensure benchmarks stay current and relevant.

4. Timeline for Development of the New JE Plan and Transitional Period

(a) The New JE Plan will be finalized by the conclusion of the term of the current collective agreement according to the following timeline:

<u>Action</u>	<u>Completion Date</u>
<u>1. Selection of JJEC members</u>	<u>December 15, 2025</u>
<u>2. Initial meetings, establishment of terms of reference for the JJEC, scheduling of future meetings</u>	<u>January 15, 2026</u>
<u>3. Preliminary Assessment and Design including:</u> • <u>Hiring of external job evaluation and pay equity consultants to advise the committee.</u> • <u>Reviewing former PSJEP system to identify strengths and weaknesses</u> • <u>Gathering and conducting data analysis and information on possible solutions</u> • <u>Conducting early diversity and inclusion and pay equity analysis</u> • <u>Finalizing the conceptual framework, draft design and approach</u>	<u>June 2026</u>

4. Plan Development • <u>Assessing and deciding on job evaluation factors, degrees, and glossary language to be established</u> • <u>Creating preliminary weightings and point bands</u> • <u>Determining the approach to classification coding and administration</u> • <u>Developing draft language for the job evaluation plan</u> • <u>Beginning benchmark design and drafting a process for expedited process for reviewing and updating benchmarks.</u> • <u>Creating Glossary definitions</u> • <u>Reviewing Growth position placement and related issues</u> • <u>Reviewing LDB position placement and related issues</u> • <u>Gathering feedback from subject matter experts and incorporating feedback</u> • <u>External consulting review for pay equity compliance</u> • <u>Ensuring the New JE Plan is compliant with human rights legislation, pay equity and diversity and inclusion principles</u> • <u>Early testing</u> • <u>Begin preparing an implementation plan (communication, collective agreement updates, education and training)</u>	<u>October 2026</u>
5. Testing and Piloting • <u>Confirming appropriate benchmarks and testing against the plan</u> • <u>Conducting pilot testing</u> • <u>Establishing grids</u> • <u>Finalizing weightings and point bands</u> • <u>Finalizing decisions on benchmarks</u>	<u>June 2027</u>
6. Final sign off and implementation	<u>December 2027</u>

(b) The above-time lines may be altered by the agreement of the parties; however, failure to complete the design of the New JE Plan by the conclusion of the collective agreement means that there is no job evaluation plan in place unless the parties agree to some other interim measure with the New JE Plan is finalized.

(c) The parties will develop a process for member education on the New JE Plan following completion of its design.

5. Dispute Resolution for JJEC

(a) Disputes arising from the JJEC will be referred to Amanda Rogers or Brett Matthews or another mutually agreed upon arbitrator. The arbitrator is seized with the requisite jurisdiction to issue a binding decision to resolve the impasse. The arbitrator may rely on technical resources as deemed appropriate.

6. Former PSJEP Language

ARTICLE 28 - CLASSIFICATION AND RECLASSIFICATION

28.1 Classification Plan

(a) The Employer and the Union recognize the need to maintain the principles of Pay Equity to evaluate jobs in the Public Service bargaining unit. The parties also agree to apply the Public Service Job Evaluation Plan in accordance with those principles to all bargaining unit positions using the gender neutral plan factors and degrees in the Public Service Job Evaluation Plan.

The Public Service Job Evaluation Plan will be used to evaluate positions in the Main Agreement and to determine their appropriate factor ratings.

(b) The Employer agrees to supply the President of the Union or their designate with the job evaluation plan and benchmarks/reference jobs for those classifications in the bargaining unit.

(c) The former classification plan specifications are redundant for evaluation purposes and will be utilized solely for descriptive purposes to assist in the orderly management of the Public Service, including staffing and collective agreement purposes.

28.2 Changes to the Job Evaluation Plan and Benchmarks/Reference Jobs

(a) The Employer agrees that no changes to the job evaluation plan and benchmarks/reference jobs pertaining to positions covered by this agreement will be introduced without the mutual agreement of the parties.

(b) To facilitate the orderly change in the job evaluation plan, a joint technical working committee will be used. There will be equal representation of technical experts from the Employer and the Union on this committee, and total membership from each side will not exceed four.

(c) The Committee shall formulate any necessary changes or new benchmarks/reference jobs in the job evaluation plans used within the Public Service bargaining unit and shall make joint recommendations to the Bargaining Principals.

(d) When a new or substantially altered benchmark/reference job covered by this agreement is introduced, the factor ratings shall be subject to agreement between the Employer and the Union.

(e) Where the Joint Technical Working Committee is unable to agree to benchmark(s)/reference job(s) and/or agree on a factor rating, the matter may be referred to an agreed upon classification referee. The benchmark rating shall be effective on the date agreed to by the parties or the date set by the referee but, in any event, not earlier than the date of implementation.

28.3 Classification Appeal Procedure

An employee shall have the right to appeal, through the Union, the classification of the position they occupy. Such an appeal shall be in accordance with the provisions of this clause and shall not be considered a grievance under Article 8 - Grievances, of this agreement.

Part 1

(a) If an employee believes that the position they occupy is improperly classified, they shall complete and forward to their immediate supervisor, excluded manager and the BC Public Service Agency Part 1 of the Classification Appeal Form requesting a written job description describing duties and responsibilities, which shall be provided within 30 days of the request. Such job descriptions shall be consistent with the employee's assigned duties and must be signed by an excluded manager or designate. An organization chart will also be included at this step.

(b) The employee and their immediate supervisor will review the job description and identify in writing any discrepancies between assigned duties and the job description content. If the excluded manager (or designate) agrees, the duties will be incorporated into the job description and signed by the excluded manager or designate.

Part 2

(c) If the employee believes that the position they occupy is improperly classified, the employee shall complete Part 2 of the Classification Appeal Form and forward it to the BC Public Service Agency and the Union within 30 days of receipt of the written job description or when the response was due at Clause 28.3(a) or the appeal will be deemed to have been abandoned. Any duties in dispute will be listed in writing by the employee and will accompany Part 2 of the Form. If the employee has not received the job description within 30 days of their request in Part 1, the employee will list their duties and note those duties that they believe are evidence of a higher classification.

(d) Differences between the employee and the excluded manager or designate respecting any areas in the job description not being consistent with the assigned duties may be clarified, and where possible, resolved at the "joint on-site" interview or telephone conference. The Union's classification representative will be advised of the date, time and location of on-site interviews in order that they may attend. The BC Public Service Agency shall respond within 60 days of the "joint on-site" with a written rationale.

(e) If there remains a dispute respecting the classification level, the Union will respond to the BC Public Service Agency within 60 days of receipt of the written response at Clause 28.3(d) or when the response was due. The Union will provide a written classification rationale explaining why the rating sought is more appropriate than the existing rating focusing on the area(s) in dispute for each appellant, or group of appellants, including reference to supporting benchmarks in the relevant classification/job evaluation plan.

(f) If the classification level remains in dispute, the Union and the BC Public Service Agency may agree to an alternative process in order to resolve the classification appeal.

(g) If the above procedure does not lead to a satisfactory resolution, the Union may submit the matter to adjudication under Clause 28.4 by providing the Employer with written notification. Any such notification shall be transmitted within 60 days of the response from the Union at Clause 28.3(e) or when the response was due. The appeal shall be deemed abandoned in the event that the appeal is not submitted to adjudication within the required time period.

(h) These time limits may be extended in writing by the mutual agreement of the parties.

- (i) A submission of a classification appeal to adjudication shall be transmitted to the Employer.

28.4 Adjudication

(a) The parties shall jointly agree upon a list of referee(s) who shall make a final and binding decision with respect to the proper classification of a position submitted to adjudication pursuant to Clause 28.3(g).

(1) The referee shall be assigned to hearings, depending upon availability, on a rotating basis from the list of referees. For full hearings, the order of rotation may be varied by mutual agreement of the parties.

(2) Expedited Adjudication - Classification appeals submitted to the adjudication stage may be submitted to a referee for a final and binding decision pursuant to and in accordance with this article and an agreed upon expedited joint process.

28.5 Effective Dates

The effective date of any resulting change in classification level shall be the first day of the biweekly pay period following the date of receipt by the employee of the written job description or when the response was due pursuant to Clause 28.3(a), ie., the Part 2 date.

MEMORANDUM OF UNDERSTANDING XX **Re: Joint Rapid Grievance Tribunal Pilot**

The purpose of this MOU is to outline a pilot process which facilitates rapid resolution of non-complex grievances, to reduce the need for recourse through the expedited arbitration processes as outlined in Article 9 of the Main Agreement or case management as outlined in the Memorandum of Understanding regarding Case Management and Expedited Arbitration.

For clarity, the intent of the MOU is not only to facilitate the rapid resolution of non-complex grievances but to provide joint education on the administration of the collective agreement to shop stewards, employees, ministry supervisors, and managers; and to ensure that the processes at Steps 1 and 2 of the grievance process as outlined in Article 8 of the Main Agreement have been fully exhausted.

- 1. Effective 180 days after ratification, Tribunal meetings will occur monthly, except for the months of December and August. Dates to be utilized for the meetings will be scheduled no later than the end of November in advance for the following year. All meetings shall be held virtually.**
- 2. Ad hoc Tribunal meetings may be held by mutual agreement for situations that are time sensitive in nature.**
- 3. Once the step 2 process has been exhausted, and within the time limits set out in Article 8.7 of the Main Agreement, the Union has the right to advance grievances to expedited or full arbitration. For the purposes of the pilot, only grievances advanced to expedited arbitration,**

and which are limited to specific categories as identified below in 5 of this MOU, will be referred to the Tribunal for resolution.

4. The Tribunal will consist of one senior representative from the BCPSA and from the BCGEU, with the commensurate decision-making authority.
5. The BCGEU Registrar will roster a list of grievances to be considered by the Tribunal and will send it to the BCPSA Registrar. The following types of grievances will generally be considered suitable for the Tribunal:
 - i. Union leave denial
 - ii. Daily recall
 - iii. Shift change notice
 - iv. Overtime allocation
 - v. Shift premiums
 - vi. Statutory holiday pay
 - vii. Vacation denial
 - viii. Special and other leave
6. Files are to be rostered chronologically. However, the Tribunal may move 5 files to the top of each roster to prioritize them in order of time sensitivity to meet remedy requirements, if applicable. The finalized list will not exceed 20 files to be heard per Tribunal meeting.
7. If either Tribunal member deems a file rostered to be unsuitable for the Tribunal, they may remove it from the process and immediately refer it to case management, and then, if required, to the expedited arbitration process based on the date of submission.
8. On the date of the Tribunal meeting, the Tribunal members will hear brief submissions from the local worksite step 1 or 2 representatives for the Union and Employer. The submissions may be presented orally or in writing but must be brief, ideally 5 minutes in duration and will state the parties' positions on the matter in dispute. The choice of representative for either party is at their discretion but must be either step 1 or 2 representatives from the local worksite, must be knowledgeable of the matter, and the decision giving rise to the dispute. There shall be no witnesses or case law submissions. A labour relations specialist or staff representative will only appear when deemed necessary by the Tribunal.
9. The Grievor and their Shop Steward will be notified sufficiently in advance of the scheduled meeting. The meeting shall take place on the Employer's premises during hours of operation, unless agreed otherwise. On the date of the Tribunal meeting, the Employer will facilitate computer access and adequate space to allow for the virtual hearing.
10. Each representative will share only necessary documentation. Necessary documentation will not exceed a copy of the grievance, the step 2 response, and limited supporting documents relative to the facts that gave rise to the grievance, (e.g. a copy of the vacation schedule where a denial of vacation leave is in dispute.)
11. If in agreement, the Tribunal will render an oral decision at the meeting, including a brief

rationale for the decision. Decisions at the Tribunal are without prejudice and non-precedential. If the Tribunal is unable to come to agreement, the matter will be referred to the next case management dates. Files must be moved no later than six weeks prior to the next prescheduled dates for case management.

12. The parties acknowledge that decisions made by the Tribunal do not prevent a grievor from accessing the Union's internal appeal process.

13. This MOU/pilot shall be in effect so long as the 20th Main Agreement is in effect from the date of initiation and is subject to review by the Principals. The parties will track the outcomes annually and review the pilot for its effectiveness in preventing backlogs and/or numbers of files set for expedited arbitration, and any other relevant factors.

14. Either party may end the pilot with 60 days notice.

MEMORANDUM OF UNDERSTANDING XX
Re: Case Management and Expedited Arbitration

The Main Agreement between these parties provides the following:

9.9 Expedited Arbitration

The parties shall meet every four-months during the term of the 20th Main Agreement or as often as required to review outstanding grievances filed at arbitration to determine by mutual agreement those grievances suitable for this process and shall set dates and locations for hearings of groups of grievances considered suitable for expedited arbitration.

1. Case Management

Note: "*Main List*" means the inventory of grievances in the expedited arbitration process that have not been settled, withdrawn, granted or moved to formal arbitration and are intended to be heard at the Case Management Meeting.

(a) No later than eight weeks prior to each Case Management Meeting, the BCGEU will provide its Main List to the BCPSA. No later than seven weeks prior to each Case Management Meeting, the BCGEU Director and BCPSA Director "the Directors" will meet to determine the Main List for Case Management for their region. No other cases may be added to the Main List, except by mutual agreement.

The Main List will include the following information:

- The name and work location of the grievor (or each grievor for *et al* grievances)
- The reference number assigned by the arbitration registrar for each grievance

- The name of the ministry
- The Main or Component Agreement clause allegedly violated, to clearly identify which party bears the onus
- The name of the BCGEU Staff Representative / BCPSA Labour Relations Specialist assigned conduct of each grievance

(b) No later than two weeks prior to each Case Management Meeting, the BCGEU Staff Representative and the BCPSA Labour Relations Specialist will discuss each case on the Main List. The intent of these discussions is to review the merits of the grievances and any avenues for resolution prior to the Case Management Meeting. The discussions must include but are not limited to:

- The specific particulars of the alleged breach of the collective agreement
- The specific remedy sought
- Notification of any preliminary matters
- Confirmation of documents either party intends to rely upon and reasonable requests for disclosure.

(c) Case Management shall be scheduled as follows:

The parties will convene a virtual Case Management Meeting to review grievances arising throughout the province, scheduled in advance as follows:

- February: All Regions - 3 Days
- May: All Regions - 3 Days
- August: All Regions - 3 Days
- November: All Regions - 3 Days

In addition, the parties will add extra days as follows:

- April: LDB Only, All Regions: 1 Day
- December: LDB Only, All Regions: 1 Day

(d) The objectives at the Case Management Meeting are as follows:

- i. The parties will provide a verbal case summary articulating their position on the grievance, and attempt to resolve the matter,
- ii. Grievances may be identified for full arbitration per the terms of the collective agreement.
- iii. The Directors may specify disclosure or other requirements needed for a grievance file as required, including timelines. To ensure no delays, disclosure requirements will strictly adhere to reliance documents.

(e) At the Case Management meeting files may be coded as:

- “ANR” – Adjourned to Next Round
- “APF” – Abeyance Pending Formal Award
- “SIP” – Settlement Implementation Pending
- “STO” – Settlement Talks Ongoing
- “EXP” – Expedited
- “WD” – Withdrawn
- “ARB” – Full Formal Arbitration

(f) Any files coded as “ANR” “SIP” or “STO” will be followed up on as appropriate and the parties will adhere to the commitments made at the Case Management Meeting. If files with these codes are not resolved by the next Case Management dates, they may be brought forward again to be recoded accordingly. For clarity, should any files with these codes not be resolved within 6 months from the date they were first heard at Case Management, they will automatically be advanced to EXP or ARB, whichever process is deemed suitable by the Directors.

(g) Files coded for EXP will be referred to the next scheduled hearing dates.

2. Expedited Arbitration (EXP)

- (a) The parties intend for EXP hearings to be truly expedited in nature, with limited witness testimony (maximum 2 per side) and jurisprudence submissions.
- (b) Grievances deemed suitable for expedited arbitration will proceed either in person or virtually, as determined between the parties. The parties will make every effort to conduct proceedings virtually or utilize a BCGEU or BCPSA meeting room.
- (c) Late disclosure of documents that were requested in a timely manner will result, unless mutually agreed otherwise, in the grievance being removed from the current expedited arbitration hearing list and set for a future expedited hearing list. Only the affected party may trigger the postponement.
- (d) Should either party wish any matter to proceed to a formal hearing it must first be discussed at a Case Management Meeting.
- (e) Any dispute as to the venue for a hearing, length of hearing, consent for adjournments or other preliminary matters will be resolved by a conference call with the arbitrator.
- (f) Dates to be utilized for EXP will be scheduled in advance each fall for the following year, to appropriately coincide with the Case Management Meeting. Dates for EXP will be no earlier than 6 weeks after the Case Management Meeting and shall be scheduled as follows:
 - March/April: 3 days
 - June/July: 3 days

- September/October: 3 days
- December: 2 days

(g) The arbitrators shall be as follows:

- | | |
|-----------------------------|--------------------------------------|
| • <u>March/April:</u> | <u>Vince Ready/Chris Sullivan</u> |
| • <u>June/July:</u> | <u>Marli Rusen/Brett Matthews</u> |
| • <u>September/October:</u> | <u>Chris Sullivan/Robert Pেকেles</u> |
| • <u>December:</u> | <u>Robert Pেকেles/Marli Rusen</u> |

This MOU shall be implemented effective January 01, 2027, and remain in effect for the term of the 20th Main Agreement and is conditional upon the arbitrators' acceptance of the assignment.

Note: The parties will delete the previous MOA Re: Expedited Arbitration Procedure

Guidelines For Union and Employer Representatives for EXP Hearings:

- 1. Each party is expected to make comprehensive, concise and brief submissions. Under no circumstances is a representative to make a statement that is not supported by evidence. A copy of these statements will be provided to the arbitrator and opposing representative at the same time.**
- 2. Grievance correspondence is neither relevant nor permissible in submissions or statements.**
- 3. Rebuttal, if necessary, should be limited to any facts in dispute and any additional facts that are relevant.**
- 4. Counsel should assume the arbitrator is familiar with commonly used case authorities (William Scott, KVP, etc.). Excessive reference to case authorities or *Brown & Beatty* is not encouraged.**

Guidelines for Arbitrators for EXP Hearings:

- 1. For EXP decisions, the arbitrator will provide an oral decision whenever possible, followed by a written decision within 30 days.**
- 2. Written decisions will only be as long as necessary to convey the facts needed to substantiate the decision of the arbitrator.**

MEMORANDUM OF UNDERSTANDING **XX**

Re: Data Reports

The Parties agree the Employer will continue to provide sufficient information to the Union to administer their role as bargaining agent. The Main Agreement and Component Agreements contain multiple provisions to facilitate this. These include but are not limited to Article 4, Article 5 and Article 11.

The intent of this MOU is to pilot a method to consolidate these lists for greater efficiency.

Effective 60 days post ratification and for the term of the 20th Main Agreement, the Parties agree to implement the following process for the sharing of data reports:

1. The Employer will provide to the Union a data report on a bi-weekly basis within seven days of the end of each pay period.
2. Each report will contain the following fields, and will be provided in excel or another mutually agreed format:
 - Employee ID
 - Last Name
 - First Name
 - Hourly pay rate at the end of the pay period
 - Standard hours
 - Gross regular straight time wages for the pay period
 - Dues paid
 - Employment status at the end of the pay period
 - Employment end date, if applicable, per Article 4(i)
 - ROE code, if applicable, per Article 4(i)
 - Full Time (FT), Part Time (PT) or Auxiliary (AUX)
 - Business unit
 - Position title
 - Classification title
 - Classification grade
 - Department ID (Paylist)
 - Service years (per Article 11)

- Service hours (per Article 11)
- Employee Last Hire Date
- Email
- Work cell
- Personal address
- Work address
- Work city
- Work postal code

3. If an employee holds multiple positions within the bargaining unit, each position will be listed in a separate row.
4. The Union will provide a secure data transfer solution for this information that meets the Employer's data privacy and security requirements. The Union will consult with the Employer before changing which solution it uses to improve security or user experience. If at any time the transfer solution does not meet the Employer's requirements or incurs additional costs to the Employer, the secure data transfer will cease immediately.
5. During the term of the 20th Main Agreement, the Parties will form a Joint Committee to review the Main and Component Agreements to make recommendations to the bargaining principals of redundant articles to be removed as part of housekeeping for the 21st Main Agreement.

MEMORANDUM OF UNDERSTANDING XX
Re: Dedicated Remote Postings

The purpose of this MOU is to support the Employer's ongoing commitment to employment equity and expand diversity through removing barriers to employment by creating and outlining the entitlements of a "dedicated remote position".

The effective date of this MOU is 120 days after the date of the ratification of the 20th Main Agreement.

1. Definitions

- (a) "Dedicated remote positions" – are those positions that allow an employee to ordinarily perform their duties on a continuous basis from an "approved remote work location". The approved remote work location is their headquarters and must be located within the province of British Columbia. Dedicated remote positions can only be applied to positions that are regular status full or part-time.

(b) For further clarity, these positions are established at the sole discretion of the Employer.

2. The following terms and conditions of employment will apply to dedicated remote positions:

(a) Dedicated remote positions will be posted as per the Collective Agreement.

(b) Once accepted, this status will be clearly reflected in the offer letter.

(c) Approved Remote Work Location Acknowledgment Form - employees in a dedicated remote position must complete the Employer's form that designates the approved remote work location and sets out the criteria and standards for the approved remote work location. A signed copy will be kept at the local level and an annual review completed. The annual review is completed to ensure the criteria and standards continue to be met as a condition of employment. If approval is revoked the employee will have 30 days to bring the location back into compliance prior to a review of the employee's employment status.

(d) A dedicated remote position is tied to the position and not to an individual employee. Therefore, an employee vacating a dedicated remote position to another position cannot port their approved remote work location with them to the new position.

(e) The provisions of all relevant workplace policies and guidelines, and legislation apply to the dedicated remote position.

(f) Unless otherwise stated in this agreement, the Main and Component Agreements apply.

(g) Any article in the Main or Component Agreements regarding allowances related to uniforms or the cost of maintenance will not apply, unless required and approved by the Employer.

(h) Any recruitment incentives related to working in specific geographic locations do not apply. This includes, but is not limited to, hard to recruit incentives and MOU 17 Re: Vacation Adjustments for Remote Locations.

(i) Relocation expenses as per MOU 3 or Articles 27.16 do not apply. For clarity, the Employer shall not pay to relocate any employee who is assigned, transferred, or hired into a position designated as a dedicated remote position, unless initiated and approved by the Employer.

(j) New or additional costs such as isolation allowances as per Articles 27.10, 27.17, 27.23 are also not applicable.

(k) Seniority – For the purposes of seniority based entitlements, the employee will continue to accrue seniority in a separate provincial seniority block that is not restricted to a geographical area.

(l) Hours of work will be defined by the Component Agreement.

(m) Annual vacations – vacations shall be selected and determined based on the work unit that the dedicated remote position is assigned to. For example, a team may be a provincial work unit and provide services throughout various locations across the province. Vacations will be determined based on the work unit at the local level. Any disputes that cannot be resolved at the local level may follow the grievance process.

3. The Employer will not cover any expenses related to an approved remote work location, unless, the Employer directs the employee to travel, outside of their headquarters. In that circumstance, the approved remote work location shall be their headquarters.

4. Employees whose work location is not in a provincial government office will be provided with the appropriate electronic equipment as determined by the Employer to conduct their job.

5. The Parties agree that this MOU will be cost neutral.

6. Issues arising from the implementation of this MOU will be addressed by the Bargaining Principals.

This Memorandum of Understanding will remain in effect for the term of the 20th Main Agreement.

*This MOA will reside outside of the Collective Agreement

MEMORANDUM OF AGREEMENT

Re: Temporary Appointments and Limited Postings

The parties desire greater visibility of the Employer's temporary appointments and limited postings as this is beneficial for employees. The parties have a shared commitment to a fair, transparent and meritorious hiring process. The parties also share a commitment to help employees understand the use of temporary appointments and limited postings as provided for under the *Public Service Act* and Main Agreement. For the term of the 20th Main Agreement, the parties support Article 29 committees to discuss and collaborate on the following matters as per Article 29.4:

- how ministries can improve hiring practices;
- enhancing the visibility and understanding of the use of temporary appointments;

- concerns within the ministry regarding issues related to Article 12 such as:
 - temporary appointments;
 - eligibility lists; and
 - expressions of interest.

Article 29 committees may review and make recommendations to the bargaining principals on how ministries could share these opportunities more broadly as per clause 29.4 (c). Issues related to these matters covered by this MOA, raised at the ministry Article 29 committee, and which are unresolved may be referred to the Public Service bargaining principals as contemplated by clause 29.5 of the Main Agreement.

This Memorandum of Agreement shall expire at the end of the 20th Main Agreement.

Memorandum of Agreement

Between

The Government of the Province of BC
(as represented by the BC Public Service Agency)

and the

BC General Employees' Union

Respecting

Conversion of Recruitment and Retention Incentive Payments to Market Adjustments

in the

Ministry of Public Safety and Solicitor General

Ministry of Attorney General

Ministry of Children and Family Development

The parties recognize the enhanced benefit of recruitment and retention incentives that are included in base pay calculations. Therefore, the parties agree that the following incentives will be replaced with bi-weekly payments as per MOU 22 – Re: Market Adjustments:

- 1. Effective July 1, 2026, the \$10,000 annual incentive for Corrections and Sheriffs (Appendix A) and REVOII Probation Officers (Appendix B) will be replaced with an additional 3 grid market adjustment.**
- 2. Effective April 1, 2026, the \$6,000 annual incentive for Social Program Officer classifications in hard to recruit locations (Appendix C) will be replaced with an additional 2 grid market adjustment.**

3. Effective April 1, 2026, the \$3,000 annual incentive for the Social Program Officer (Growth to 24) classification in hard to recruit locations (Appendix C) will be replaced with an additional 1 grid market adjustment.

Furthermore, the Appendix C MCFD hard-to-recruit locations incentive will apply only to the position in the noted locations. Should the incumbent leave the location or position, the incentive will not remain as part of their base pay calculations. For clarity, any new employee who meets the criteria noted in Appendix C will receive the incentive.

Consequential amendment: This MOA replaces the previous MOAs and Addendum regarding Recruitment and Retention Incentive Payments in the Ministry of Public Safety and Solicitor General and, Ministry of Attorney General and Ministry of Children and Family Development.

**To Reside Outside of the Agreement*

**MEMORANDUM OF AGREEMENT
BETWEEN
THE GOVERNMENT OF BRITISH COLUMBIA
AS REPRESENTED BY THE
BC PUBLIC SERVICE AGENCY
AND THE
B. C. GENERAL EMPLOYEES' UNION**

RE: A JOINT COMMITTEE TO REVIEW CURRENT EXCLUSIONS CLASSIFIED AS BAND 1, 2, 3 and 4

- (a) The Parties agree to establish a joint committee to review all positions classified as Band 1, 2, 3 and 4 pending exclusion review within core government, as at the date of ratification, to determine if they should be appropriately excluded or more properly included in the bargaining unit. For this purpose, a Joint Committee will be established to do a systematic review of the above positions, whether encumbered or vacant based on the below:

1. The Joint Committee will consist of seven representatives, three appointed by the Union, three appointed by the Employer, and an Arbitrator mutually agreed to by the parties to act as Chairperson appointed jointly by the Parties. The Parties agree that at least one representative of the Union and Employer shall have decision-making authority.
2. The Chairperson will, at the request of either Party, sit as facilitator/arbitrator over all disputes pertaining to the appropriateness of any exclusion request before the Joint Committee. The Chair may issue a decision with a complete but brief written explanation.

(b) Committee Procedure

1. A complete listing, detailing every position classified as Band 1, 2, 3 and 4 will be provided to the Joint Committee and indicate the date of the exclusion request, if available, and agreed date of exclusion. The list will not contain positions listed in Appendix 2, statutory exclusions, or Order-in-Council appointees.
2. For Band 1, 2, 3 and 4 positions that do not have an exclusion request or agreed date of exclusion, the list, grouped by Ministry, will contain the following:
 - Band level
 - Name of incumbent(s), and start date (if any)
 - Organization chart.
3. The Joint Committee will examine the following information for positions where there is no agreed date of exclusion:
 - (i) Job description with the management compensation framework finalized;
 - (ii) A copy of the job description for the position which supervises the applied for position;
 - (iii) Organization chart for the relevant program;
 - (iv) Clear statement as to the legal basis or reason for exclusion;
 - (v) Precedential decisions and if necessary, access to appropriate supervisory managers who may provide relevant information to the Committee.
4. The Joint Committee will categorize positions as:
 - Appropriately excluded from the bargaining unit
 - Appropriately included in the bargaining unit
 - Requiring further information. If the information is not provided to the Committee by either party within 60 days of the request, the exclusion will be deemed abandoned or agreed to respectively. For example, if the employer fails to provide within 60 days, the exclusion is considered abandoned. Conversely, if the Union fails to provide within 60 days of the request, the exclusion is considered granted. Extensions may be mutually agreed to.
5. The Parties agree that the Joint Committee will take conduct of current matters at JEC and case conference. On mutual agreement this may also include matters pending Arbitration.
6. The guidelines identified in Main Agreement Article 2.1(b) will be utilized by the Joint Committee to determine whether the position should remain excluded from the bargaining unit or be included in the bargaining unit.

In addition to the guidelines in Article 2.1(b), the Committee will also consider the criteria in PSLRA, s.11.3.
7. Employees encumbering positions determined to be properly included in the bargaining unit will remain excluded for 5 years as long as the incumbent occupies the position. When requested by the employee, the incumbent will be included in the bargaining unit and Article 27.21 will apply if applicable.

- For clarity, the Employer will advise employees in these positions of their option to transfer to the Union. If the employee opts to remain excluded, they can only do so for a maximum of 5 years and during that time union dues will be paid by the Ministry on behalf of the employee. Back dues will be payable up to a maximum of 1 year from the effective date of determination.

8. In other cases (not including those in #7 above) where back dues are payable, union dues will be payable up to a maximum of 1 year. On a go-forward basis, for any positions not identified in this review where union dues are payable, dues will be payable to the union retroactive to a maximum of 48 months.

9. The Committee will establish a schedule of meeting dates, monthly, or less frequently by mutual agreement, to review and make decisions.

10. Decisions of the Joint Committee will be without prejudice to positions either Party may take on any position.

11. The Parties will jointly establish terms of reference for use by the Committee.

12. The Parties will share equally in all costs associated with the Chairperson and other costs.

13. The Joint Committee will as part of this review make recommendations to improve the process outlined in MOU 18 on a go forward basis including recommendations for updating the Joint Exclusion Database. All recommendations must be either cost neutral or costs approved by PSEC.

14. This MOA expires at the end of 20th Main Agreement.

APPENDIX 2 – EXCLUDED CLASSES

Persons employed in the service of the Legislative Assembly, including the staff of Government House, officials of the Legislative Assembly, the staff of Hansard, the support staff of the Government Caucus and of the Opposition parties.

Persons employed in the office of a member of the Executive Council, including the administrative assistants and support staff.

Persons appointed to office by the Lieutenant-Governor in Council.

Persons appointed to boards, commissions, and agencies under the authority of an Act of the Legislative Assembly other than the Public Service Act.

Persons employed in senior executive positions classified as "Band A".

Note: Band A are senior executive positions that are classified above Strategic Leadership. These positions report directly to a Deputy Minister or Associate Deputy Minister, but do not include Assistant Deputy Ministers.

One Executive Coordinator **Two excluded management positions** and one Senior Executive Assistant for each Associate Deputy Minister and Deputy Minister.

One Executive Coordinator and one Executive Administrative Assistant for each Assistant Deputy Minister.

One administrative support position for each personnel office of a ministry. Persons locally engaged outside of British Columbia.

Persons appointed on a temporary limited basis for a specific term of less than 31 calendar days, pursuant to Section 1(1)(j) of the Public Service Labour Relations Act.

All new positions classified at the Band 5 and 6 levels.

MOU 18

Re: A Joint Committee for Case Managing and Adjudicating Exclusion Requests

Renew for the term of the 20th Main Agreement and maintain current language.

NOTE: The Union agrees to withdraw its two policy grievances as follows:

- *Policy grievance dated October 7, 2024 on a without prejudice and without precedent basis.*
- *Policy grievance dated November 15, 2023 on a with prejudice and with precedent basis.*

MEMORANDUM OF AGREEMENT

Between:

**GOVERNMENT OF BRITISH COLUMBIA as represented by the BC PUBLIC SERVICE AGENCY
("Employer")**

And:

**BC GENERAL EMPLOYEES' UNION
("Union")**

Re: MSDPR Pilot Project – Equity Internship Program

The parties agree to the following provisions to facilitate an equity internship pilot project at the Ministry of Social Development and Poverty Reduction (SDPR). Other ministries may participate in this pilot by applying the following provisions as a framework and after providing 60 days' notice to the union through the BC Public Service Agency.

The program aims to encourage Black, Indigenous, and People of Colour (BIPoC) and/or lesbian, gay, bisexual, transgender, queer, intersex, asexual, Two-Spirit, and/or other community members (LGBTQ2S+) people to consider a career in the public service, to recruit a more representative workforce,

to support the development of leadership skills for BIPOC and LGBTQ2S+ people, and to help close social and economic gaps between BIPOC and LGBTQ2S+ people and other British Columbians.

1. The program is open to persons who self-identify as BIPOC and/or LGBTQ2S+.
2. Program terms are ~~12 months~~ **up to 24 months** in duration, and the pilot program will be considered a special employment program and Clause 31.5(d) will apply.
3. The program will run from approximately September to August each year for up to five interns.
4. Interns will be considered auxiliary employees hired under the Main Agreement and will receive the appropriate benefits as per the Main Agreement.
5. Work tasks will be temporary and distinct from day to day duties of a classified position. No interns will be hired under this program to perform work previously done by an employee on layoff or for which an employee on layoff has a right of recall.
6. An Equity Internship Program - pilot classification will be created at Grid 15, which is comparable to Appendix 3F – Public Service Internship Program (Grid 15).
7. The hours of work for the intern shall be consistent with the hours of work established for the work group to which the intern is assigned, however, will not exceed 35 hours per week or 70 hours in a two-week period.
8. Notwithstanding Clause 31.5(d), graduates hired under this program will be considered to have in-service status for the sole purpose of applying on competitions beginning ~~eight~~ **twenty** weeks prior to the end of and extending to a period of ~~one~~ **two** years after completing the internship. Interns must complete the program prior to starting new employment within the BC Public Service.
9. Years of continuous service in Clause 12.3(b) will include service contributed under the program, provided the intern has maintained in-service status and the gap between the end date of the program and the closing date of the competition is less than ~~one~~ **two** years.
10. The **Effective for the duration of the 20th Main Agreement**, MOU 41 re: Article 20 for IYIP and Work-Able **Accessible** Employment Program – Pilot Project will apply to interns during their ~~12-month~~ period of active employment. All leaves **and benefit entitlements** will immediately cease upon the conclusion of the ~~12-month~~ internship program. Should the intern's employment status change, their benefit entitlement will be commensurate with their employment status.
11. The Parties agree this is a pilot project for the duration of the ~~19~~ **20**th Main Agreement.

***MOA To remain outside the collective agreement**

MEMORANDUM OF AGREEMENT
between
THE GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA
as represented by
B.C. PUBLIC SERVICE AGENCY (PSA)
and
THE B.C. GENERAL EMPLOYEES' UNION (BCGEU)

AGREED TO LIST OF ARBITRATORS

The following represents the agreement reached between the Government of the Province of British Columbia represented by the Public Service Agency and the B.C. General Employees' Union respecting an Agreed to List of arbitrators pursuant to Main Agreement Article 9:

Group One	Group Two
John Hall	Michael Fleming
Vince Ready	John McConchie (mediation only)
Chris Sullivan	Julie Nichols
Jim Dorsey	Arne Peltz
Corinn Bell	Marli Rusen
Judi Korbin	Robert Pেকেles
Mark Brown	Wayne Moore
Ken Saunders	Amanda Rogers
Michael Fleming	Koml Kandola
Marli Rusen	Randy Noonan
	Alison Matacheskie
	Jacque de Aguayo
	Tonie Beherrell
	Brett Matthews
	Elaine Doyle
	Ritu Mahil
	Jessica Gregory

If during the life of the agreement an arbitrator leaves the arbitrator's list for any reason, the bargaining principals will meet within four weeks to add a mutually agreed on replacement name. The arbitrator's list will be maintained with gender equity as a guiding principle **and expanded to represent the diversity of the public service and the broader provincial population.** Understanding respecting the agreed to list of arbitrators:

With respect to the agreed to list of arbitrators:

1. Any matter assigned to a Group 2 arbitrator may be assigned to a Group 1 arbitrator within 14 days of the appointment at the unilateral discretion of either party. The parties agree to restrict the exercising of this right to interpretive disputes.
2. Either party may delete a Group 2 arbitrator following the arbitrator issuing their second award but prior to them issuing their fourth award. Confirmation of this decision must be conveyed to other party in writing.

A Group 2 arbitrator must hear and publish ~~three~~ **two** awards (arbitration matters between PSA and the BCGEU) before being eligible for inclusion in Group 1. Final inclusion in Group 1 is by expressed agreement of the parties.

Assignment of Arbitrators

The parties will arrange the names of arbitrators in alphabetical order from Groups 1 and 2, and will assign arbitrators to grievances on a rotational basis as the grievances are filed at as outlined in the attached arbitration process.

The arbitrator will not be notified of the assignment at this time except as outlined below. Expedited arbitrations will be heard pursuant to the MOU regarding that procedure except if the grievance is later filed to formal arbitration.

Should either party wish to have the grievance set down for a hearing, the parties shall initially discuss the case subject to causing undue delay. If no resolution is likely, the parties are to discuss and agree upon the venue, length of hearing and then appoint the arbitrator. Should the parties, following discussion, be unable to agree upon the venue and/or length of the hearing either party may appoint the arbitrator and the arbitrator will assist the parties in an attempt to resolve the issue of venue, length of hearing and dates. Failing agreement by the parties, the arbitrator shall determine the venue and set dates.

Should the assigned arbitrator not be available consistent with the terms of the collective agreement, either party may request the assignment of the next arbitrator into rotation or alternatively, the parties may agree upon an arbitrator.

Policy Grievances

Where both parties agree that a policy grievance will be heard by a single arbitrator, appointment of the arbitrator shall be done by the parties. In this regard, the parties may select any arbitrator from the list by mutual agreement. Prior to an arbitrator's appointment, the party initiating the appointment shall provide the other party with written notice of their intention to do so.

This agreement shall remain in full force and effect for the period of the ~~19th~~ **20th** Main Agreement and will continue in effect until a new or amended agreement is reached.

Expedited Arbitrators:

- **March/April:** **Vince Ready/Chris Sullivan**
- **June/July:** **Marli Rusen/Brett Matthews**
- **September/October:** **Chris Sullivan/Robert Pেকেles**
- **December:** **Robert Pেকেles/Marli Rusen**

Island ————— Judi Korbin (Chris Sullivan when Korbin unavailable)
 Lower Mainland ————— Vince Ready (Chris Sullivan when Ready unavailable)
 Southern Interior ————— Chris Sullivan/Robert Pেকেles (alternating)
 Northern Interior ————— Robert Pেকেles

Hours of Work Umpire: Chris Sullivan

Hours of Work Arbitrator: Agree on case by case basis from agreed to list

ARBITRATION PROCESS

- Union offices filing grievances at arbitration will scan and email, along with the normal correspondence, to the PSA Registrar (john.herbert@gov.bc.ca) and copied to the BCGEU Registrar (bcgeu.registrar@bcgeu.ca).
- Each Friday (for files submitted before noon that day), after confirming the first arbitrator on the list with the BCGEU Registrar, the PSA Registrar will assign a reference number (Arb#) and an arbitrator, in rotation, from the agreed-to list, as attached. This information is emailed to the BCGEU Registrar (Karla Hayes) Friday afternoon.
- Prior to the assignment of arbitrators each Friday, grievances will be "batched" in alphabetical order/grievor surname. Where more than one grievance involving the same grievor has been submitted, arbitrator assignment will be in chronological order based on the time notice was received by the PSA Registrar. Where two grievors have the same surname, alphabetical order will be based on the first name.
- Where a grievance filed by the Employer is submitted to arbitration, the PSA Registrar will be notified in writing (with a copy to the BCGEU Registrar) and the grievance will be included in the normal Friday reference number/arbitrator assignments noted above.

PSA/BCGEU AGREED TO LIST OF ARBITRATORS

- Tonie Beherrell
- Corinn Bell
- ~~Mark Brown~~
- Jacquie de Aguayo
- Jim Dorsey
- **Elaine Doyle**
- Michael Fleming
- **Jessica Gregory**

- ~~John Hall~~
- Koml Kandola
- Judi Korbin
- **Ritu Mahil**
- Alison Matacheskie
- **Brett Matthews**
- ~~John Mcconchie (mediation only)~~
- ~~Wayne Moore~~
- Julie Nichols
- Randy Noonan
- Robert Pেকেles
- ~~Arne Peltz~~
- Vince Ready
- Amanda Rogers
- Marli Rusen
- Ken Saunders
- Chris Sullivan

Classification Referee:

Formal: Julie Nichols
Vicki Averill

~~**PSJEP Pilot Project Joint Committee:**~~ Chair Robert Pেকেles

Clause 1.7 Adjudicator: Agree on a case by case basis from agreed to list

Clause 1.8 Adjudicator: Agree on a case by case basis from agreed to list

Clause 1.10 Panel Chair: Chris Sullivan

~~**MOU 13 Panel Chair:**~~ Chris Sullivan

This MOA shall be in effect for the term of the 20th Main Agreement and is conditional upon the arbitrators' acceptance of the assignment. Any Arbitrator on the above list who is unwilling or unable to take an assignment as assigned by the PSA Registrar, will be replaced by mutual agreement of the BCGEU Staff Representative and BCPSA Labour Relations Specialist.

Signed on behalf of the BCGEU:

Signed on behalf of the BCPSA:

Linsay Buss
Associate Director, Negotiations

Alyson Blackstock
Assistant Deputy Minister

Agreed to: DATE

Renew

**MOA To remain outside the collective agreement*

MEMORANDUM OF AGREEMENT
between
THE GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA
as represented by
B.C. PUBLIC SERVICE AGENCY (PSA)
and
THE B.C. GENERAL EMPLOYEES' UNION (BCGEU)

RE: Leave of Absence for Union Business – Local Chairpersons

For the term of the 18^{20th} Main Agreement, local chairpersons shall be entitled to up to 35 hours annually of leave of absence with basic pay and without loss of seniority to attend to union business which requires them to leave their general work area.

The local chairperson shall provide reasonable written notice and a completed leave of absence for union business form prior to commencing such leave.

The Union will provide BCPSA with names of the local chairpersons, not to exceed 53, along with the designation of the local which they represent, their ministry and work location.

No employee whose name does not appear on the list of local chairpersons will be eligible for this leave.

Further, we agree that the principals will establish a process to review concerns raised by either party pertaining to the utilization of this leave.

Renew

**MOA To remain outside the collective agreement*

MEMORANDUM OF AGREEMENT
between
THE GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA
as represented by
B.C. PUBLIC SERVICE AGENCY (PSA)
and
THE B.C. GENERAL EMPLOYEES' UNION (BCGEU)

RE: Part-time As-and-when Regular Employees – Service BC, Regional Operations

The purpose of this agreement is to address the terms and conditions of employment for regular part-time as-and-when employees, hereinafter referred to as RPTAW employees.

MoveUP/E&OE/MOS 2025

1. The terms and conditions of employment will include:
 - a. RPTAW employees will have regular status with corresponding pay and benefits in accordance with the ~~18~~²⁰th Main and Component Agreements, with exceptions indicated below.
 - b. RPTAW employees have an annual guarantee of hours based on a percentage of a full-time work schedule.
 - c. The hours and days of work will vary bi-weekly, ranging from nil to full-time hours, depending on operational demand, but will average no less than the annual guarantee between April 1 and March 31 of the following year.
 - d. Scheduled start and end times are variable from 8:00 a.m. to 5:00 p.m. as identified in Articles 4.1(a) and (b) of the Administrative Services Component Agreement.
 - e. Further hours may be offered in addition to the annual guaranteed hours, to a maximum of 1827 hours in 26 pay periods.
 - f. For vacation and use of CTO, RPTAW employees will be paid, and will be entitled to access leave banks, based on the percentage of full-time work schedule defined in their agreement.
 - g. The annual guaranteed hours for the position may be increase on a permanent or temporary basis by mutual agreement between the Employer and employee at any time.
 - h. Notwithstanding (f) above, paid leaves take during the duration of the revised schedule will be based on the new percentage of a full-time work schedule.
 - i. RPTAW employees will earn regular service seniority for all additional hours worked at straight time rates, in accordance with Main Agreement Clause 11.1 – Seniority Defined.
 - j. In locations with multiple RPTAW employees, hours will be scheduled to ensure an adequate number of staff is available to meet peak customer demands. The Employer will endeavour to schedule RPTAW hours in a manner that maintains relative seniority.
 - k. The Employer may continue to utilize the auxiliary category of employment as required.
 - l. RPTAW employees are subject to as-and-when required recall and shall be recalled and laid off pursuant to Main Agreement Article 31.5 – Layoff and Recall. In the event that the application of Article 31.5 may result in an employee(s) not maintaining the annual hours commitment in 1(b) above, the Employer may recall the employee(s) out of order seniority in order to meet that commitment.
 - m. All of Main Agreement Article 31.5 applies to RPTAW employees except for (c), (d) and (p). The provision of 31.5 (o) apply where the Employer schedules a new shift or changes a defined shift without at least 14 days' advance notice as per Article 15.3 (a).
 - n. RPTAW employees are required to report for available work when called to work within the prescribed scheduled time periods established pursuant to Clauses 31.5(e) and (f). Exceptions will be in accordance with applicable Main Agreement leave and notice provisions for regular employees.
 - o. RPTAW employees who refuse work outside of their prescribed scheduled time periods pursuant to Main Agreement Article 31.5(e) will suffer no consequences except in emergency situations.
 - p. Proration of service seniority, benefits, paid time off and other allowances are as described in the Information Appendix A to this agreement.
 - q. Implementation of this agreement will be at no increased cost to the Employer, including but not limited to premiums or penalties defined in Main Agreement Clauses 15.3 and 15.4.

- r. STIIP benefits will be calculated in accordance with Main Agreement Article 31.12(e), unless an RPTAW employee works an increased hours of work schedule for any period in excess of two weeks and is subsequently unable to report to work due to illness or injury during the period of increased hours of work and is entitled to benefits pursuant to Appendix 4. Such employees will have their STIIP benefit calculated on the basis of the increased hours of work. This calculation based on increased hours of work will continue for the duration of the initial increased hours of work assignment.
 - s. Main Agreement Clause 14.2 does not apply to RPTAW employees, with the exception of 14.2(b).
 - t. RPTAW employees will make every effort to schedule medical and dental appointments outside of scheduled shift hours.
 - u. Eligibility for LTD under Appendix 4, Part II, 2.1 (a) will be based on the appointment letter. The benefit level for LTD (if applicable based on the hours worked by the RPTAW employee) will be calculated using the formula outlined in Appendix 4, Part II, Article 2.2 of the Main Agreement.
2. Terms and conditions identified in this MOA apply to all employees hired as RPTAW.
 3. This agreement is to address the unique role and services provided by Service BC, Regional Operations, and is not intended to be a model or template for application outside the scope of Service BC.
 4. Unless otherwise stated in this Memorandum of Agreement, the Main and Component Agreements apply.
 5. This agreement is in effect from April 1, 2019~~2025~~ until the expiry of the 18~~20~~th Main Agreement, March 31, 2022~~2029~~, subject to annual review. Should any unanticipated operational concerns arise as a result of this agreement, the parties will meet to discuss and attempt to resolve them either immediately if urgent or at the time of the annual review.

APPENDIX A

Regular Part-time As-and-when Employees Hereinafter referred to as RPTAW Employees

SERVICE, BENEFITS, PAID TIME OFF AND OTHER ALLOWANCES

Prorated:

- Service seniority (one year of service seniority for every 1827 hours worked)
- Vacation
- Paid Holidays
- Main Agreement 20.12 – Maximum Leave Entitlement

- STIIP
- LTD
- Superannuation
- Canada Pension Plan*
- Employment Insurance*
- Work Safe BC*
- Group Life*

*Is only prorated to the extent that the benefit is based on the employee's part-time salary.

Not Prorated:

- Basic Medical Insurance
- Extended Health Care Plan
- Dental Plan
- Air Travel Insurance

Others:

- Overtime (paid in accordance with Clause 16.10 of the Main Agreement)
- Annual Increment (eligibility based on completion of 1827 hours since last increment)

Renew

**MOA To remain outside the collective agreement*

MEMORANDUM OF AGREEMENT
between
THE GOVERNMENT OF THE PROVINCE OF BRITISH COLUMBIA
as represented by
B.C. PUBLIC SERVICE AGENCY (PSA)
and
THE B.C. GENERAL EMPLOYEES' UNION (BCGEU)

RE: Part-Time Regular Employees – Court Services Branch

Vancouver Island Region

Effective the 1st of April, 2019 this agreement will address the employment status of the regular “part-time plus” registry clerks and court clerks who are irregularly scheduled. Where a part-time plus employee becomes regularly scheduled on a full-time or part-time basis, this Memorandum of Agreement will cease to apply. Any previous or existing agreements are replaced by this agreement.

1. The terms and conditions of employment will include:

- (a) Regular part-time plus registry clerks and court clerks hours and days of work will vary, depending on operational demand, but will average no less than the annual commitment identified in the employee's appointment letter. Corresponding pay and benefits will be in accordance with the Public Service Main and Component Agreements and will be pro-rated for additional straight time hours work.

The employer may continue to utilize the auxiliary category of employment as required. Part-time employees, where qualified, will have the right of first refusal.

- (b) Regular part-time plus registry clerks and court clerks will earn regular service seniority beyond the annual commitment, for all additional hours worked at straight time rates, in accordance with the Public Service Main Agreement Clause 11.1 – Seniority Defined.
- (c) Regular part-time plus registry clerks and court clerks may work up to the total annual hours of work of 1827 hours in 26 pay periods.

(d) Layoff and Recall

- i. Regular part-time plus registry clerks and court clerks are subject to as-and-when required recall, and shall be recalled and laid off, pursuant to Public Service Main Agreement Clause 31.5 – Layoff and Recall. In the event that the application of Article 31.5 may result in an employee(s) not maintaining the annual hours commitment in 1(a) above, the employer may recall the employee(s) out of order of seniority in order to meet that commitment.
 - ii. Notwithstanding (d)(i) above, Western Communities and Victoria courthouses are considered separate for the purposes of layoff and recall.
 - iii. All of Public Service Main Agreement Clause 31.5 applies to regular part-time plus registry clerks and court clerks except for (c), (d), (p) and (q).
 - iv. Regular part-time plus registry clerks and court clerks are required to report for available work when called to work within the prescribed scheduled time periods established pursuant to Clauses 31.5(e) and (f).
- (e) Exceptions to item(d)(iii) above will be in accordance with the applicable Public Service Main Agreement leave and notice provisions for regular employees.
- (f) Proration of service seniority, benefits, paid time off and other allowances are as described in Appendix A to this agreement.

- (g) Regular part-time registry clerks and court clerks will be scheduled a minimum of 14 days in advance; however, due to operational demand, this schedule may be changed with less than 14 days' notice.
 - (h) Implementation of this agreement will be at no increased cost to the employer, including but not limited to premiums or penalties attributable to regular part-time plus registry clerks and court clerks being recalled to additional work up to full-time, such as Public Service Main Agreement Clause 15.3.
 - (i) STIIP benefits will be calculated in accordance with Public Service Main Agreement Clause 31.12(e), unless a regular part-time plus registry clerk or court clerk works increased hours for any period in excess of two weeks and during that period of scheduled increased employment is subsequently unable to report to work due to illness or injury, and is entitled to benefits pursuant to Appendix A. Such employee will have their STIIP benefit calculated on the basis of the increased hours of work. The calculation based upon the increased hours of work will continue for the duration of the initial scheduled increased assignment and thereafter will revert to a benefit based upon the registry clerk or court clerk regular part-time plus status.
 - (j) Public Service Main Agreement Clause 14.2 does not apply to regular part-time plus registry clerks and court clerks.
 - (k) Eligibility for LTD under Appendix 4, Part II, 2.1(a) will be based on their appointment letter (i.e. the appointment letter stipulates at least regular .5 time employment). The benefit level for LTD (if applicable based on the hours worked by the regular part-time employee) will be calculated on the basis for the formula outlined in Appendix 4, Part II, Clause 2.2 of the Public Service Main Agreement.
2. The employee may be required to assist other locations or sections of the courts as directed by the employer and as outlined in the applicable job description.
 3. Regular part-time plus registry clerks and court clerks will make every effort to schedule medical and dental appointments on the days they are not scheduled to work.
 4. This agreement is to address the unique role of and services provided by the Vancouver Island Region of Court Services Branch, and is not intended to be a model or template for application outside the scope of the region.
 5. This agreement will remain in effect until the expiry of the ~~18~~²⁰th Public Service Main Agreement. Should any unanticipated operational concern(s) arise as a result of this agreement, the parties shall meet to discuss and attempt to resolve the concern(s).

6. Unless otherwise stated in this agreement, the Public Service Main and Administrative Services Component Agreements apply.

APPENDIX A

Regular Part-Time Plus Employees

Service, Benefits, Paid Time Off and Other Allowances

Prorated:

- Service seniority (one year's of service seniority for every 1827 hours completed)
- Vacation
- Paid Holidays
- Main Agreement 20.12 – Maximum Leave Entitlement
- STIIP
- LTD
- Superannuation
- Canada Pension Plan*
- Employment Insurance*
- Worker's Compensation Board*
- Group Life*

*Is only prorated to the extent that the benefit is based on the employee's part-time salary.

Not Prorated:

- Basic Medical Insurance
- Extended Health Care Plan
- Dental Plan
- Air Travel Insurance

Others:

- Overtime (paid in accordance with Clause 16.10 of the Main Agreement)
- Annual Increment (eligibility based on acquisition of 1827 hours since last increment)

**To reside outside of the Agreement*

2025 BCGEU PUBLIC SERVICE NET COMPENSATION INCREASES

MEMORANDUM OF AGREEMENT

1. If a public sector employer, as defined in s. 1 of the *Public Sector Employers Act*, enters into a collective agreement in respect of a bargaining unit for which a trade union is certified under the BC Labour Relations Code, with an effective date after December 31, 2024 and the first 4 years of the collective agreement under the Balanced Measures Mandate includes cumulative nominal (not compounded) net compensation increases (NCIs) that, in accordance with how NCIs are defined and calculated in this MOA, are paid out and exceed the sum of the NCIs that are paid out in the 20th Main Agreement, the total NCIs paid out will be adjusted on the second anniversary of the collective agreement so that the cumulative nominal NCIs are equivalent.
2. Unless otherwise specified in this MOA, an NCI is an increase to the total compensation envelope in the form of a wage or benefit increase that is expressed as a percentage increase to the combined wages and wage-impacted benefits (W&WIB) compensation base for the bargaining unit. For clarity, a 3% GWI also equals a 3% NCI as it increases wages and wage-impacted benefits by 3%. For further clarity, if an increase is only applied to wage-impacted benefits (WIB) in a collective agreement, such as a 5% increase to WIB, it would be the percentage increase it represents to the overall W&WIB compensation base, e.g. 0.1%, that would be treated as the NCI.
3. For the purposes of this MOA, the value of any 0.2% flexibility allocation and any increase to non-wage impacted benefits shall be determined in accordance with the following steps to prevent this MOA from inadvertently being triggered or not triggered due to the relative size of the non-wage impacted benefits compensation base in relation to the overall total compensation base:
 - i. The value shall be calculated based on the percentage increase represented to the overall total compensation base;
 - ii. The value in (i) above shall then be treated as the NCI value. For clarity, a 0.2% flexibility allocation shall be treated as a 0.2% NCI, notwithstanding the fact that a 0.2% flexibility allocation is applied to the overall compensation base and may be greater than a 0.2% increase to the W&WIB compensation base.
4. The sum of all NCIs for the 4-year 20th Main Agreement shall equal the percentage NCIs that were negotiated in collective bargaining for the agreement, including GWIs, flexibility adjustments and any other compensation increases.
5. For clarity, NCIs do not include low wage and benefit redress adjustments for other BCGEU bargaining units; mid-contract labour market adjustments for specific occupations agreed to post-ratification to address critical skills shortages that have emerged or worsened since bargaining; increases for the CUPE 873 Ambulance Paramedics bargaining unit; compensation increases that are funded by equivalent collective agreement savings; policy funding that is not directly tied to a collective agreement; *increases resulting from an employer being designated as a public sector*

employer under the Public Sector Employers Act; relief from provisions in a prior collective agreement that were to become effective after the term of the prior collective agreement for the NBA collective agreement only; increases awarded through binding interest arbitration; or any grievance resolutions.

6. Notwithstanding the list of exclusions in paragraph 5, all new compensation and benefit increase received by the Facilities Bargaining Association during the term of the 20th Main Agreement shall count as NCIs, with the exception any market adjustments and incentive payments that were in effect as of October 25, 2025 and are subsequently renewed. If any new Facilities Bargaining Association mid-contract increases are included in the calculation of the Facilities Bargaining Association's overall NCIs, then any new BCGEU mid-contract increases shall also be included.
7. Subject to paragraph 11 below, it is understood that the costing decisions and assumptions made by the Public Sector Employers' Council (PSEC) Secretariat in relation to the NCIs, in any collective agreement are based on the information available at the time the PSEC Secretariat reviewed the changes to the collective agreement prior to the parties reaching a tentative agreement. All decisions made by the PSEC Secretariat must be in good faith and all costing assumptions must be reasonable. Any costing review conducted in accordance with paragraph 11, must be based on the utilization rates and other assumptions that were reasonably available at the time, rather than unforeseen subsequent changes or newer data.
8. During the term of the 20th Main Agreement, PSEC Secretariat shall notify the BCGEU of any mid-contract labour market adjustment provided to other public sector bargaining units, and, in accordance with paragraph 2 of the MOA, the corresponding value of the net compensation increase it represents.
9. For clarity, a GWI is an increase that applies to all members of a bargaining unit (e.g. everyone receives an additional \$0.30 per hour, \$400 per year, or 1% increase).
10. If this MOA is triggered pursuant to paragraph 1, the manner in which the NCI adjustment is paid out must be agreed to by the parties. If the parties cannot agree, the matter will be referred to an arbitrator as per paragraph 11.
11. Any disputes related to the interpretation, application, or alleged violation of this MOA, and including any decisions made by the PSEC Secretariat in relation to it, may be referred directly to an arbitrator mutually agreed to by the parties.
12. This MOA will remain in effect for the term of the 20th Main Agreement.

January 29, 2025

Lindsay Buss
Associate Director, Negotiations and Lead Negotiator
B.C. General Employees' Union
4911 Canada Way, Burnaby BC, V5G 3W3

Dear Lindsay Buss:

Re: Archived Vacation

The BCGEU main agreement allows the carryover of 10 days unused vacation, up to a maximum of 10 days at any time. Vacation not taken in excess of this is "archived" and may not be cashed out except upon termination. When archived time is cashed out, it only has the value it had in the year it was earned. Archived vacation cannot be used as time off.

~~If the collective agreement is ratified by October 31, 2025,~~ Employees will be given a one-time option for full payout (no partial payouts) of their archived vacation bank on a without precedence basis. This would include archived vacation, up to and including the 2024 vacation year.

~~Administration information notes, assuming the collective agreement is ratified by October 31, 2025:~~

- Within 60 days of ratification, the employer shall create an email communication on this process to go to all staff. Employees will be required to submit their payout request within 14 days of the email communication to all staff.
- Once an employee has logged in and authenticated, they will be presented with their respective balance and yes/no option which will create a payroll transaction line once there is a commitment to a year (for a full payout of an archived vacation). Employees within the Liquor Distribution Branch and the BC Pension Corporation will receive separate instructions.
- The value of the payout for each employee will be taxed at source. No options will be given for tax sheltering. Payouts will be reflected on employee T4s for the year in which the payout was received.

Yours truly,

Alyson Blackstock
Assistant Deputy Minister
Employee and Labour Relations, BCPSA

February 28, 2025

Lindsay Buss
Associate Director, Negotiations and Lead Negotiator
B.C. General Employees' Union
MoveUP/E&OE/MOS 2025

4911 Canada Way, Burnaby BC, V5G 3W3

Dear Lindsay Buss:

Re: Artificial Intelligence and Automated Work

The Employer acknowledges that there are many opportunities to improve service delivery for British Columbians with the thoughtful use of Artificial Intelligence (AI).

However, the Employer must carefully consider the risks and challenges that AI poses such as privacy and security concerns, data bias, fairness, and human rights issues.

Further, the Employer agrees that any introduction of AI that significantly impacts the bargaining unit workforce falls under Article 23 of the Main Agreement and Section 1 of the *Public Service Labour Relations Act*. Any triggering of the obligations under the collective agreement and of a statutory nature shall be fulfilled without unreasonable delay.

Sincerely,

Alyson Blackstock
Assistant Deputy Minister
Employee and Labour Relations, BCPSA

**To Reside Outside of the Agreement*

Letter re: Telework Agreements

Ms. Lindsay Buss
Associate Director, Negotiations
B.C. General Employees' Union
4911 Canada Way, Burnaby, BC V5G 3W3

Dear Lindsay:

RE: Telework Agreements

The Parties recognize that employees of the BC Public Service have access to various flexible work arrangements including telework arrangements. These work arrangements are specifically designed to address changes in technology and enhance service delivery. These arrangements support the vision and values of the BC Public Service in diversity and inclusion.

Further, the Parties recognize that these work arrangements are not a condition of employment, nor an obligation or right. They are voluntary and at the sole discretion of the Employer, as per Article 6 of the MoveUP/E&OE/MOS 2025

BCGEU Main Agreement, Management Rights. The Employer will update its policy in Information Appendix II Re: Flexible Work Arrangements Policy Directive 6.1 to reflect that decisions related to telework will not be made in a discriminatory or arbitrary manner.

Sincerely,

Alyson Blackstock
Assistant Deputy Minister
Employee and Labour Relations, BCPSA

**The following letter shall remain outside of the agreement*

Letter

October 20, 2025

Ms. Linsay Buss
Lead Negotiator
B.C. General Employees' Union
4911 Canada Way, Burnaby BC, V5G 3W3

Dear Linsay:

Re: One-time Assessment for Dedicated Remote Positions

This letter is to confirm the Parties' shared understandings about the one-time assessment for dedicated remote positions. The Parties have negotiated a new Memorandum of Understanding regarding Dedicated Remote Positions with the shared understanding that dedicated remote positions and their corresponding approved remote work locations are different from the Employer's policy on Telework.

After ratification, the Employer will complete a review of all current positions within the bargaining unit to determine whether they may be established as a dedicated remote position. The review will begin 30 days after ratification and completed by the end of the term of the 20th Main Agreement. If the position is determined to be a dedicated remote position, the current incumbent will have the opportunity to decline the change to their Headquarters to an approved remote work location.

Any existing employee accepting a remote position as a result of the one-time review, whose current headquarters is in the same isolated location as their new dedicated remote position will continue to receive isolation allowances as per Articles 27.10, 27.17, 27.23 as well as MOU 17 Re: Vacation Adjustments for Remote Locations for as long as they remain in the same isolated location. Exceptional circumstances will be considered on a case-by-case basis.

The Parties agree the establishment of any position is a management right, and the decision resulting from the assessment is final.

MoveUP/E&OE/MOS 2025

Sincerely,

Alyson Blackstock
Assistant Deputy Minister
Employee and Labour Relations, BCPSA

HOUSEKEEPING

1. Updates to table of contents and index as required.
2. Update references to the 19th Main to the 20th Main, as required.
3. Updates to article numbers/references as required.
4. Replace any reference to “Queen” throughout the Main to “King” and “her Majesty” to “his Majesty”.
5. Where relevant and agreed to by the bargaining principals, update Aboriginal to Indigenous where appropriate.
6. Article 17 – Paid Holidays. Remove 17.1 (c) – no longer required/relevant.
7. Article 31.12(c) – Section 1.10 9 Benefits Upon Layoff or Separation.
8. Article 32.6 – Payroll Deductions. Remove reference to BC Bonds and the Payroll Savings Program (Canada Bonds), as both have been discontinued.
9. Appendix 6 – Update names as required (e.g. Queen Charlotte City is now Daajing Giids).
10. MOU 36 – Health and Welfare Benefit Eligibility for Seasonal Auxiliary Employees. Update Ministry names as required.
11. Where relevant, the parties agree to add hyperlinks to the agreement.
12. Where relevant and agreed to by the bargaining principals, use of gender inclusive language throughout the agreement.

13. The collective agreement will be formatted using the BCGEU standard formatting template.

DRAFT